

IN THE UTAH SUPREME COURT

TYLER JAMES ROBINSON, Plaintiff/Respondent, vs. STATE OF UTAH, Defendant/Petitioner.	PETITION FOR PERMISSION TO APPEAL FROM TWO INTERLOCUTORY ORDERS (EXPEDITED REVIEW REQUESTED) Appeal No. 2026____-SC District Court No. 251403576
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On Appeal from Ruling and Orders (1) Denying Defendant's Motion in Limine to Preclude Utilization of art. I, § 12 of the Utah Const. and R. 1102 of the URE to Sanction the Admissibility of Hearsay Evidence to Establish Probable Cause at the Preliminary Hearing and (2) Regarding Defendant's Application for Certificate for Attendance of Out-Of-State Witness and State's Motion to Quash Subpoena Fourth District Court, Utah County, Honorable Tony F. Graf, Jr. Presiding

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INTRODUCTION

Petitioner, Tyler James Robinson (“Robinson”) seeks relief from two interlocutory orders issued by the Honorable Tony F. Graf, Jr., of the Fourth Judicial District Court which, both individually and in combination, violate his rights under Article I, Section 12 of the Utah Constitution and under the Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution. These orders wholly eviscerate the long-standing constitutional principle that a preliminary hearing *in a capital prosecution* is an adversarial proceeding at which the defendant is guaranteed a meaningful right to due process of law, to the effective assistance of counsel, to confront and cross examine witnesses against him, to present evidence in his own defense, to compulsory process and to findings based upon heightened reliability. Moreover, it is a hearing at which the District Court must exercise its own independent judgment as to the reliability of and weight to be given evidence, lest the court’s co-equal status of a branch of government be subsumed by the State’s strategic decisions not to present material witness testimony.

The preliminary hearing in this capital prosecution is scheduled to begin on July 6, 2026. In light of the rights at issue and the timing of the proceedings in the District Court, Robinson requests that this Court expedite briefing on this petition pursuant to Rule 23C.

ORIGINAL AND EXCLUSIVE APPELLATE JURISDICTION

Robinson is charged with aggravated murder, a capital felony. Dkt 1. This Court has original appellate jurisdiction over “interlocutory appeals from any court of record involving a charge of a first degree or capital felony.” Utah Code § 78A-3-102(3)(h).

“[A]n appeal of an interlocutory order of a court of record involving a charge of a capital felony” is excluded from this Court’s transfer authority. Utah Code § 78A-3-102(4)(a).

STATEMENT OF THE CASE

Robinson is charged by *Information* with the aggravated murder of Charlie Kirk on September 10, 2025, in violation of Utah Code § 76-5-202, six other offenses and certain sentencing enhancements. Dkt 1. Concurrent with the filing of the *Information*, the State filed notice of its intention to seek the death penalty. Dkt 10.

The preliminary hearing is scheduled to begin on July 6, 2026. *See* Dkt 534, at 3-4. In anticipation of the State’s largely hearsay-based presentation at the preliminary hearing, Robinson filed two motions which are both the subject of this petition.

First, he moved the District Court to prohibit the State from using what the Utah Legislature has deemed presumptively “reliable hearsay” under Utah Constitution, art. I, § 12 and URE 1102 without affording Mr. Robinson his constitutional rights to due process, to confront and cross-examine witnesses, and to the effective assistance of counsel. Mr. Robinson also asserted these provisions violate Utah’s separation of powers provision.¹ The State opposed the motion, arguing that Utah’s “procedures are not unconstitutional.” Mr. Robinson filed a detailed reply in support of his motion. On June

¹ These filings are included in the Addenda as: A-1, Ruling and Order; A-2, Motion; A-3, Opposition; A-4, Reply in Support; A-5, Transcript to be provided*

*Due to a miscommunication, only part of the 6/12/26 hearing transcript has been produced. The portion dealing with Robinson’s hearsay motion is in process and will be filed with the Court promptly upon receipt.

12, 2026, the District Court held oral argument on the motion. *See* Add. A-5 (Dkt 621). The District Court denied Mr. Robinson’s motion on June 22, 2026. *See* Add. A-1 (Dkt 631). The ruling and the filings are discussed further in the Argument section below.

Second, in light of the State’s intention to present, pursuant to URE 1102(b)(8), a video recorded hearsay statement of an immunized *out-of-state* witness who claims that Mr. Robinson confessed to committing the murder, Mr. Robinson requested that the District Court certify an out-of-state subpoena for that witness pursuant to the *Uniform Act to Secure the Attendance of Witnesses from Without a State in a Criminal Proceeding*, Utah Code § 77-21, *et seq.* [hereinafter “the Uniform Act”] so that the witness, who is *not* a victim, would be available for cross-examination concerning his hearsay statements and matters that bear on the reliability of those statements. *See* Dkt 523. Relying primarily on this Court’s decision in *State v. Lopez*, 2020 UT 61, and its discussion of the “reasonableness” limitation in Rule 14(a)(2) on an out-of-state subpoena for a witness who was *the victim* of the charged sex offenses in that case, the District Court declined to issue the certificate of materiality, rendering it impossible for Mr. Robinson to secure that witness’ presence at the preliminary hearing, especially in light of the State’s refusal to arrange, pursuant to their use-immunity agreement, for the witness to be present to testify at the hearing.²

The District Court’s ruling completely ignores the “materiality” provision in the *Uniform Act*, wholly misapplies the reasonableness criterion in URCrimP 14(a)(2) and

² These filings are included in the Addenda as: B-1, Order; B-2, Application for Certificate; B-3, Opposition; B-4, Reply in Support; B-5, Transcript.

violates Mr. Robinson's statutory right to call witnesses to testify and to confront and cross-examine witnesses against him at his preliminary hearing. It also violates his Fifth, Sixth, Eighth and Fourteenth Amendment rights under the U.S. Constitution and his similar rights under Section 12 of Article I of the Utah Constitution.

The serious errors by the District Court on both of these issues need to be corrected expeditiously because the resulting preliminary hearing has been reduced to something far less than the adversarial proceeding which constitutional principles require. These principles are paramount where the State seeks the most extreme punishment recognized in the American legal system: a sentence of death.

ISSUES PRESENTED

Issue 1: The District Court erred in either failing to address or denying Mr. Robinson's constitutional claims against the use of Utah Const. art. I, § 12 and URE 1102 to sanction a capital preliminary hearing devoid of constitutional protections.

Preservation: These issues were preserved in the Motion, Reply, and at oral argument. *See* Add. A-2, A-4.

Standard of Review: This Court reviews "for correctness" the question of law as to whether a trial court has strictly complied with constitutional requirements. *State v. Holland*, 921 P.2d 430, 433 (Utah 1996).

Issue 2: The District Court erred in denying Mr. Robinson's Application pursuant to the *Uniform Act* to compel the testimony of an out-of-state witness by wholly failing to address the statutory requirement of materiality, applying URCrimP 14 and *State v. Lopez* to the application (when a subpoena does not exist), and ultimately depriving Mr. Robinson of his rights to effective assistance of counsel, due process, and compulsory process.

Preservation: These issues were preserved in Mr. Robinson's *Application*. *See* B-

2.

Standards of Review: These issues are all reviewed for correctness. This Court reviews “for correctness” the question of law as to whether a trial court has strictly complied with constitutional requirements. *Holland*, 921 P.2d at 433. This Court likewise reviews questions “of statutory interpretation for correctness, affording no deference to the district court’s legal conclusions,” *State v. Gallegos*, 2007 UT 81, ¶ 81; and questions regarding the proper interpretation of procedural rules and caselaw are also reviewed for correctness. *See Griffin v. Snow Christensen & Martineau*, 2025 UT 16, ¶ 25.

ARGUMENT

I. Interlocutory Review Is Necessary Because the Constitutional Issues Raised Will Evade Review, Interlocutory Review Will Prospectively Prevent Constitutional Error, and the Case “Squarely” Presents Unresolved Issues Concerning the Conduct of Preliminary Hearings Subsequent to Adoption of the Victims Rights Act (“VRA”).

There are multiple compelling reasons why this Court should accept Mr. Robinson’s request for interlocutory appeal of the two District Court decisions identified above.

First, these rulings raise important constitutional issues that will evade meaningful review if this Court does not accept the interlocutory petition. “Except those instances in which errors affect the court’s jurisdiction or where claims of error expressly reserved for appeal,” resolution of the case by guilty plea or conviction “acts as a waiver of earlier procedural flaws.” *State v. Rhinehart*, 2007 UT 61, ¶ 15, 167 P.3d 1046.

Second, this Court has an opportunity to prevent federal constitutional violations from occurring in Mr. Robinson’s capital case, thus avoiding the prospect of a retrial following federal review. *State v. James*, 767 P.2d 549, 555 (1989) (interlocutory review

of a federal constitutional claim “affords us the opportunity to review the denial before any error committed would be prejudicial to defendant”). Preventing error that may later result in reversal materially advances the litigation of this capital case.

Third, in *State v. Goins*, this Court recognized that certain portions of Utah’s caselaw will need to be “revisit[ed]” in light of the VRA as issues are placed “squarely before us”. 2017 UT 61, ¶ 44; *see also State v. Labrum*, 2025 UT 12, ¶¶ 57-58 (“[a]lthough the amendment was ratified nearly thirty years ago, some branches of our caselaw have yet to fully register its impact.”).

With respect to the doctrine of “reliable hearsay” the District Court acknowledged that Mr. Robinson raised several “substantial” federal constitutional challenges and a separation of powers challenge to Utah’s preliminary hearing procedure, only one of which this Court has addressed in *State v. Timmerman*, 2009 UT 58. These challenges are likely to be raised in other cases throughout the state, and the present capital case puts these questions of constitutional significance squarely before the Court. These issues must be resolved by this Court to ensure uniformity of decision.

With respect to the District Court order declining to certify an out-of-state subpoena for a material witness whose recorded hearsay statement will be presented by the State pursuant to Rule 1102, the District Court’s ruling fails to address materiality, as required by the *Uniform Act*, extends this Court’s URCrimP 14(a)(2) reasonableness discussion in *Lopez* far beyond its victim-centric holding, eviscerates the rule that a defendant may call and cross-examine witnesses, and violates important constitutional rights of this capitally-charged defendant, who is facing a potential death sentence.

II. This Court Must Intervene to Answer Critical Constitutional Questions Regarding Preliminary Hearings in Capital Cases, Left Unanswered Since the VRA, and to Correct the District Court's Errors of Law.

A. *The District Court Erred in Avoiding the Separation of Powers Issue Created by the Legislatively Created URE 1102 Reliability Presumptions.*

As required by Utah Const. art. I, § 12, URE 1102 mandates that certain hearsay must be treated as “reliable hearsay” by a magistrate at a preliminary hearing. Mr. Robinson’s Fourth Amendment, separation of powers, and unconstitutional mandatory presumption challenges to URE 1102 were based on the argument that by creating a mandatory presumption that certain hearsay was reliable the rule unconstitutionally delegated the judicial task of finding probable cause to the legislature. The court below avoided the constitutional questions presented by construing URE 1102 to mean that “[t]he presumption of reliability is confined to the presumption that the hearsay evidence is admissible.” Add. A-1, at 4-5. This reading of URE 1102 is not only contrary to its plain language but it defeats the very purpose of the constitutional amendment of article I, § 12. That purpose, according to the drafters of the amendment, was to prevent the judiciary from defining what constitutes reliable hearsay.³ *See also*, Part II(D); Utah Const. art. V, § 1.

³ See Paul Cassell, *Balancing the Scales of Justice: The Case for and the Effects of Utah’s Victims’ Rights Amendment*, Utah L. Rev: Vol. 1994: No. 4, Article 3, p. 1442 (“To eliminate any doubt about the effect of the statutory definition of ‘reliable’ hearsay, an amendment added on the Senate floor at the suggestion of the Council on Victims provided that reliable hearsay was to be defined ‘by statute or rule’.”), citing Floor Debate, Statement of Sen. Lyle W. Hillyard, 50th Utah Leg., Gen. Sess. (Feb. 16, 1994) (Sen. recording no. 28, side A) (“**What that will mean is that reliable hearsay will be defined by statute or rule, and not by the courts.** And that was a concern that . . . Reed Richards [Chair of the Governor’s Council] expressed to me in putting this bill [together] and I think it’s a friendly amendment.” (emphasis added)). In other words, “the Amendment refers to reliable hearsay ‘as defined by rule or statute.’ This language, added

The important question Mr. Robinson’s motion posed, never answered by the District Court, was whether this drastic intrusion on judicial prerogatives was expressly explained to and approved by the voters when the only explanation they were given in the impartial analysis in the Voter’s Pamphlet was focused exclusively on the effect of the amendment in allowing hearsay statements by victims:

Under this proposal, reliable hearsay may be used by the magistrate at a preliminary hearing under rules or statutes which define the hearsay standards more broadly than under existing court rules of evidence. For example, a magistrate could rely solely on the law enforcement officer’s testimony at the preliminary hearing to determine probable cause when the investigating officer gives the victim’s description of the crime. This means that the crime victim need not testify in person and be cross-examined by the defendant’s attorney for the court to determine probable cause at this stage of the criminal proceedings.

UTAH VOTER INFORMATION PAMPHLET 8 (1994). That question must ultimately be decided by this Court as the final arbiter of the meaning of the Utah Constitution.

B. The District Court Erred in Finding the Eighth Amendment Does Not Apply to Preliminary Hearings and this Error Impacts the Entire Proceeding.

Mr. Robinson raised several federal constitutional challenges in the District Court including that Utah Const. art. I, § 12 and URE 1102 violate Mr. Robinson’s Eighth Amendment right to be free from cruel and unusual punishment. Add. A-2, at 21-23. The District Court dismissed this challenge out of hand, ruling that “[t]he Eighth Amendment

on the floor of the Senate at the suggestion of the Council of Victims, **gives the legislature by majority vote the final say on what constitutes reliable hearsay**. The concern was that the courts not be able, by rule, to readopt the *Anderson* result” and render any hearsay reform a nullity.” *Id.* at 1449 (emphasis added).

According to Professor Cassell, Chair of the Constitutional Amendment Committee of the Utah Council on Victims, “[t]he drafters of the Victims’ Rights Amendment and its accompanying 1994 implementing legislation-the Utah Council on Victims, Senate sponsor Craig A. Peterson, and House sponsor R. Lee Ellertson-have all reviewed this Article and endorsed it as a statement of the drafters’ intentions.” *Id.* at 1373.

authorities cited by Defendant concern the reliability required in proceedings that determine guilt or authorize punishment, particularly capital punishment”, and that “[b]ecause Defendant’s guilt, innocence, and punishment are not at issue during the preliminary hearing, the court concludes that the Eighth Amendment concerns identified by Defendant are not implicated at this stage of the proceedings.” Add. A-1, at 4. This ruling constitutes clear constitutional error that should be corrected by this Court before it infects the entire preliminary hearing process.

The Supreme Court has broadly proclaimed that “[i]n *capital proceedings* generally, this Court has demanded that *factfinding procedures* aspire to a heightened standard of reliability.” *Ford v. Wainwright*, 477 U.S. 399, 411 (1986) (emphasis added). *See also Deck v. Missouri*, 544 U.S. 622, 632 (2005) (“The Court has stressed the ‘acute need’ for reliable decisionmaking when the death penalty is at issue.”); *Beck v. Alabama*, 447 U.S. 625, 638 (1980) (“[W]e have invalidated procedural rules that tended to diminish the reliability of the sentencing determination. The same reasoning must apply to rules that diminish the reliability of the guilt determination.”). The State did not and could not claim that this case is presently not a “capital proceedin[g]”, that a preliminary hearing is not a “factfinding procedur[e]”, or that the death penalty is not presently at issue. Contrary to the District Court’s ruling, the *Ford* heightened reliability standard therefore applies to the preliminary hearing phase of this case.

The District Court’s ruling also ignores another Eighth Amendment principle, that “[w]hen a defendant’s life is at stake, the Court has been particularly sensitive to insure that every safeguard is observed.” Add. A-2, at 21 (citing *Gregg v. Georgia*, 428 U.S.

153, 187 (1976)). The State did not and could not claim below that Mr. Robinson's life is not presently at stake or that the right to confront hearsay declarants at a preliminary hearing is not encompassed within the broad phrase "every safeguard."

Since Mr. Robinson is only further exposed to a potential sentence of death if the District Court makes certain findings at a preliminary hearing that is supposed to be based upon evidence that the court (not the Legislature) finds reliable, application of art. 1, § 12 and URE 1102 in this case sanctions a preliminary hearing without any meaningful adversarial testing of most of the evidence the State intends to proffer, which the District Court must consider "reliable hearsay" under the mandate of URE 1102.

The Eighth Amendment flaw in allowing such a procedure is that it removes an essential procedural safeguard designed to ensure heightened reliability in the factfinding procedure at a critical stage of the capital proceeding. As one case cited to the District Court correctly concluded:

Allegations of special circumstances may produce the penalty of death, which cannot realistically be equated with "additional punishment" because it is Total punishment. [*See Woodson v. North Carolina*, 428 U.S. 280 (1976).] They are thus distinguishable from "enhancement" allegations on the stark basis that death is distinguishable from life. A further distinction appears in the gross disparity between the consequences of "enhancement" allegations, on the one hand, and allegations of special circumstances on the other.

These distinctions invalidate [cases involving non-capital enhancements] as authority for the Attorney General's argument that allegations of special circumstances may not be challenged on a [motion challenging a bindover]. The distinctions also demonstrate that the People, as well as the accused, have an overriding interest in the assurance that these allegations are founded on perceptible evidence showing reasonable cause to make them and to assume their portentous consequences in a prosecution for murder....That assurance will be forthcoming only if the prosecuting authorities produce the requisite evidence at the pre-accusatory inquiry on the murder charge And if its sufficiency to support the

allegations may be tested in a pretrial procedure which includes appellate review.

Ghent v. Superior Ct., 153 Cal. Rptr. 720, 726-27 (Cal. Ct. App. 1979) (additional internal citations omitted). *See also Ramos v. Superior Ct.*, 648 P.2d 589, 593 (Cal. 1982) (“Following *Ghent*’s lead, a number of...decisions have confirmed that the adequacy of evidence to support a charged special circumstance allegation may be reviewed”).

“[T]he severity of the [capital] sentence mandates careful scrutiny in the review of any colorable claim of error”. *Zant v. Stephens*, 462 U.S. 862, 885 (1983). Here, Mr. Robinson has stated a meritorious claim of Eighth Amendment error. That claim is therefore entitled to careful scrutiny by this Court.

C. The District Court Errors in Construing URE 1102 and Utah Const., art. I, § 12 Deprive Mr. Robinson of His Right to Effective Assistance of Counsel at a Critical Proceeding in a Capital Case.

Undoubtedly, a preliminary hearing is a critical stage of a prosecution at which defendants are entitled to counsel. *Coleman v. Alabama*, 399 U.S. 1, 10 (1970). Despite this constitutional truism, the District Court concluded that Mr. Robinson has a qualified or “tailored” Sixth Amendment right to counsel in a preliminary hearing that does not guarantee him a critical function of counsel—the examination of witnesses. Add. A-1, at 3.

However, no Utah court nor any federal court have ever adopted such a view of the right to counsel in a preliminary hearing. To the contrary, in *State v. Montes*, the Utah Court of Appeals opined: “The examination and cross-examination of witnesses also constitutes a critical stage of the criminal process” and, quoting *Coleman*,

The United States Supreme Court has stated that a preliminary hearing is a ‘critical stage’ in the criminal process precisely because it involves the examination and cross-examination of witnesses: ‘[T]he lawyer’s skilled examination and cross-examination of witnesses [during a preliminary hearing] may expose fatal weaknesses in the State’s case.... [T]he skilled interrogation of witnesses by an experienced lawyer can fashion a vital impeachment tool for use in cross-examination of the State’s witnesses at the trial....’

Montes, 2019 UT App 74, ¶ 38 (*Coleman*, 399 U.S. at 9). The District Court’s conclusion that, “[t]he full application to a defendant’s right to counsel at the preliminary hearing, which is limited to a probable cause determination, need not be as exhaustive as it must be at trial” cannot be squared with existing Utah law interpreting the Sixth Amendment right to counsel in a preliminary hearing. *See* Add. A-1, at 3.

Furthermore, the District Court’s reliance on *Strickland v. Washington*, 466 U.S. 688, 689 (1984) for the idea that the right to counsel somehow waxes and wanes throughout a criminal proceeding is a misapplication of this important precedent. *Strickland* stands, in part, for the standard that when examining an attorney’s performance for post-conviction error, reviewing courts look to the reasonableness of the attorney’s assistance in light of prevailing professional norms. *Id.* at 688-89. The standard affords attorneys latitude in making *their own* reasonable strategic decisions. *Id.*

In application, undersigned counsels’ *decision* not to call and examine witnesses at a preliminary hearing may be a reasonable strategic decision dependent on the factual circumstances. The problem presented here is of an entirely different ilk—the Utah Legislature, through Utah Const. art. I, § 12 and URE 1102, prevents counsel from making these strategic decisions. And when viewed with the District Court’s order addressed in Part III of this *Petition*, whereby the District Court prevented Mr. Robinson

from calling a material witness at the preliminary hearing, such a circumstance is more akin to the language from *Strickland* commenting on instances where government interference may actually or constructively deny a defendant their Sixth Amendment right to counsel. *See* 466 U.S. at 683; *see also Kentucky v. Stincer*, 482 U.S. 730, 737 (1987).

In short, art. I, § 12 and URE 1102 as interpreted by the District Court deprive Mr. Robinson of his Sixth Amendment right to effective assistance of counsel in a capital preliminary hearing. This Court must correct the District Court's error.

D. The District Court's Errors in Construing URE 1102 and Utah Const., art. I, § 12 Deprive Mr. Robinson of His Rights to Procedural Due Process and Equal Protection.

The District Court gave cursory treatment to Mr. Robinson's claim that art. I, § 12 and URE 1102 violate the Fourteenth Amendment, finding only that where the preliminary hearing is limited, the evidentiary safeguards applicable at trial are not required. Add. A-1, at 4. However, the District Court failed to address the constitutional issue raised—whether Utah's preliminary hearing procedures are constitutionally adequate under the strictures of the Fourteenth Amendment because they prevent the calling and cross-examination of hearsay declarants. *See id.* at 10-15; *see Goldberg v. Kelly*, 397 U.S. 254, 269 (1970) (“[i]n almost every setting where important decisions turn on questions of fact, due process requires an opportunity to confront and cross-examine adverse witnesses.”).

The District Court did, in part, address Mr. Robinson's claim that art. I, § 12 and URE 1102 create an unconstitutional presumption of reliability. Add. A-1, at 4-5. The District Court parsed the function of these provisions as creating on a presumption of

admissibility, as opposed to a presumption of reliability. *Id.* According to the District Court, it may give the reliable hearsay admitted through URE 1102 whatever weight the court deems appropriate and weigh the credibility of the hearsay evidence.

Setting aside that the District Court's ruling is contrary to the plain language of both art. I, § 12 and URE 1102, the District Court's conclusion is simply not true. As the District Court noted in its ruling addressed in Part III,

As established in *State v. Ramirez* and *State v. Schmidt*, a magistrate may not weigh credible but conflicting evidence. Even if Defendant's cross-examination successfully exposed inconsistencies in [a hearsay declarant's] statements or highlighted his motives to lie . . . the magistrate is required to draw all reasonable inferences in favor of the State.

Add. B-1, at 7. According to the District Court, unless a defendant can show "the State's evidence incapable of supporting a reasonable inference that Defendant committed the charged offenses" the District Court "may not resolve competing credibility determinations or weigh conflicting inferences against the State." *Id.* Thus, in function, the admission of the evidence deemed reliable by the Utah Legislature in art. I, § 12 and URE 1102, will not be assessed for credibility by the District Court and will be weighed in favor of the State absent *the defendant meeting an evidentiary burden*. This is a presumption that shifts the burden to defendants and the District Court was incorrect in concluding otherwise. *See* Add. A-1, at 15-19.

III. The District Court's Errors in Denying the Application for Certificate of an Out of State Witness Deprive Mr. Robinson of Constitutional and Rule-Based Guarantees Attendant to a Preliminary Hearing.

A. The District Court Failed to Address the Central and Only Factual Issue Presented by the Uniform Act, Whether the Out-of-State Witness Is Material.

The *Uniform Act* anticipates two judicial determinations in order to secure an out-of-state witness: (1) that the witness is material; and (2) that the witness is necessary. Utah Code § 77-21-2. The plain language of the statute instructs that the *materiality* question is addressed by the in-state court to whom the proposed certification is presented, while the *necessity* question is to be addressed by the out-of-state court once it is presented with the in-state court's certification. *Id.*

Here, the District Court did not address the central issue before it—whether Lance Twiggs is a material witness within the meaning of the *Uniform Act*. Instead, the District Court was led astray by the State's pleading asking the Court to “quash” a non-existent subpoena because, as the District Court put it, the relevant question was whether “the proposed testimony is necessary to present evidence reasonably likely to defeat probable cause at this preliminary hearing.” Add. B-1, at 6. However, the only questions before the Court, per the *Uniform Act*, were whether Mr. Twiggs was a material witness in a pending criminal proceeding, and the number of days his presence in Utah would be required. *See* Utah Code § 77-21, *et. seq.*

The District Court's failure to follow the statute is an error which must be corrected. It is clear that Mr. Twiggs is a material witness. His recorded video interview the prosecution intends to proffer at the preliminary hearing touches on almost every count in the pending *Information*, including the sentencing enhancements, and, most importantly, attributes to Mr. Robinson statements which the District Court acknowledges constitute a confession as to the charged homicide and an alleged motive. *See* Add. B-2.

Courts from other jurisdictions have made materiality findings in factually analogous contexts. *See, e.g., State of Florida v. Axelson*, 363 N.Y.S. 2d 200, 202 (N.Y. 1974), *disavowed on other grounds, People v. Wilkins*, 480 N.E.2d 373 (N.Y. Ct. App. 1985) (Florida prosecutor sought testimony of New York psychologist as to mental condition of a former patient who had raised the defense of insanity to a charge of the murder found to be material within the meaning of the *Uniform Act*); *Ex parte Armes*, 582 S.W.2d 434, 439 (Tex. Crim. App. 1979) (based upon a certificate from a California court requesting the attendance of a Texas resident to testify at grand jury investigating a murder and an affidavit from the prosecutor stating that the Texas resident had been hired by a citizens committee to investigate the murder in question and that the Texas resident made representations that he knew who the murderer was, the court held the evidence was sufficient to support that he was a material witness under the *Uniform Act*).

Instead of addressing whether Mr. Twiggs is a material witness within the meaning of the *Uniform Act*, as he clearly is, the District Court engaged in an unprecedented expansion of this Court's discussion in *State v. Lopez* of the "reasonableness" limitation upon the issuance of subpoenas for testimony at a preliminary hearing. The District Court's extension of this Court's *Lopez* decision portends that there would be virtually no situation in which a defendant could subpoena any witness in a preliminary hearing. It matters not whether that witness is in-state or out-of-state, since the reasonableness test the District Court deployed has no connection with where the proposed witness resides. It appears from the District Court's ruling that the only *defense* witness whose testimony would be "reasonable" in a preliminary hearing would be one whose testimony is both

wholly credible and completely exonerates the defendant of all charges. Of course, if there were such a witness whose testimony were viewed that way by the State, the prosecution would not proceed any further because the State would dismiss the case.

In the absence of such a witness, the District Court's extension of the reasonableness test beyond *Lopez* essentially turns the preliminary hearing into a non-adversarial proceeding at which, notwithstanding URCrimP 7B(a),⁴ a defendant may not cross-examine a material witness on their hearsay statements and cannot present testimony through his own witnesses.

B. The District Court's Order "Quashing" a Non-Existent Subpoena Was Also Error Because It Is for the Out-of-State Court to Determine if the Subpoena Will Issue.

The State's motion and the District Court's decision to *quash* a subpoena for an out-of-state witness was also improper because under the *Uniform Act*, it is within the discretion of a court of competent jurisdiction where the proposed witness resides to determine if a subpoena should issue in the first instance, once it has reviewed the certification of the court where the proceeding is pending. Under the *Uniform Act*, the court to which a certification is presented determines if the witness is "necessary" and if the subpoena would cause undue hardship to the witness. Utah Code § 77-21-2.

"Necessity" under the *Uniform Act* and "reasonableness" under Rule 14(a)(2) are not synonymous. "As far as the requirement of necessity is concerned, some courts have ruled that sufficient evidence of necessity was present to support a conclusion that a

⁴ "At the conclusion of the state's case, the defendant may testify under oath, call witnesses, and present evidence. The defendant may also cross-examine adverse witnesses." Utah R. Crim. P. 7B(a).

witness was a necessary witness particularly where the witness was the only individual who was known to have knowledge of the facts sought to be proved, or where he had the best knowledge of the facts.”⁵

In contrast, “reasonableness” within the meaning of Rule 14(a)(2) as explained by this Court in *Lopez*, turns on a juxtaposition of the interests of a defendant and the interests of a victim, a consideration not relevant here. As this Court stated:

The above sequencing of this inquiry will best balance the competing interests and rights of both the defendant *and the alleged victim*. On one hand, it will preserve the defendant’s opportunity to “call witnesses” under criminal rule 7B(a). On the other hand, it will maintain the court’s power to quash a subpoena that would be “unreasonable” *as applied to a given victim* after accounting for the circumscribed function of the preliminary hearing, the low probable-cause standard, *and victims’ rights*.

Lopez, 2020 UT 61, ¶ 55 (emphases added).

C. The District Court’s Ruling Fails to Take Account of Mr. Robinson’s State and Federal Constitutional Rights.

Mr. Robinson has a constitutional right to the effective assistance of counsel at every critical stage. There is no debate that a preliminary hearing in a capital case is, in fact, a critical stage of the larger capital prosecution. As explained in *State v. Montes* and cited above, the “examination and cross-examination of witnesses” “constitutes a critical stage of the criminal process.” 2019 UT App 74, ¶ 38; *see supra*, Part II(C). And further:

The inability of an accused to realize the advantages of effective examination and cross-examination absent a lawyer’s assistance makes a preliminary hearing “a critical stage of the State’s criminal process at which the accused is as much entitled to such aid of counsel as at the trial itself.” *Coleman*, 399 U.S. at 10 (cleaned up). Part of a lawyer’s value is

⁵ *Sufficiency of Evidence to Support or Require Finding That In-State Witness In Criminal Case Is “Material And Necessary” Justifying Issuance of Summons Directing Attendance of Witness Under Uniform Act to Secure the Attendance of Witnesses From Without a State In Criminal Proceedings*, 12 A.L.R.4th 771 (2025) (emphasis added).

assisting the accused by making informed and experienced judgment calls about when and to what extent, if at all, to engage in examination and cross-examination of witnesses.

Id.

While this Court refrained in *Lopez*, from squarely addressing the scope of a defendant's constitutional right to confront and cross-examine witnesses at a preliminary hearing, in a case in which the victim's constitutional rights under Utah law did not require it do so, Mr. Robinson is about to be denied those constitutional rights in a preliminary hearing in which a victim-witness' rights are not implicated.

This Court should squarely resolve whether Article I, Section 12 of the Utah Constitution and, in its view, the Sixth Amendment, sanction the State's plan, endorsed by the District Court, for presenting Mr. Twiggs' testimony pursuant to Rule 1102 without any provision for confrontation and cross-examination.

Such a procedure, in a capital case, implicates significant due process issues and raises the specter of a nominally adversarial hearing that has no indicia of the heightened reliability required by the Eighth Amendment across the entirety of a capital prosecution.

Commenting upon the effect in California of the adoption of Proposition 115 authorizing hearsay testimony under certain circumstances, imposed discovery obligations on defendants, and took steps to protect victim rights, the California Court of Appeal made clear that defendants retain both state and federal constitutional rights at preliminary hearings. It explained:

Although Proposition 115 narrowed the scope of preliminary hearings... a defendant nonetheless retains several substantial rights at the preliminary hearing. These include a right to confront and cross-examine prosecution witnesses; a right to the effective assistance of counsel; a right to present

evidence to “establish an affirmative defense, negate an element of a crime charged, or impeach the testimony of a prosecution witness or the statement of a declarant testified to by a prosecution witness” and a right to due process. Nothing in Proposition 115, including the provisions pertaining to criminal discovery and preliminary hearings, affected a defendant’s right to due process at the preliminary hearing under either or both the state *and federal Constitutions*.

Bridgeforth v. Superior Court, 154 Cal. Rptr. 3d 528, 535-36 (Cal. Ct. App. 2013)

(cleaned up and internal citations omitted) (emphasis added).

The District Court’s ruling declining to certify the out-of-state subpoena should be reversed, and its ruling quashing the out-of-state subpoena that does not yet exist should be vacated. The former ruling was clearly in error as the question of materiality was wrong as a matter of law. The latter was also wrong as a matter of law and infringed upon the jurisdiction of another court in another state.

CONCLUSION

For the reasons set forth above, Mr. Robinson’s petition for permission to pursue this interlocutory appeal should be granted.

RESPECTFULLY SUBMITTED THIS 26th day of June, 2026.

/s/ Kathryn N. Nester

Kathryn N. Nester

/s/Richard G. Novak

Richard G. Novak

/s/ Michael N. Burt

Michael N. Burt

/s/ Staci Visser

Staci Visser

Attorneys for Defendant, Tyler James Robinson

CERTIFICATE OF COMPLIANCE

I hereby certify that the public version of this petition complies with Utah Rule of Appellate Procedure 21(h), having removed or redacted all non-public information.

DATED this 26th day of June, 2026.

/s/ Staci Visser

CERTIFICATE OF SERVICE

I hereby certify that on 26th day of June, 2026, I e-filed and thereafter emailed a courtesy copy of the foregoing to:

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/s/ Staci Visser

Addendum A-1

**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**RULING AND ORDER ON
DEFENDANT’S MOTION IN LIMINE
TO PRECLUDE UTILIZATION OF
ARTICLE I, SECTION 12 OF THE
UTAH CONSTITUTION AND RULE
1102 OF THE UTAH RULES OF
EVIDENCE TO SANCTION THE
ADMISSIBILITY OF HEARSAY
EVIDENCE TO ESTABLISH
PROBABLE CAUSE AT THE
PRELIMINARY HEARING (DOCKET
525)**

Case No. 251403576

Judge Tony F. Graf, Jr.

In his Motion in Limine to Preclude the Utilization of Article I, Section 12 of the Utah Constitution and Rule 1102 of the Utah Rules of Evidence, Defendant Tyler James Robinson seeks an order preventing the State of Utah from relying on hearsay to establish probable cause at his upcoming preliminary hearing. The motion was fully briefed. The court heard oral arguments on June 12, 2026. Now being fully advised of the premises and relevant legal authorities, the court hereby respectfully **DENIES** the Defendant’s motion for the reasons set forth below.

DISCUSSION

In Utah, the primary purpose of the preliminary hearing “is limited to determining whether probable cause exists.” Utah Const. art I, § 12. Although the preliminary hearing is a critical stage of the criminal process, it is not a trial and does not involve a determination of guilt or innocence. *State v. Lopez*, 2020 UT 61, ¶ 44-46, 474 P.3d 949, 963 (distinguishing burden at preliminary hearing versus burden at trial); *see also State v. Virgin*, 2006 UT 29, ¶ 20, 137 P.3d 787, 792 (recognizing

evidence at preliminary hearing need not support finding of guilt beyond reasonable doubt); *compare State v. Timmerman*, 2009 UT 58, ¶ 13, 218 P.3d 590, 594 (identifying single preliminary hearing purpose post constitutional amendment), *with State v. Anderson*, 612 P.2d 778, 783-85 (Utah 1980) (relying on preliminary hearing's multiple purposes pre constitutional amendment) *superseded by* Utah Const. art I, § 12. A defendant's constitutional rights, as a result, may be relaxed during this specific stage of the criminal proceedings. *See Lopez* at ¶ 46. The court does not understand this principle to mean that constitutional protections are categorically inapplicable at a preliminary hearing. Rather, because the preliminary hearing serves the limited purpose of determining whether probable cause exists, the scope and operation of particular constitutional protections must be evaluated in light of that purpose. Accordingly, the court addresses Defendant's constitutional arguments individually while recognizing that the procedural safeguards required at a probable-cause determination need not mirror those required at trial.

Defendant raises several constitutional objections to that conclusion. Defendant argues that permitting the State to establish probable cause through hearsay evidence violates his rights under the Fourth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution, as well as separation of powers principles. Of the constitutional rights Defendant seeks to fully invoke at the preliminary hearing, Utah courts have directly addressed the application of only one, the right to confrontation.

The court recognizes that Defendant's constitutional concerns are substantial and warrant careful consideration. Nevertheless, the court's analysis is guided by the limited function of the preliminary hearing and the governing precedent interpreting article I, section 12. In *State v. Timmerman* the Utah Supreme Court determined that the full application of a defendant's right to confrontation is necessary at trial but not at the preliminary hearing. *See* 2009 UT 58, ¶ 13, 218 P.3d 590, 594 (finding federally afforded right to confrontation is fundamentally a "trial right" not applicable at preliminary hearings). The *Timmerman* court reached this conclusion after comparing

the different purposes of the two proceedings. *Id.* at ¶¶ 9-12. That court recognized that under the amended language of article I, section 12 of Utah's Constitution a defendant at a preliminary hearing faces only a probable cause determination that is subject to a significantly lower burden of proof whereas at trial that same defendant faces a determination of his guilt or innocence that must be established beyond a reasonable doubt. *Id.* at ¶¶ 14-16, 595-96. Considering the distinction between the issues and purposes of these two proceedings, the *Timmerman* court believed a relaxed application of a defendant's constitutional right to confrontation at the preliminary hearing was appropriate. *See id.* at ¶ 13.

Although Utah courts have not addressed what is the appropriate application of other constitutional rights at a preliminary hearing, this court follows the *Timmerman* court's reasoning in concluding that a relaxed application of Defendant's constitutional rights at the upcoming preliminary hearing is likewise appropriate because of the limited purpose of the proceeding.

For example, Defendant argues that permitting the State to rely on reliable hearsay evidence deprives him of his Sixth Amendment right to effective counsel because it prevents his counsel from using all the necessary tools of effective advocacy, namely the right to cross examine any hearsay declarants. Defendant's argument rests on the premise that effective assistance of counsel requires access to the full range of adversarial tools, including cross-examination, at every stage of a criminal proceeding. The court is not persuaded by Defendant's argument. *See Strickland v. Washington*, 466 U.S. 688, 689 (1984) (explaining effectiveness of representation depends on circumstances). The full application of a defendant's right to counsel at the preliminary hearing, which is limited to a probable cause determination, need not be as exhaustive as it must be at trial. *See id.*; *see also State v. O'Brien*, 850 N.W.2d 8, 19-21 (Wis. 2014) (noting procedural rights available at trial are not necessarily available at preliminary examination). The right to counsel may be tailored to the proceeding at hand.

The same can be said for the protections under the Fourteenth Amendment's Due Process Clause. *See In re Baby Girl T.*, 2012 UT 78, ¶ 16, 298 P.3d 1251, 1255 (describing due process as flexible requiring procedural protections based on demands of the situation). At a minimum, due process requires notice and an opportunity to be heard in a meaningful manner. *See id.* at ¶¶ 16-17. The specific procedures required, however, depend upon the nature and purpose of the particular proceeding. Because a preliminary hearing is limited to determining probable cause rather than guilt or innocence, due process does not necessarily require all of the evidentiary safeguards applicable at trial. *See Gerstein v. Pugh*, 420 U.S. 103, 120-22 (1975) ("The use of an informal procedure is justified not only by the lesser consequences of a probable cause determination but also by the nature of the determination itself.").

The court is likewise unpersuaded that the Eighth Amendment is implicated by the use of reliable hearsay evidence during the preliminary hearing. The Eighth Amendment authorities cited by Defendant concern the reliability required in proceedings that determine guilt or authorize punishment, particularly capital punishment. A preliminary hearing performs neither function. *Compare Virgin* at ¶ 20, 792 (noting lower preliminary hearing standard compared to trial standard), *with Sumner v. Shuman*, 483 U.S. 66, 72 (1987) (recognizing Eighth Amendment "heightened reliability" standard). It serves only to determine whether probable cause exists to believe the charged offenses were committed by the individual charged. *See Utah Const. art. I, § 12.* Because Defendant's guilt, innocence, and punishment are not at issue during the preliminary hearing, the court concludes that the Eighth Amendment concerns identified by Defendant are not implicated at this stage of the proceedings.

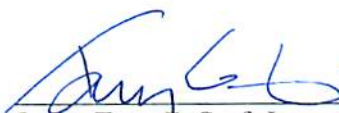
As for Defendant's argument that article I, section 12 of the Utah Constitution and rule 1102 of Utah's Rules of Evidence create an unconstitutional mandatory presumption of reliability and results in inappropriate burden shifting, the court does not find this argument persuasive. The

presumption of reliability is confined to the presumption that the hearsay evidence is admissible. *See Roosevelt City v. Nebeker*, 815 P.2d 738, 739-40 (Utah App. 1991) (declining to find statutorily imposed presumption unconstitutional when limited to admissibility of evidence). The presumption does not require the magistrate to find the evidence credible or that it supports a finding of probable cause. *Virgin* at ¶¶ 20-25, 792 (detailing the magistrate's role for purposes of bindover). The magistrate still retains the ultimate decision-making authority on whether probable cause has been established. *Id.* Admissibility and evidentiary weight remain distinct concepts. Although article I, section 12 and rule 1102 permit the admission of reliable hearsay, they do not require the magistrate to accept that evidence as credible or sufficient to establish probable cause. *Id.* And as the probable cause determination remains in the hands of the magistrate, a judicial officer, article I, section 12 and rule 1102 do not violate separation of powers principles.

Based on the foregoing analysis and findings, and after carefully considering Defendant's constitutional objections, the governing provisions of article I, section 12, rule 1102, and the applicable authorities, the court concludes that the State may utilize reliable hearsay evidence at Defendant's preliminary hearing. Accordingly, Defendant's motion is respectfully **DENIED**.

Dated this 22nd day of June, 2026.

BY THE COURT:


Judge Tony R. Graf, Jr.
District Court Judge



CERTIFICATE OF NOTIFICATION

I certify that a copy of the attached document was sent to the following people for case 251403576 by the method and on the date specified.

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Addendum A-2

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IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT
IN AND FOR THE COUNTY OF UTAH, STATE OF UTAH

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**DEFENDANT TYLER JAMES
ROBINSON'S MOTION *IN LIMINE* TO
PRECLUDE THE UTILIZATION OF
ARTICLE I, SECTION 12 OF THE
UTAH CONSTITUTION AND RULE
1102 OF THE UTAH RULES OF
EVIDENCE TO SANCTION THE
ADMISSIBILITY OF HEARSAY
EVIDENCE TO ESTABLISH
PROBABLE CAUSE AT THE
PRELIMINARY HEARING;
MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT THEREOF**

Case No. 251403576

Honorable Tony F. Graf, Jr.

MOTION

Defendant, Tyler James Robinson, by and through his counsel of record, hereby moves this Honorable Court for an Order precluding the State from utilizing article I, section 12 of the Utah Constitution, and Rule 1102 of the Utah Rules of Evidence to sanction the admissibility of

hearsay evidence to establish probable cause at the preliminary hearing. This motion is made on the ground that the use of hearsay evidence to establish probable cause at a preliminary hearing in a capital case violates the Fourth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution, and separation of powers principles.

INTRODUCTION

With respect to confrontation and cross-examination of witnesses, the Supreme Court has held that “[i]n almost every setting where important decisions turn on questions of fact, due process requires an opportunity to confront and cross-examine adverse witnesses.” *Goldberg v. Kelly*, 397 U.S. 254, 269 (1970); *see also ICC v. Louisville & Nashville R.R.*, 227 U.S. 88, 93–94 (1913). Where “the evidence consists of the testimony of individuals whose memory might be faulty or who, in fact, might be perjurers or persons motivated by malice, vindictiveness, intolerance, prejudice, or jealousy,” a party’s right to show that it is untrue depends on the rights of confrontation and cross-examination. The Court has thus “been zealous to protect these rights from erosion. It has spoken out not only in criminal cases, . . . but also in all types of cases where administrative . . . actions were under scrutiny.” *Greene v. McElroy*, 360 U.S. 474, 496–97 (1959).

In apparent conflict with these cases, since 1995, Utah’s Constitution has decreed in article 1, section 12 that:

Where the defendant is otherwise entitled to a preliminary examination, the function of that examination is limited to determining whether probable cause exists unless otherwise provided by statute. *Nothing in this constitution* shall preclude the use of reliable hearsay evidence as defined by statute or rule in whole or in part at any preliminary examination to determine probable cause or at any pretrial proceeding with respect to release of the defendant if appropriate discovery is allowed as defined by statute or rule.

(emphasis added).

Going even further, Rule 1102(a) of the Utah Rules of Evidence, which in its current form was enacted by the Legislature as 2024 UT H.J.R. 13, declares that certain types of hearsay reports must be considered “reliable hearsay” as a matter of law, including but not limited to “scientific, laboratory, or forensic reports and records”, “medical and autopsy reports and records”, “a statement of a non-testifying peace officer to a testifying peace officer”, and “a statement of a declarant that is written, recorded, or transcribed verbatim which is... under oath or affirmation... or ...pursuant to a notification to the declarant that a false statement made therein is punishable[.]”

The Utah Supreme Court has had two occasions to address this scheme. First, in *State v. Timmerman*, the Court held that “the plain language of the 1995 amendment to article I, section 12 of the Utah Constitution removed the constraints of Utah’s Confrontation Clause from preliminary hearings. Admission of evidence at preliminary hearings is exclusively governed by the reliable hearsay language in the Utah Constitution and Rule 1102 of the Utah Rules of Evidence.” 2009 UT 58, ¶ 16, 218 P.3d 590. This holding relied upon Utah’s Confrontation Clause and not any other state or federal constitutional provision.

In the same case, the Court considered and rejected a claim that the Sixth Amendment’s Confrontation Clause prohibited the use of hearsay at a preliminary hearing, holding that “the federal Confrontation Clause does not apply to preliminary hearings.” *Id.* ¶ 13. Although the Court rejected this claim, the fact that the Court even considered it suggests that the Court was aware of the obvious fact that the federal constitution could impose limitations on Utah preliminary hearings that go beyond the reliable hearsay language in the Utah Constitution and Rule 1102.

Second, in *State v. Lopez*, where the court considered and upheld the right of the defendant to subpoena a victim witness under certain circumstances, the court indicated:

The cited provision of the Victims' Rights Amendment, for one thing, is not dispositive. It says only that "[n]othing *in this constitution* shall preclude the use of reliable hearsay" in the determination of "probable cause." ... That leaves room for the revival of a right to compel and confront witnesses as a matter of legislative or judicial policy. ... allowing the "use of reliable hearsay evidence as *defined by statute or rule*" . . . And that leaves open the questions whether and to what extent the terms of the code or our rules preserve a defendant's right to subpoena witnesses.

2020 UT 61, ¶ 39, 474 P.3d 949 (quoting Utah Const. art. I § 12) (emphases in original).

As will be demonstrated in this motion, article 1, section 12 and Rule 1102 violate several of Mr. Robinson's federal constitutional rights, including the : (1) Sixth Amendment right to the effective assistance of counsel; (2) Fourteenth Amendment rights to procedural due process and equal protection; (3) Due Process Clause of the Fourteenth Amendment because it establishes an unconstitutional mandatory presumption of reliability of an overbroad range of hearsay evidence; (4) Eighth Amendment right to be free from cruel and unusual punishment; (5) Fourth Amendment and separation of powers principles; and (6) Confrontation Clause of the Sixth Amendment.

ARGUMENT

I. Article 1, section 12 and Rule 1102 violate Mr. Robinson's Sixth Amendment right to the effective assistance of counsel.

In *Coleman v. Alabama*, 399 U.S. 1 (1970), the issue before the Court was whether Alabama's preliminary hearing was a critical stage in the prosecution, requiring the Sixth Amendment appointment and effective assistance of counsel. The Court held Alabama's preliminary hearing was a critical stage because "under Alabama law the sole purposes of a

preliminary hearing are to determine whether there is sufficient evidence against the accused to warrant presenting his case to the grand jury” and:

Plainly the guiding hand of counsel at the preliminary hearing is essential to protect the indigent accused against an erroneous or improper prosecution. First, the lawyer’s skilled examination and cross-examination of witnesses may expose fatal weaknesses in the State’s case that may lead the magistrate to refuse to bind the accused over. Second, in any event, the skilled interrogation of witnesses by an experienced lawyer can fashion a vital impeachment tool for use in cross-examination of the State’s witnesses at the trial, or preserve testimony favorable to the accused of a witness who does not appear at the trial. Third, trained counsel can more effectively discover the case the State has against his client and make possible the preparation of a proper defense to meet that case at the trial. Fourth, counsel can also be influential at the preliminary hearing in making effective arguments for the accused on such matters as the necessity for an early psychiatric examination or bail.

The inability of the indigent accused on his own to realize these advantages of a lawyer’s assistance compels the conclusion that the Alabama preliminary hearing is a ‘critical stage’ of the State’s criminal process at which the accused is ‘as much entitled to such aid (of counsel) * * * as at the trial itself.’ [*Powell v. Alabama*, 287 U.S. 45, 57 (1932)].

Id. at 8-10.

In *Gerstein v. Pugh*, the Court decided that the Fourth Amendment requires a judicial determination of probable cause for arrest when a person is detained under a prosecutor’s information. 420 U.S. 103, 105 (1975). However, the defendant is not entitled to “the full panoply of adversary safeguards—counsel, confrontation, cross-examination, and compulsory process for witnesses,” at this hearing. *Id.* at 119. The Court based this decision on an important distinction: the hearing’s “limited function and nonadversary character.” *Id.* at 121. The specific and exclusive purpose of the *Gerstein* hearing is to determine whether probable cause exists to detain the individual, not to provide judicial review of the decision to prosecute. *Id.* at 119-20. The defendant’s release following the federal *Gerstein* hearing does not mean he will not be prosecuted. *Id.* at 123.

By contrast, in Utah, the purpose of the preliminary examination *is* to determine whether probable cause exists to prosecute the individual. This distinction is important because a *Gerstein* hearing is not a critical stage. *Id.* at 122. In *Gerstein*, the Court specifically referenced Alabama’s preliminary hearing as distinct from a hearing determining probable cause for arrest, listing “two critical factors.” First, the function of Alabama’s preliminary hearing was to determine whether sufficient evidence existed to charge the defendant with an offense. *Id.* at 122-23. Second, the Court gave particular attention to the fact that at a preliminary hearing, the defendant was allowed to confront and cross examine witnesses. *Id.* at 149. As the Supreme Court clearly explained:

Both the District Court and the Court of Appeals held that the determination of probable cause must be accompanied by the full panoply of adversary safeguards—counsel, confrontation, cross-examination, and compulsory process for witnesses. A full preliminary hearing of this sort is modeled after the procedure used in many States to determine whether the evidence justifies going to trial under an information or presenting the case to a grand jury. *See Coleman v. Alabama*, 399 U.S. 1, 90 S.Ct. 1999, 26 L.Ed.2d 387 (1970); Y. Kamisar, W. LaFare & J. Israel, *Modern Criminal Procedure* 957—967, 996—1000 (4th ed. 1974). The standard of proof required of the prosecution is usually referred to as ‘probable cause,’ but in some jurisdictions it may approach a *prima facie* case of guilt. ALI, *Model Code of Pre-arraignment Procedure*, Commentary on Art. 330, pp. 90—91 (Tent. Draft No. 5, 1972). *When the hearing takes this form, adversary procedures are customarily employed. The importance of the issue to both the State and the accused justifies the presentation of witnesses and full exploration of their testimony on cross-examination.* This kind of hearing also requires appointment of counsel for indigent defendants.

Id. at 119-20 (emphasis added).

Although, as pointed out in *Lopez*, the discovery function of a Utah preliminary hearing “was eliminated by the constitutional amendment ratified in 1995”, like the preliminary hearing at issue in *Coleman*, the central purpose of a Utah preliminary hearing was and remains to determine whether sufficient evidence exists to charge the defendant with an offense. *See Lopez*, 2020 UT 61, ¶ 44.

For this reason, the Utah courts have continued to hold, both before and after the 1995 amendment, that a Utah preliminary hearing is a critical stage of the criminal proceeding within the meaning of *Coleman*. See *State v. Montes*, 2019 UT App 74, ¶ 38, 442 P.3d 1247 (“The inability of an accused to realize the advantages of effective examination and cross-examination absent a lawyer’s assistance makes a preliminary hearing ‘a critical stage of the State’s criminal process at which the accused is as much entitled to such aid of counsel as at the trial itself.’”) (quoting *Coleman*); *State v. Christiansen*, 2015 UT 74, ¶ 25, 365 P.3d 1189 (“A prosecutor who files a criminal information commences adversary litigation. The defendant then has a right to be informed of the charges and to be represented by counsel.”) (citing *Coleman*); *State v. Brickey*, 714 P.2d 644, 646 (Utah 1986) (“While the preliminary hearing is not a full-blown determination of an accused’s guilt or innocence, it is nonetheless a ‘critical stage’ in the criminal process, and proper consideration for a defendant’s constitutional rights must be observed.”) (citing *Coleman*); *State v. Anderson*, 612 P.2d 778, 783–84 (Utah 1980) (“The fundamental purpose served by the preliminary examination is the ferreting out of groundless and improvident prosecutions.... This, also, demands the application of certain basic procedural safeguards to that proceeding.”) (citing *Coleman*), *overruled on other grounds in Timmerman*, 2009 UT 58.

Thus, unlike the Sixth Amendment right to confrontation at issue in *Timmerman*, where the Utah Supreme Court held that “Sixth Amendment confrontation rights apply only to trials and not to Utah’s preliminary hearings”, *Timmerman*, 2009 UT 58, ¶ 10, the Sixth Amendment right to counsel is not limited to the trial, and specifically extends to a Utah preliminary hearing. This means that if defense counsel at a Utah preliminary hearing is to be something more than merely a potted plant, he or she must have available and utilize all the necessary tools of effective advocacy, including the right to cross examine any hearsay declarants.

As was held in *United States v. Cronin*, “of all the rights that an accused person has, the right to be represented by counsel is by far the most pervasive for it affects his ability to assert any other rights he may have.... The special value of the right to the assistance of counsel explains why [i]t has long been recognized that the right to counsel is the right to the effective assistance of counsel.” 466 U.S. 648, 654 (1984) (internal citation omitted). The fundamental right to counsel necessarily includes effective confrontation and cross-examination. *Id.* at 659 (“The presumption that counsel’s assistance is essential requires us to conclude that a trial is unfair if the accused is denied counsel at a critical stage of his trial. Similarly, if counsel entirely fails to subject the prosecution’s case to meaningful adversarial testing, then there has been a denial of Sixth Amendment rights that makes the adversary process itself presumptively unreliable.”)

Defense counsel have repeatedly been found ineffective by both state and federal courts for failing to effectively utilize the essential tool of cross examination. *See e.g., State v. Eddington*, 2023 UT App 19, ¶¶ 43-48, 525 P.3d 920 (defendant, in prosecution for object rape and sexual battery, received ineffective assistance of counsel, when counsel did not seek to cross-examine victim about some details of her sexual encounter with defendant); *State v. Salazar*, 2022 UT App 38, ¶ 50, 509 P.3d 198 (“A decision by Trial Counsel not to use [text] messages as impeachment evidence because he feared that the jury might nonetheless find [the victim] credible and still believe her account of the assault would not be reasonable and would be an abdication of counsel’s ‘duty’ to make ‘the trial a reliable adversarial testing process.’” (quoting *Strickland v. Washington*, 466 U.S. 668, 688 (1984))).¹

¹ *See also Floyd v. Filson*, 949 F.3d 1128, 1143–44 (9th Cir. 2020) (recognizing that constitutionally deficient cross-examinations occur when “there were glaring failures to ask even basic questions”); *Skaggs v. Baker*, 774 F. App’x 421, 427 (10th Cir. 2019) (“We see neither a

While these cases found a Sixth Amendment violation grounded in defense counsel's own ineptitude, the result must be the same where, as here, the infringement of counsel's duty to utilize cross examination stems not from counsel's ineffectiveness but from an impediment imposed by a state constitutional provision and a rule. *Cf. Kentucky v. Stincer*, 482 U.S. 730, 737 (1987) (pointing out that cases finding a violation of the Sixth Amendment right to cross examine include those where "the opportunity for cross-examination has been restricted by law or by a trial court ruling."); *Davis v. Alaska*, 415 U.S. 308 (1974) (defense counsel was unconstitutionally restricted by state confidentiality provisions from questioning a witness about his juvenile criminal record, although such evidence might have affected the witness' credibility); *Delaware v. Van Arsdall*, 475 U.S. 673 (1986) (defense counsel was precluded by

strategic advantage nor an objectively reasonable rationale for failing to challenge Dr. Swanson on cross-examination with her report excluding Mr. Skaggs 'as a possible contributor of the [amylase]."); *Rhodes v. Vannoy*, 751 F. App'x 524, 530 (5th Cir. 2018) (counsel was prejudicially ineffective when she asked the victim about his use of pain medications at the time of the identification, but then did not impeach him with available medical records after the victim denied being on any medication.); *Moore v. Sec'y Pennsylvania Dep't of Corr.*, 640 F. App'x 159 (3d Cir. 2016) (Murder defendant's counsel was ineffective for failing to cross examine codefendant, who testified for state, about benefits he received in exchange for his testimony; there was no strategic reason not to impeach codefendant, codefendant was critical witness for prosecution and, by cross-examining him, counsel would have largely neutralized his testimony and prevented it from bolstering prosecution's other evidence.); *Raether v. Meisner*, 608 F. App'x 409, 414 (7th Cir. 2015) ("We can see no reasonable justification for failing to make use of the crucial witnesses' prior inconsistent statements."); *Peoples v. Lafler*, 734 F.3d 503, 513 (6th Cir. 2013) ("Failure to impeach the credibility of key witnesses with known false testimony is an egregious error in a criminal case."); *Higgins v. Renico*, 470 F.3d 624, 633, 634 (6th Cir. 2006) ("Young was the key to the State's case; yet [trial counsel], who had the weapons to discredit [the witness], allowed [the witness's] testimony to go unchallenged."); *Reynoso v. Giurbino*, 462 F.3d 1099, 1112–13 (9th Cir. 2006); *Cargle v. Mullin*, 317 F.3d 1196 (10th Cir. 2003) (Defense counsel's performance at guilt phase of defendant's murder trial was constitutionally ineffective, in part because counsel failed to impeach key state witness based upon undisclosed bias and state inducement for his testimony.); *United States v. Tucker*, 716 F.2d 576, 585 (9th Cir. 1983) ("[Trial counsel's] most serious dereliction of duty during trial, however, was the failure to utilize any of the prior statements given by government witnesses.").

the trial court from questioning a witness about the State's dismissal of a pending public drunkenness charge against him).

Like the statute at issue in *Davis*, article I, section 12 and Rule 1102 prohibit defense counsel from discharging their Sixth Amendment duty to make the preliminary hearing a reliable adversarial testing process. As was concluded in *Gerstein*, “[t]he importance of the issue to both the State and the accused justifies the presentation of witnesses and full exploration of their testimony on cross-examination.” 420 U.S. at 119–20. Because article I, section 12 and Rule 1102 prohibit this full exploration, these provisions are unenforceable in this case and Mr. Robinson must be allowed to cross examine any hearsay declarant offered by the State.

II. Article 1, section 12 and Rule 1102 violate Mr. Robinson's Fourteenth Amendment rights to procedural due process and equal protection.

In Utah, as elsewhere, the preliminary hearing process is subject to the requirements of procedural due process. *See, e.g., State v. Labrum*, 2025 UT 12, 568 P.3d 1075.

The United States Supreme Court held long ago in *Hurtado v. California*, 110 U.S. 516 (1884), that due process does not require the states to institute Fifth Amendment grand jury procedures. According to *Hurtado*, the states are free to do away with the grand jury system and develop their own judicial proceedings, as long as the alternate proceedings provide due process. *Id.* at 535. In fact, the United States Supreme Court based this decision on California's preferred alternate proceeding—the preliminary examination. *Id.* at 538. The Court found California's preliminary examination satisfied due process requirements as an acceptable substitute for the indictment process because the criminal defendant had the right to counsel and cross-examination. *Id.* While the states are not required to provide any specific process, where they do, the process must adhere to federal due process standards. *Id.* at 516, 535. As a due process alternative to indictment by grand jury, the preliminary examination comes with constitutional

rights, including the fundamental rights to counsel and confrontation. *See Coleman*, 399 U.S. at 3-9.

“[T]he Due Process Clause provides that certain substantive rights—life, liberty, and property—cannot be deprived except pursuant to constitutionally adequate procedures.” *Cleveland Bd. of Educ. v. Loudermill*, 470 U.S. 532, 541 (1985). Importantly, “‘minimum procedural requirements are a matter of federal law, they are not diminished by the fact that the State may have specified its own procedures that it may deem adequate for determining the preconditions to adverse official action.’” *Id.* at 541 (cleaned up) (quoting *Vitek v. Jones*, 445 U.S. 480, 491 (1980)). “In short, once it is determined that the Due Process Clause applies, ‘the question remains what process is due.’” *Id.* (quoting *Morrissey v. Brewer*, 408 U.S. 471, 481 (1972)). “The answer to that question is not to be found in [a state] statute.” *Id.*

The Court addressed this question in the context of parole revocation hearings in *Morrissey v. Brewer*, holding that during parole revocation hearings, due process requires confrontation and cross-examination as a minimum protection. 408 U.S. at 489. *In Morrissey v. Brewer*, defendant Morrissey was arrested on a parole violation, resulting in subsequent revocation of parole and incarceration. *Id.* at 472-73. Morrissey filed a habeas petition, alleging he was deprived due process because his parole was revoked without a hearing. *Id.* at 474.

The Court held that the parole revocation decision is subject to the Fourteenth Amendment, even though parole revocation is not part of the criminal prosecution, because the parolee has a great interest in retaining his liberty. *Id.* at 480-82. The Court noted that in addition to the parolee’s interest in his own liberty, society also has an interest—“the chance of restoring him to normal and useful life.” *Id.* at 484. Terminating the parolee’s liberty is a “grievous loss” and requires some process. *Id.* at 482. In determining what process is due, the Court considered

the State's interest in revoking parole, acknowledging that the State has an interest in returning a parolee to prison when it finds he has failed to follow his parole conditions. *Id.* at 483. Despite this, the Court held that the State has no interest in revoking parole without procedural guarantees, to ensure parole revocation is not based on erroneous information. *Id.* at 483–84.

The Court then examined the two stages of parole revocation: the preliminary hearing following arrest, which the Court likened to a probable cause for arrest determination, and the formal revocation hearing. *Id.* at 485, 488. The purpose of the preliminary hearing is to determine whether reasonable grounds exist to believe the individual has violated parole conditions. *Id.* at 485. At this hearing, an independent officer makes a preliminary decision of whether there is probable cause to hold the parolee to answer to the parole board, who makes the final revocation decision. *Id.* at 487. To promote fairness, a neutral officer other than the parole officer reporting the violations makes this decision. *Id.* at 485–86. Due process requires the parolee have notice of this hearing and be free to testify and present evidence on his own behalf. *Id.* at 486–487. Lastly, the parolee may request the witnesses against him be made available for questioning in his presence. *Id.* at 487. Thus, even at this informal preliminary hearing, parolees are afforded confrontation and cross-examination rights.

At the formal revocation hearing, the parolee has the opportunity to show he did not violate the conditions of his parole, or that the violation does not warrant revocation. *Id.* at 488. The “minimum requirements of due process” at this stage include notice of the violations, disclosure of the evidence against the parolee, the opportunity to be heard and present evidence, the right to confrontation and cross-examination, a neutral hearing body, and a written statement describing the reasons for parole revocation. *Id.* at 207. The right to confrontation and cross-examination exists “unless the hearing officer specifically finds good cause for not allowing

confrontation.” *Id.* at 208. The Court gives an example of good cause to restrain confrontation rights: an informant who would be at a risk of harm if his identity were revealed. *Id.* at 487. The good cause requirement is rooted in the parolee’s interest in maintaining his liberty. *Id.* at 482.

Though some differences exist between probation and parole, the United States Supreme Court has held that the due process rights articulated in *Morrissey* apply equally at the requisite probation revocation hearings. *See Gagnon v. Scarpelli*, 411 U.S. 778, 781 (1973) (holding, “a probationer, like a parolee is entitled to a preliminary and final revocation hearing under the conditions specified in *Morrissey v. Brewer*”). *See also Brimhall v. Turner*, 502 P.2d 116, 117 (1972) (alleged parole violator “is entitled to certain minimal procedural protections to have the issues determined. These include that he should have a written notice wherein he was charged with failure, be given an opportunity to answer, be apprised of the evidence against him, have the privilege of cross-examining witnesses, and of being heard, if he so desires, and be entitled to a fair and reasonable consideration and adjudication thereon by proper authority, as opposed to one which is demonstrably capricious or arbitrary.”); *State v. Tate*, 1999 UT App 302, 989 P.2d 73 (trial court’s error in admitting hearsay statements that probationer was allegedly involved in passing stolen checks and aggravated assault constituted reversible error, where probationer was denied opportunity to confront adverse witnesses and his due process rights were violated.); *Layton City v. Peronek*, 803 P.2d 1294 (Utah Ct. App. 1990) (same).

The criminally accused share many of the same liberty interests as the criminally convicted. Clearly, the criminally accused retain an interest in freedom from prosecution based on erroneous information. *See State v. Virgin*, 2006 UT 29, ¶ 20, 137 P.3d 787 (“The fundamental purpose served by the preliminary examination is the ferreting out of groundless and improvident prosecutions. This relieves the accused from the substantial degradation and

expense incident to a modern criminal trial when the charges against him are unwarranted or the evidence insufficient.” (cleaned up)).

Similarly, the State should have no interest in prosecuting individuals without an initial probable cause determination, including testing the reliability and veracity of witness testimony. *See Morrissey*, 408 U.S. at 484 (“there is no interest on the part of the State in revoking parole without any procedural guarantees at all.”).

Thus, as in *Morrissey*, *Gagnon*, and the other cases cited in this section, the criminally accused cannot be deprived of their liberty without due process, and inherent in due process protection is the right to confront witnesses and hearsay declarants.

A Utah preliminary hearing is analogous to the formal parole revocation hearing considered in *Morrissey*. At both, the defendant is entitled to present evidence, confront and cross-examine witnesses, and to be heard by a neutral individual. The Court in *Morrissey* determined that due process mandates these rights at the formal parole revocation hearing, and even at the informal preliminary hearing where no final decision is made. Under *Morrissey*, courts have prohibited the government from offering, or have allowed parolees to confront, the accusatory statements of accomplices, *United States v. Huckins*, 53 F.3d 276, 279 (9th Cir. 1995); experts, *United States v. Pierre*, 47 F.3d 241, 242 (7th Cir. 1995), *United States v. Martin*, 984 F.2d 308, 309–10 (9th Cir. 1993),;and crime victims, *United States v. Comito*, 177 F.3d 1166 (9th Cir. 1999), because the statements lack reliability. However, article 1, section 12 and Rule 1102 purport to make this type of unreliable hearsay admissible at preliminary hearings and prevent both the Court and the defense from questioning its reliability.

Unlike parole and probation revocation hearings, a Utah preliminary examination is a critical stage in the criminal prosecution. Thus, criminal defendants like Mr. Robinson should

receive at least as much due process protection as the Supreme Court has afforded parolees and probationers, if not more. *See Morrissey*, 408 U.S. at 480 (stating that “the revocation of parole is not part of a criminal prosecution and thus the full panoply of rights due a defendant in such a proceeding does not apply”); *Brimhall*, 502 P.2d at 117 (emphasizing that “[w]hen on[e] has been convicted, he is no longer entitled to the presumption of innocence nor to other protections which the law affords one who has only been accused of crime.”)

In sum, because a criminal defendant has an even greater liberty interest than a parolee or probationer, there is no rational basis, much less a compelling one, for denying confrontation and cross examination rights to a defendant facing a preliminary hearing, while granting those rights to parolees and probationers. Article 1, section 12 and Rule 1102 thus violate both the due process and equal protection clauses of the federal constitution.

III. Article 1, section 12 and Rule 1102 violate the Due Process Clause of the Fourteenth Amendment because it establishes an unconstitutional mandatory presumption of reliability of an overbroad range of hearsay evidence.

The United States Supreme Court has ruled that mandatory presumptions are unconstitutional because they shift the burden of persuasion to the accused. *Sandstrom v. Montana*, 442 U.S. 510 (1979). The presumption in *Sandstrom* concerned an essential element of the crime: intent to kill. *Sandstrom* asserted at trial that although he killed the victim, he did not do so “purposefully or knowingly,” and therefore was not guilty of deliberate homicide. The trial court issued the following jury instruction: “The law presumes that a person intends the ordinary consequences of his voluntary acts.” The Supreme Court reasoned that the jury instruction created a mandatory irrebuttable presumption that relieved the state of its burden of proving Sandstrom’s intent because if the jury found that Sandstrom’s actions were voluntary, the jury was required by the instruction to find that Sandstrom, as a matter of law, had the requisite

intent. Inasmuch as the burden of persuasion must always remain on the state in a criminal proceeding, the shifting of the burden of persuasion to Sandstrom to prove his innocence was unconstitutional. *Id.* at 523–24. *See also Francis v. Franklin*, 471 U.S. 307, 317 (1985) (prohibiting mandatory rebuttable presumptions).

The Supreme Court has also held in *County Court of Ulster County v. Allen*, that “in criminal cases, the ultimate test of any [evidentiary] device’s constitutional validity in a given case remains constant: the device must not undermine the factfinder’s responsibility at trial, based on evidence adduced by the State, to find the ultimate facts beyond a reasonable doubt.” 442 U.S. 140, 156 (1979); *see also State v. Chambers*, 709 P.2d 321, 325 (Utah 1985) (finding a rebuttable presumption unconstitutional).

In a case decided before *Franklin* held that mandatory rebuttable presumptions were violative of due process, the Utah Supreme Court in *Murray City v. Hall*, 663 P.2d 1314, 1320 (Utah 1983), assessed the constitutional validity of the rebuttable presumption set forth in § 41-6a-515. ² The *Hall* Court held that section 41–6–44.3(3) is a statutory exception to the hearsay

² Utah Code § 41-6a-515 provides in relevant part:

(2) In any action or proceeding in which it is material to prove that a person was operating or in actual physical control of a vehicle while under the influence of alcohol or any drug or operating with a blood or breath alcohol content statutorily prohibited, documents offered as memoranda or records of acts, conditions, or events to prove that the analysis was made and the instrument used was accurate, according to standards established in Subsection (1), are admissible if:

(a) the judge finds that they were made in the regular course of the investigation at or about the time of the act, condition, or event; and

(b) the source of information from which made and the method and circumstances of their preparation indicate their trustworthiness.

(3) If the judge finds that the standards established under Subsection (1) and the conditions of Subsection (2) have been met, there is a presumption that the test

rule and is “merely a codification of the findings necessary to establish a proper foundation for the introduction of breathalyzer evidence. It is a legislative recognition of the universal acceptance of the reliability of such evidence.” 663 P.2d at 1320. The Court upheld section 41–6–44.3(3) because of “(1) the legitimate governmental interest in not having to produce in every DUI case the public officer responsible for testing the accuracy of the breathalyzer and the ampoules, and (2) the alternative means available to an accused to cross-examine and confront such a witness.” *Id.* at 1322. In so holding, the Court stressed that

[That] constitutes a very limited intrusion upon an accused’s right of confrontation. The statute does not make the documents conclusive evidence that the breathalyzer was functioning properly..... In fact, if an accused feels that the machine was not functioning properly or wants to prove noncompliance with the standards established by the Commissioner of Public Safety, he/she can subpoena the public officer responsible for testing the accuracy of the breathalyzer and the ampoules.

Id.

In a subsequent case which reassessed the constitutional validity of Utah Code § 41-6a-515 in light of *Sandstrom*, *Franklin*, and *Allen*, the Utah Court of Appeals held that the statute was constitutional because “[t]he statute, by creating a statutory exception to the hearsay rule, compels the trial judge to admit the evidence for consideration by the trier-of-fact, but it does not mandate any conclusive presumption on the ultimate issue of guilt or innocence.” *Roosevelt City v. Nebeker*, 815 P.2d 738, 740 (Utah Ct. App. 1991).

In this case, as at a trial, the State at a preliminary hearing has the burden of proof. *See Virgin*, 2006 UT 29, ¶ 20 (“Under the probable cause standard, the prosecution has the burden of producing believable evidence of all the elements of the crime charged, but this evidence does

results are valid and further foundation for introduction of the evidence is unnecessary.

not need to be “capable of supporting a finding of guilt beyond a reasonable doubt.”) (internal quotation omitted). “Thus, the quantum of evidence required to clear this standard is ‘relatively low,’ ... —but it is still greater than zero. It is fully possible for the prosecution to put on some evidence and still fail to meet its burden of establishing probable cause.” *Labrum*, 2025 UT 12, ¶ 52.

The way in which a magistrate is supposed to determine whether the state has satisfied its burden of producing “believable evidence” is set forth in *Virgin*, as follows:

The bindover standard is intended to leave the principal fact finding to the jury. *See State v. Talbot*, 972 P.2d 435, 438 (Utah 1998) (explaining that a preliminary hearing “is not a trial on the merits, only a gateway to the finder of fact”). But the standard nevertheless gives magistrates discretion to discontinue groundless prosecutions. Under current law, magistrates may decline bindover if the prosecution fails to present sufficiently *credible* evidence on at least one element of the crime. *Clark*, 2001 UT 9, ¶ 15, 20 P.3d 300. Moreover, magistrates are free to decline bindover where the facts presented by the prosecution provide no more than a basis for speculation—as opposed to providing a basis for a reasonable belief. *See State v. Hester*, 2000 UT App 159, ¶¶ 14–17, 3 P.3d 725.

The key word that elevates magistrates’ role beyond that of a mere rubber stamp for the prosecution is “reasonable.” Indeed, the prosecution has not carried its burden if it merely shows belief rather than reasonable belief. Inclusion of the word “reasonable” in this standard suggests that, at some level of inconsistency or incredibility, evidence becomes incapable of satisfying the probable cause standard. When that is the case, magistrates are empowered to deny bindover.

Second, in their efforts to ferret out groundless prosecutions, magistrates may also make some limited credibility determinations at the preliminary hearing.

...

Magistrates may make credibility determinations in preliminary hearings, but the extent of those determinations is limited. In *Talbot*, we recognized that assessing “ ‘the credibility of the witnesses [in a preliminary hearing] is an important element in the determination of probable cause’ “ and that preventing magistrates from making credibility determinations “would undermine the ‘fundamental purpose served by the preliminary examination.’ “ 972 P.2d at 438. Indeed, that the probable cause standard demands “reasonable belief” rather than merely “belief” strongly suggests that magistrates must, to a certain extent, assess the credibility of the evidence presented.

2006 UT 29, ¶¶ 21-24.

The fundamental constitutional flaw in Rule 1102 is that it seeks to replace the magistrate's duty to "assess the credibility of the evidence presented" with a legislatively created irrebuttable presumption that broad categories of hearsay evidence must be considered "reliable hearsay". Unlike the rebuttal presumption upheld in *Hall* and *Nebeker*, the irrebuttable presumption contained in Rule 1102 is not confined to a narrow range of hearsay evidence the reliability of which has "universal acceptance", it does not leave the ultimate question of reliability of evidence in the hands of the magistrate, it establishes conclusive evidence that the hearsay is reliable, and it certainly does not constitute "a very limited intrusion upon an accused's right of confrontation." *Hall*, 663 P.2d at 1322. For all of these reasons, Rule 1102 must be declared unconstitutional under *Sandstrom*, *Franklin*, and *Allen*.

IV. Article 1, section 12 and Rule 1102 violate Mr. Robinson's Eighth Amendment right to be free from cruel and unusual punishment.

The Supreme Court has explained that "[i]n capital proceedings generally, this Court has demanded that factfinding procedures aspire to a heightened standard of reliability." *Ford v. Wainwright*, 477 U.S. 399, 411 (1986). *See also Deck v. Missouri*, 544 U.S. 622, 632 (2005) ("The Court has stressed the 'acute need' for reliable decisionmaking when the death penalty is at issue.").

Decisions applying a higher standard of review in capital cases emanate from the Eighth Amendment's Cruel and Unusual Punishment Clause but also flow from the Due Process Clause of the Fourteenth Amendment. This constitutionally required "heightened reliability" standard is not reserved only for penalty phase proceedings. As the Court explained in *Beck v. Alabama*, "we have invalidated procedural rules that tended to diminish the reliability of the sentencing determination. The same reasoning must apply to rules that diminish the reliability of the guilt

determination.” 447 U.S. 625, 638 (1980). The Court has also deployed the Eighth and Fourteenth Amendments to invalidate death sentences imposed, in part, upon hearsay documentary evidence not available to the defendant, *see Gardner v. Florida*, 430 U.S. 349 (1977), and under the Fourteenth Amendment upon a finding that a sentence of death was imposed after an insufficiently reliable voir dire. *Turner v. Murray*, 476 U.S. 28 (1986).

Since Mr. Robinson is only exposed to a potential sentence of death if this Court makes certain findings in his preliminary hearing based upon evidence that it (and not the State) finds reliable, application of article 1, section 12 and Rule 1102 here sanctions a preliminary hearing without any meaningful adversarial testing of a significant portion of the evidence the State intends to proffer.

The Utah Supreme Court has explained one of the connections between the Sixth Amendment and reliability is the need for adversarial testing. Referring to the United States Supreme Court, it has explained that “[a]s the Supreme Court has noted, this right is designed to ensure that criminal defendants receive a fair and reliable proceeding before life or liberty are taken.” *Menzies v. Galetka*, 2006 UT 81, ¶ 85. It explains further:

This fairness is “derive[d] from the adversarial nature of our justice system, which is premised on the ‘well-tested principle that truth--as well as fairness--is best discovered by powerful statements on both sides of the question.’” *United States v. Collins*, 430 F.3d 1260, 1264 (10th Cir. 2005) (quoting *Penson v. Ohio*, 488 U.S. 75, 84, 109 S. Ct. 346, 102 L. Ed. 2d 300 (1988)); *see also Strickland*, 466 U.S. at 688 (recognizing “the law’s presumption that counsel will fulfill the role in the adversary process that the [Sixth] Amendment envisions”). The right to the effective assistance of counsel therefore ensures the fairness and reliability of proceedings by requiring counsel to adequately discharge his or her role in the adversary process.

Id.

Application of article 1, section 12 and Rule 1102 in this case would violate the Eighth Amendment principle of heightened reliability because it would allow the Court to make a

critical factual finding necessary to pursuit of the death penalty based on evidence that has not been subjected to the full adversary testing process, and that is based on an assessment by the Legislature, and not a court, that certain evidence is reliable. Further, these sections eliminate the procedural rights of confrontation and cross examination, rights which are afforded even to alleged parole and probation violators. They thus violate another precept of Eighth Amendment jurisprudence, which is that “[w]hen a defendant’s life is at stake, the Court has been particularly sensitive to insure that every safeguard is observed.” *Gregg v. Georgia*, 428 U.S. 153, 187 (1976).

V. Article 1, section 12 and Rule 1102 violate the Fourth Amendment and separation of powers principles.

Importantly, in a capital case a state cannot, consistent with Federal Due Process, the Fourth and Eighth Amendments, and separation of powers principles, declare that hearsay reports, used as the basis to justify the continued detention of a suspect, are entitled to an irrebuttable presumption of reliability that neither the defense nor the magistrate can challenge. *See Gerstein*, 420 U.S. at 119–124 (1975) (for purposes of Fourth Amendment analysis in determining whether probable cause exists to detain an arrestee for a significant time pending trial, a full adversarial hearing, together with confrontation and cross-examination of witnesses, need not be afforded so long as a “timely *judicial* determination” of probable cause is made as a prerequisite to continued detention). The Court expressly held in *Gerstein* that “[w]hatever procedure a State may adopt, it must provide a fair and reliable determination of probable cause as a condition for any significant pretrial restraint of liberty, and this determination must be made *by a judicial officer* either before or promptly after arrest.” *Id.* at 124–25 (emphasis added). *See also Virgin*, 2006 UT 29, ¶ 24 (“[M]agistrates must, to a certain extent, assess the credibility of the evidence presented.” (emphasis added)).

A state cannot avoid this federal constitutional and state law requirement by mandating that without any procedural safeguards all expert and lay hearsay reports offered by the prosecution are admissible and conclusively reliable, which in effect shifts the determination of probable cause solely to the Legislature and the prosecutor and unconstitutionally allows for a finding of probable cause based solely on hearsay that has never been tested. *See Commonwealth v. McClelland*, 233 A.3d 717, 736 (Penn. 2020) (a preliminary hearing is “a critical stage of the proceedings and is intended . . . to be more than a mere formality. Due process clearly attaches, but due process is a flexible concept, incapable of precise definition . . . [A]t the hearing afforded appellant, the Commonwealth relied exclusively and only on evidence that could not be presented at a trial. This is precisely the circumstance and rationale upon which five Justices in *Verbonitz* determined Buchanan’s right to due process was violated.”).

Article I, section 12 and Rule 1102 establish an unfair and unreliable system that is a far cry from other systems that have been upheld against separation of powers challenges. *See, e.g., Whitman v. Superior Ct.*, 820 P.2d 262, 274 (Cal 1991) (“[W]e discern no separation of powers violation here. Although the prosecutor is allowed to rely on hearsay evidence. . . at the preliminary hearing, and may require the defendant to make a satisfactory proof offer before the defendant may call any defense witnesses . . . the magistrate retains full authority and discretion to rule on the sufficiency of the defendant’s proof offer, to allow the admission of relevant defense evidence, and ultimately to determine whether the proffered evidence demonstrates probable cause”); *Hosek v. Superior Ct.*, 12 Cal. Rptr. 2d 650, 652 (Cal. 5th 1992) (“The underlying presumption of the statute is that the experienced or trained investigating officer will do more than passively listen to the expert witness. The investigating officer presumably will know enough about the use in court of the particular variety of expert testimony and will ask the

right questions of the expert to establish a substantial degree of reliability of the expert's statement for preliminary examination purposes.”).

The requirement that a Utah criminal defendant not be held in prolonged custody unless a probable cause finding is made after a preliminary hearing gives effect to a vital constitutional right—the determination of probable cause required by the Fourth Amendment as a prerequisite to extended restraint of liberty following arrest. *See Gerstein* 420 U.S. at 124–25. Whatever procedure a state may employ, be it grand jury, adversarial hearing or other judicial determination, and whatever specific time period in which the state requires this be done, the state “must provide *a fair and reliable determination* of probable cause as a condition for any significant pretrial restraint.” *Id.* at 125 (emphasis added). Article 1, section 12 and Rule 1102 mandate that a court must accept the Legislature’s determination of reliability and do so without the aid of any adversary testing by the defense. It violates both the Fourth Amendment as articulated in *Gerstein* and separation of powers principles.

VI. Article 1, section 12 and Rule 1102 violate the Confrontation Clause of the Sixth Amendment.

Although the Utah Supreme Court held otherwise in *Timmerman*, for purposes of preserving this claim for further federal review, Mr. Robinson asserts that article 1, section 12 and Rule 1102 violate the Confrontation Clause of the Sixth Amendment.

Timmerman relied on the statement in *Barber v. Page*, 390 U.S. 719, 725 (1968) that “[t]he right to confrontation is basically a trial right.” *Timmerman*, 2009 UT 58, ¶ 10 However, the *Barber* decision was not concerned with the defendant’s confrontation rights at his preliminary examination—in fact, the defendant was given the opportunity to cross-examine witnesses at that hearing. 390 U.S. at 722. The issue, rather, was whether an unavailable witness’s preliminary examination testimony was admissible at trial as a substitute for live

testimony. *Id.* at 720. The Court held the preliminary examination testimony was not an adequate substitute because the right to confrontation at trial is a fundamental right. *Id.* at 725. Contrary to the *Timmerman* Court’s interpretation, the United States Supreme Court did not limit confrontation rights as only applying at trial.

The majority of Supreme Court Confrontation Clause jurisprudence has focused on how the right applies at trial. However, the Court’s right to counsel analysis in *Coleman* demonstrates that the scope of this Sixth Amendment “trial right” extends beyond the trial itself. The Court’s decision that the right to counsel extends to preliminary examination was based primarily on the defendant’s opportunity to cross-examine at that stage. And in *Gerstein*, the Court expressly acknowledged that at a preliminary hearing “[t]he importance of the issue to both the State and the accused justifies the presentation of witnesses and full exploration of their testimony on cross-examination.” 420 U.S. at 120.

CONCLUSION

For all of the foregoing reasons, this Court should rule that article I, section 12 and Rule 1102 are constitutionally infirm under the federal constitution and that the State is therefore precluded from utilizing article I, section 12 of the Utah Constitution, and Rule 1102 of the Utah Rules of Evidence to sanction the admissibility of hearsay evidence to establish probable cause at the preliminary hearing.

RESPECTFULLY SUBMITTED this 6th day of May, 2026.

/s/ Kathryn N. Nester
Kathryn N. Nester

/s/Richard G. Novak
Richard G. Novak

/s/ Michael N. Burt
Michael N. Burt

/s/ Staci Visser
Staci Visser

Attorneys for Defendant, Tyler James Robinson

CERTIFICATE OF SERVICE

This is to certify that a true and correct copy of the foregoing was served via the Court's electronic filing system on the 6th day of May 2026, which served all attorneys of record.

/s/ Staci Visser

Addendum A-3

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IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

STATE OF UTAH,
Plaintiff,

v.

TYLER JAMES ROBINSON,
Defendant.

**OPPOSITION TO DEFENDANT’S
MOTION IN LIMINE TO
PRECLUDE THE UTILIZATION OF
ARTICLE I, § 12 OF THE UTAH
CONSTITUTION AND RULE 1102
OF THE UTAH RULES OF
EVIDENCE TO SANCTION THE
ADMISSIBILITY OF HEARSAY
EVIDENCE TO ESTABLISH
PROBABLE CAUSE AT THE
PRELIMINARY HEARING**

Case No. 251403576

Judge Tony F. Graf, Jr.

The State hereby opposes Defendant’s Motion In Limine to Preclude the Utilization of Article I, § 12 of the Utah Constitution and Rule 1102 of the Utah Rules of Evidence to Sanction the Admissibility of Hearsay Evidence to Establish Probable Cause at the Preliminary Hearing.

INTRODUCTION

Utah has allowed prosecutors to introduce reliable hearsay at preliminary hearings for more than thirty years. Federal prosecutors have introduced hearsay at preliminary hearings for over fifty years, and at grand jury proceedings since our nation's founding. Forty-four other states allow hearsay at preliminary hearings and grand jury proceedings. These well-established procedures are not unconstitutional.

Indeed, *State v. Timmerman* makes clear that the Federal Confrontation Clause does not apply to preliminary hearings. Because the Confrontation Clause does not apply, defendants have no right to cross-examine hearsay declarants.

Defendant cites no authority that would allow him to use other constitutional provisions to indirectly create a confrontation right that the Confrontation Clause would provide if it applied. His attempt to do so violates well-established rules of constitutional construction because it would create contradictory and superfluous constitutional provisions. In fact, federal courts also recognize that a party cannot rely on the Due Process Clause as the source of a right that another constitutional provision directly provides. That same logic applies to Defendant's attempt to rely on additional provisions besides the Due Process Clause.

Even if Defendant could rely on some other constitutional provision to establish a confrontation right, he has not shown that any of those provisions should apply here. It is illogical to conclude that “the substitute for the grand jury indictment”—a preliminary hearing—“must contain greater procedural protections than the grand jury procedures themselves.” *Peterson v. California*, 604 F.3d 1166, 1171 (9th Cir. 2010).

ARGUMENT

I. Controlling authority establishes that hearsay is admissible at a preliminary hearing because the Federal Confrontation Clause does not apply. If it did, then similar pretrial procedures in the federal system and 45 states would be unconstitutional.

A. *State v. Timmerman* establishes that the Confrontation Clause does not bar the admission of hearsay at a preliminary hearing.

Defendant reluctantly recognizes that *State v. Timmerman*, 2009 UT 58, ¶¶ 11-13, 218 P.3d 590, forecloses his claim that the Federal Confrontation Clause applies at preliminary hearings. *See* Mot. at 23. *Timmerman* is binding on this Court. Because the Confrontation Clause does not apply at a preliminary hearing, the State can introduce reliable hearsay at that hearing, as the Utah Constitution and evidence rules have expressly allowed for over thirty years. *See* Utah Const. art. I, § 12; Utah R. Evid. 1101(d); 1102.

The Confrontation Clause grants a defendant the right to confront through cross-examination “the witnesses against him.” U.S. Const. amend. VI; *see also Crawford v. Washington*, 541 U.S. 36, 50-56. The witnesses against a defendant are those who “bear testimony” against him by providing statements “made for the purpose of establishing or proving some fact.” *Crawford*, 541 U.S. at 51 (quoting 2 N. Webster, *An American Dictionary of the English Language* (1828)).

When the Confrontation Clause applies, it prevents the prosecution from relying on such testimonial statements unless a defendant had a prior opportunity to cross-examine the witness who made them. *See id.* at 61-62, 68-69. So, if the Confrontation Clause does not apply at a particular hearing, then the prosecution may rely on hearsay statements that a defendant has not had the opportunity to cross-examine. *See id.*

The Utah Supreme Court recognized this result in *Timmerman*. See 2009 UT 58, ¶¶ 11-13. Several other federal and state courts agree. See *id.* at ¶ 13 n.2 (collecting opinions from twelve other states that, as of 2009, had held that hearsay was admissible at a preliminary hearing); see also *Peterson v. California*, 604 F.3d 1166, 1170 (9th Cir. 2010) (“[T]he admission of hearsay statements at a preliminary hearing does not violate the Confrontation Clause.”); *Whitman v. Superior Court*, 820 P.2d 262, 269-73 (Cal. 1991) (holding Federal Confrontation Clause did not prevent admission of hearsay at preliminary hearing); *State v. O’Brien*, 850 N.W. 2d 8, 16-18 (Wis. 2014) (same).

As *Timmerman* correctly noted, United States Supreme Court precedent recognizes that confrontation is a trial right. See 2009 UT 58, ¶ 10; *United States v. Campbell*, 743 F.3d 802, 807 (11th Cir. 2014) (“[T]he Supreme Court has never extended the reach of the Confrontation Clause beyond the confines of a trial.”); *Peterson*, 604 F.3d at 1169 (“[T]he United States Supreme Court has repeatedly stated that the right to confrontation is basically a trial right.”); *United States v. Andrus*, 775 F.2d 825, 836 (7th Cir. 1985) (“[T]he sixth amendment does not provide a confrontation right at a preliminary hearing.”); *United States v. Harris*, 458 F.2d 670, 677-78 (5th Cir. 1972) (“There is no Sixth Amendment requirement that [defendants] also be allowed to confront [the witness] at a preliminary hearing prior to trial.”)

Defendant incorrectly suggests that *Timmerman*’s partial reliance on *Gerstein v. Pugh*, 420 U.S. 103 (1975), undermines its holding that the Federal Confrontation Clause does not apply at preliminary hearings. Mot. at 5-6. The *Gerstein* court considered the standard that the Fourth Amendment requires to justify pretrial detention of a suspect

pending further proceedings. *See id.* at 111. The Court held that the applicable standard was “probable cause to believe the suspect has committed a crime” which is “the same [standard] as that for arrest.” *Id.* at 120 The Court further recognized that this probable cause standard “traditionally has been decided by a magistrate in a nonadversary proceeding on hearsay and written testimony.” *Id.*

It makes no difference that *Gerstein* contemplated a “nonadversary proceeding” where probable cause could be determined based on hearsay, *see id.*, while Utah allows for the determination of probable cause at an adversarial hearing where a defendant has a procedural right to cross-examine witnesses. This is so, as *Timmerman* explained, for three reasons. *See* 2009 UT 58, ¶ 12.

First, *Timmerman* explicitly rejected the notion that the existence of adversary procedures at a preliminary hearing somehow creates a federal constitutional right to confront all testimonial hearsay at that hearing. *See id.* As *Timmerman* observed, *Gerstein*’s recognition that some states determine probable cause at a more formal preliminary hearing—like the Alabama proceeding in *Coleman v. Alabama*, 399 U.S. 1 (1970), where a defendant has the right to counsel and a procedural right to confront witnesses—does not require that the Confrontation Clause must apply whenever adversarial procedures are provided at a preliminary hearing. *See Timmerman*, 2009 UT 58, ¶ 12. Rather, as the *Timmerman* court explained, “the [*Gerstein*] Court observed only that ‘adversary procedures are customarily employed’ in preliminary hearings; it did not go any further to *require* that such procedures be used.” *Id.* (quoting *Gerstein*, 420 U.S. at 120) (emphasis added).

Second, *Timmerman* recognized that there is no substantive difference between a probable-cause determination made at an informal non-adversarial proceeding like the *Gerstein* court analyzed, and the determination made in Utah's more formal and adversarial preliminary hearing. *See* 2009 UT 58, ¶ 12. "[O]ur recent case law establishes that there is no difference between the probable cause determinations in arraignments and in preliminary hearings." *Id.* (citing *State v. Virgin*, 2006 UT 29, ¶ 18, 137 P.3d 787 (probable cause standard at preliminary hearing is equivalent to probable cause to arrest); *State v. Clark*, 2001 UT 9, ¶ 16, 20 P.3d 300 (same)).

Third, *Timmerman* recognized that the Federal Constitution does not require the State to even hold a preliminary hearing. *See* 2009 UT 58, ¶ 12. "Preliminary hearings are pretrial procedures unique to and varied within the states; no such procedure is required by the United States Constitution." *Id.* In fact, "a state could eliminate preliminary hearings entirely and not infringe on federal constitutional rights." *Id.*

Indeed, as *Gerstein* recognized, an accused is not "entitled to judicial oversight or review of the decision to prosecute." 420 U.S. at 119. "[A] judicial hearing is not prerequisite to prosecution by information." *Id.*

Timmerman is controlling and establishes that hearsay is admissible at preliminary hearings because the Confrontation Clause does not apply. Defendant cites no authority extending the Confrontation Clause to preliminary hearings. Indeed, if the Confrontation Clause did apply, it would invalidate not only Utah's preliminary hearing procedure, but also similar procedures of the vast majority of other states and the federal government.

B. If the Federal Constitution barred the admission of hearsay at a preliminary hearing, then preliminary hearing procedures in the federal courts and 44 other states would also be unconstitutional.

The prosecution's ability to rely on hearsay at a preliminary hearing in the federal system and 44 other states belies Defendant's assertion that the Confrontation Clause bars the prosecution's use of hearsay at a preliminary hearing.

1. Hearsay is admissible to establish probable cause at a federal preliminary hearing.

The lack of any restriction on a federal prosecutor's ability to introduce and rely on hearsay at federal pretrial proceedings to determine probable cause to detain an accused and whether the prosecution has sufficient evidence to proceed to trial, further demonstrates the inapplicability of the Confrontation Clause at these types of hearings. A federal prosecutor can rely on hearsay at a preliminary hearing. If a defendant is charged by information and has not yet been indicted by a grand jury, he is entitled to a preliminary hearing "no later than 14 days after the initial appearance if the defendant is in custody." Fed. R. Crim. P. 5.1(a)(2), (c). At that hearing, the prosecution must demonstrate "probable cause to believe an offense has been committed and the defendant committed it." *Id.* 5.1(e).

The rules of evidence do not apply at federal preliminary hearings and hearsay is therefore admissible. Fed. R. Evid. 1101(d)(3). In fact, rule 5.1 of the Federal Rules of Evidence previously stated that "[t]he finding of probable cause may be based upon hearsay evidence in whole or in part." *See* Fed. R. Evid. 5.1 advisory committee's notes (2002 amendment). That language was removed in 2002, but only because "[f]ederal law is now clear on that proposition." *Id.* As the advisory committee explained, it "did not intend to

make any substantive changes in practice by deleting the reference to hearsay evidence.”
Id.

As in Utah, hearsay is admissible at a federal preliminary hearing to determine probable cause even though the hearing allows adversarial procedures. A defendant in a federal preliminary hearing has the right to counsel and “may cross-examine adverse witnesses and may introduce evidence.” Fed. R. Evid. 5.1(e); *Rothgery v. Gillespie Cnty., Tex.*, 554 U.S. 191, 198 (2008) (right to counsel attaches at defendant’s first appearance). Yet, as explained, the rules of evidence do not apply and the finding of probable cause “may be based upon hearsay evidence in whole or in part.” See Fed. R. Evid. 5.1 advisory committee’s notes (2002 amendment).

2. Hearsay is also admissible in federal grand jury proceedings.

Hearsay is also admissible in federal grand jury proceedings. Like federal preliminary hearings, the rules of evidence do not apply to grand jury proceedings and hearsay is therefore admissible. Fed. R. Evid. 1101(d)(2); *Costello v. United States*, 350 U.S. 359, 362–64 (1956). Grand jury proceedings are secret and “free from technical rules.” *Id.* at 362. “Indeed, indictments may be returned on hearsay, or for that matter, even on the knowledge of the grand jurors themselves.” *Pittsburgh Plate Glass Co. v. United States*, 360 U.S. 395, 400 (1959).

In fact, grand jury proceedings provide an accused even fewer protections than Utah’s preliminary hearing procedure. “It is axiomatic that the grand jury sits not to determine guilt or innocence, but to assess whether there is adequate basis for bringing a criminal charge.” *United States v. Williams*, 504 U.S. 36, 51 (1992). To make that

determination, “it has always been thought sufficient to hear only the prosecutor’s side.” *Id.* “As a consequence, neither in this country nor in England has the suspect under investigation by the grand jury ever been thought to have a right to testify or to have exculpatory evidence presented.” *Id.* at 52.

The fact that hearsay has long been admissible at both federal preliminary hearings and grand jury proceedings further undermines Defendant’s claim that the Confrontation Clause bars the prosecution from relying on hearsay at a Utah preliminary hearing. Those federal hearings serve the same purpose at Utah’s preliminary hearing—to determine whether the prosecution’s evidence establishes probable cause to require the defendant to stand trial. If it is unconstitutional to admit hearsay at a Utah preliminary hearing, then federal preliminary hearing and grand jury proceedings must also be unconstitutional. But as the Ninth Circuit recognized, it would be illogical to conclude that “the substitute for grand jury indictment,” a preliminary hearing “which is not required by the federal constitution, must contain greater protections than the grand jury procedures themselves.” *Peterson*, 604 F.3d at 1171.

3. 44 additional states allow hearsay at preliminary hearings and grand jury proceedings.

Like the federal system and Utah, 44 other states also allow hearsay at preliminary hearings and grand jury proceedings. *See* Chesa Boudin & Eric S. Fish, *Towards Pretrial Criminal Adjudication*, 66 B.C. L. Rev. 1135, 1169 & nn.212, 213, 217, Appx. B.¹ As with

¹ Three states, Arkansas, Indiana, and Maine, rely exclusively on grand juries and allow hearsay at those proceedings. *See id.* The forty-one other states that allow hearsay at preliminary hearings are Alabama, Alaska, Arizona, California, Colorado, Connecticut,

the federal preliminary hearing and grand jury system, these systems would likewise be unconstitutional if Defendant were correct that the Confrontation Clause barred hearsay at a preliminary hearing. But Defendant cites no authority holding that any of these 44 other state's preliminary hearing procedures violate the Confrontation Clause, or any other federal constitutional provision, because they allow the prosecution to rely on hearsay.

In sum, *Timmerman* holds that the Confrontation Clause does not apply at a preliminary hearing. The fact that preliminary hearing and grand jury proceedings in the federal system and 44 other states allows the prosecution to rely on hearsay confirms the correctness of that holding. Because *Timmerman* is controlling, this Court should deny Defendant's motion.

II. Defendant does not explain how another federal constitutional provision can indirectly require a right that the Confrontation Clause directly provides but does not require.

Because the Confrontation Clause does not apply, as Defendant eventually concedes, Mot. at 23, he instead attempts to rely on other constitutional provisions to create a right to confrontation at his preliminary hearing. But he makes no effort to explain how another constitutional provision can indirectly require a right to confrontation when the Confrontation Clause itself, which directly addresses that right, does not apply. In fact,

Delaware, Florida, Georgia, Hawaii, Idaho, Illinois, Iowa, Kansas, Kentucky, Louisiana, Maryland, Michigan, Minnesota, Mississippi, Missouri, Montana, Nebraska, Nevada, New Hampshire, New Jersey, New Mexico, New York, North Carolina, North Dakota, Oklahoma, Oregon, Pennsylvania, South Carolina, Tennessee, Vermont, Virginia, West Virginia, Washington, Wisconsin, and Wyoming. *See id.*

such an interpretation would conflict with the well-established rules of constitutional construction.

Interpreting a constitutional provision other than the Confrontation Clause to indirectly require a right to confrontation would create conflicting constitutional provisions and render the Confrontation Clause superfluous. But “[l]ike clauses in a statute, related clauses of the Constitution should be interpreted to avoid contradictions in the text or the rendering of some part of the text superfluous.” *Fla. Sugar Mktg. & Terminal Ass'n, Inc. v. United States*, 220 F.3d 1331, 1337 (Fed. Cir. 2000). “All of [the Federal Constitution’s] provisions ‘should be interpreted in a way that renders them compatible, not contradictory.’” *Hopkins v. Watson*, 108 F.4th 371, 378 (5th Cir. 2024) (quoting Antonin Scalia & Bryan A. Garner, *Reading Law: The Interpretation of Legal Texts* 180 (2012)); see also *Univ. of Utah v. Shurtleff*, 2006 UT 51, ¶ 17, 144 P.3d 1109 (“When interpreting the constitution, we strive to harmonize constitutional provisions with one another and with the meaning and function of the constitution as a whole.”).

Because constitutional provisions must be interpreted harmoniously and so as not to render other provision superfluous, a different constitutional provision cannot indirectly provide a substantive right that the Confrontation Clause directly addresses and does not require.

III. Even if another constitutional provision could somehow indirectly require a right to confrontation, Defendant has not demonstrated that any of those other provisions apply here.

A. The Fourteenth Amendment’s Due Process Clause cannot indirectly impose a right to confrontation.

The principle that one constitutional provision cannot indirectly provide a right that another provision directly provides is well-established with respect to the Fourteenth Amendment’s Due Process Clause. Federal courts have made clear that where another constitutional provision directly provides an particular right, a defendant cannot rely on the Fourteenth Amendment’s substantive or procedural due process principles as an indirect source of the right. “[W]hen a particular constitutional amendment ‘provides an explicit textual source of constitutional protection against a particular sort of government behavior, that Amendment, not the more generalized notion of substantive due process, must be the guide for analyzing these claims.’” *Simpson v. Cisneros*, 129 F.4th 901, 905 (5th Cir. 2025) (quoting *Albright v. Oliver*, 510 U.S. 266, 273 (1994)). “The Supreme Court has ‘always been reluctant to expand the concept of substantive due process.’” *Huff v. Reeves*, 996 F.3d 1082, 1091 (10th Cir. 2021) (quoting *County of Sacramento v. Lewis*, 523 U.S. 833, 842 (1998)); see also *Brown v. Weis*, 871 P.2d 552, 566 n.22 (Utah Ct. App. 1994) (“In construing a state constitution containing its own rather complete ‘bill of rights,’ it is wholly unnecessary to view a due process guaranty as connoting other rights when those rights are explicitly set forth in the same document.”).

Courts have extended this same reasoning to procedural due process claims. See *Becker v. Kroll*, 494 F.3d 904, 918–19 (10th Cir. 2007) (“[A]lthough the plaintiff in

Albright did not raise a procedural due process claim ... we find *Albright's* reasoning regarding substantive due process equally persuasive with regard to the Fourteenth Amendment's procedural component."); *Pino v. Higgs*, 75 F.3d 1461, 469 (10th Cir.1996) (same). Defendant therefore cannot rely on the Fourteenth Amendment to supply a right to confrontation that the Sixth Amendment's Confrontation Clause does not.

This same principle should apply to other constitutional provisions that Defendant attempts to rely on, like the Sixth Amendment right to counsel, the Eighth Amendment's Cruel and Unusual Punishment Clause, and the Fourteenth Amendment's Equal Protection Clause. As with the Due Process clause, if these additional provisions could indirectly provide a right that the Confrontation Clause directly provides but does not require, then that interpretation would render the Confrontation Clause superfluous. It would also render the different provisions in conflict, rather than in harmony. These additional federal constitutional provisions therefore cannot provide a right that the Confrontation Clause does not.

B. Even if Defendant could rely separately on the Due Process Clause, confrontation is not required because of the limited nature of a preliminary hearing.

If Defendant could rely on the Due Process Clause here, it would not require full confrontation rights. Due process "is not a technical conception with a fixed content unrelated to time, place, and circumstances; it is flexible and requires such procedural protections as the particular situation demands." *In re Baby Girl T.*, 2012 UT 78, ¶ 16, 298 P.3d 1251.

Given the extremely limited nature of a preliminary hearing, due process does not demand a right to confrontation at that hearing and the corresponding ability to prevent the admission of hearsay. The “function” of a preliminary hearing “is limited to determining whether probable cause exists.” Utah Const. art. 1, § 12. It is not a discovery device. *See State v. Lopez*, 2020 UT 61, ¶ 44, 474 P.3d 949. The prosecution’s burden is “light,” and requires only “evidence to support a reasonable belief that an offense has been committed and that the defendant committed it.” *Id.* at ¶ 46 (cleaned up).

Despite this very limited purpose of a preliminary hearing, a defendant is nevertheless entitled to counsel and to cross-examine any witness that the prosecution calls at the hearing. *See State v. Montes*, 2019 UT App 74, ¶ 38, 442 P.3d 1247. A defendant also has the right to call witnesses, to testify himself, and to argue that the prosecution’s evidence is insufficient. *See Utah R. Crim. P. 7B*. Defendant has not shown why these procedural protections are inadequate to satisfy due process given the limited nature of a preliminary hearing.

In fact, the Wisconsin Supreme Court rejected a similar due process claim in *State v. O’Brien*, 850 N.W.2d 8, 20-21 (Wis. 2014). Relying on *Gerstein*, the *O’Brien* court held that due process does not prevent the prosecution from relying on hearsay at a preliminary hearing because “[t]he United States Supreme Court has determined that informal proceedings are sufficient for probable cause determinations.” *Id.* at 20 (citing *Gerstein*, 420 U.S. at 121). Given the limited scope of a Wisconsin preliminary hearing, which, like Utah’s proceedings, is limited “to determining whether there is probable cause to believe

that a defendant committed a felony,” the admission of hearsay evidence “does not violate due process rights.” *Id.* at 20-21.

Likewise, as the Ninth Circuit succinctly explained, “[i]f the phrase ‘due process of law’ in the Fifth Amendment does not prohibit the use of hearsay in grand jury proceedings, then the same phrase in the Fourteenth Amendment cannot be read to prohibit the use of hearsay evidence at a preliminary hearing.” *Peterson v. California*, 604 F.3d 1166, 1171 (9th Cir. 2010).

C. Rule 1102 does not create a mandatory presumption that violates the Due Process Clause.

Nor does Rule 1102 create a mandatory presumption that violates due process. Defendant erroneously conflates admissibility and credibility in arguing otherwise. Mot. at 19. He mistakenly contends that merely deeming evidence to be *admissible* creates a mandatory presumption that the evidence is *credible*. *Id.* But Defendant’s premise is demonstrably false.

The fact that a witness’s testimony is admissible does not require a factfinder to find that testimony credible. Factfinders routinely reject admissible testimony as incredible. The ultimate determination of whether evidence is credible always rests with the factfinder.

This is true even at preliminary hearings where hearsay is admissible. *See State v. Dreesbeke*, 2010 UT App 275, ¶ 17, 241 P.3d 772 (“[M]agistrates may make limited credibility determinations in preliminary hearings.”). A credibility determination, even if limited, will always be based on an evaluation of already admitted evidence. A rule that

deems certain evidence admissible therefore does not mandate a finding that the evidence is also credible.

Moreover, mandatory presumptions are improper only when they pertain to ultimate issues that a factfinder must determine, not merely to the admissibility of certain evidence. *See Roosevelt City v. Nebeker*, 815 P.2d 738, 739-40 (Utah App. 1991). Thus, in *Nebeker*, a statute that permitted the admission of the results of a motorist's breath test as presumptively valid did not create an improper mandatory presumption because the presumption applied only to the admissibility of evidence. *See id.* It did not shift the burden of proof on any element of a crime. *See id.*

Likewise, Rule 1102 deals only with the admissibility of certain hearsay evidence. *See Utah R. Evid. 1102.* It leaves any limited credibility determinations that a magistrate can make entirely to the magistrate. And more importantly, it also leaves to the magistrate the ultimate decision of whether the admissible evidence demonstrates probable cause. *Nebeker* expressly authorizes presumptions of admissibility. *See* 815 P.2d at 739-40.

Indeed, if Defendant were correct that presumptions of admissibility are improper, then any number of evidentiary rules would be unconstitutional. For example, rules 803 and 804 of both the federal and state rules of evidence deem several categories of hearsay evidence to be admissible despite the general rule prohibiting hearsay. *See Fed. R. Evid. 803, 804; Utah R. Evid. 803, 804.* Rule 609 likewise makes a witness's prior felony conviction admissible as impeachment. *See Fed. R. Evid. 609; Utah R. Evid. 609.* The existence of these evidentiary rules demonstrates Defendant's flawed logic in accusing Rule 1102 of creating an improper mandatory presumption.

D. The Sixth Amendment’s right to counsel cannot indirectly create a right to confrontation at a preliminary hearing.

Defendant likewise fails to show that his Sixth Amendment right to counsel at a preliminary hearing somehow creates an indirect right to confrontation. Defendant cites no authority for the proposition that the right to counsel at a particular hearing mandates that counsel “must have available and utilize all the necessary tools of effective advocacy, including the right to cross examine any hearsay declarants.” Mot. at 7.

In fact, Defendant’s contention is demonstrably false. Although a defendant has the right to counsel at sentencing, *see State v. Cabrera*, 2007 UT App 194, ¶ 11, 163 P.3d 707, the rules of evidence do not apply and reliable hearsay is admissible, *see State v. Robinson*, 2018 UT App 227, ¶ 27, 438 P.3d 35 (““The rules of evidence in general, and the rules on hearsay exclusions in particular, are inapplicable in sentencing proceedings.”) (quoting *State v. Sanwick*, 713 P.2d 707, 709 (Utah 1986)); *see also* Utah R. Evid. 1101(c) (providing that the Utah Rules of Evidence do not apply at sentencing).

Moreover, the right to counsel cannot create any additional substantive right, because the *Strickland* standard for gauging counsel’s effectiveness is incompatible with that notion. The right to counsel requires only that counsel’s performance be objectively reasonable “under the circumstances” that counsel faced at the time. *Strickland v. Washington*, 466 U.S. 668, 689 (1984); *State v. Carter*, 2023 UT 18, ¶ 46, 535 P.3d 819 (“[W]e look at what the record tells us about what the world looked like when Carter’s counsel forwent the directed verdict motion.”). “A fair assessment of attorney performance requires that every effort be made to eliminate the distorting effects of hindsight, to

reconstruct the circumstances of counsel's challenged conduct, and to evaluate the conduct from *counsel's perspective at the time.*" *Strickland*, 466 U.S. at 689 (emphasis added). *Strickland* is satisfied so long as counsel performed reasonably under the circumstances he faced. *See id.* It does not a mechanism to change those circumstances.

Because the Sixth Amendment right to counsel depends on the circumstances of counsel's conduct at the time, "garden-variety applications of the test in *Strickland* ... for assessing claims of ineffective assistance of counsel do not produce new rules" of criminal procedure. *Chaidez v. United States*, 568 U.S. 342, 348 (2013) (refusing to apply retroactively the new rule in *Padilla v. Kentucky*, 559 U.S. 356 (2010)). A finding that counsel's performance was deficient because counsel should have acted differently cannot create a new rule of criminal procedure related to the action that counsel should have taken. *See id.* Again, the Sixth Amendment requires only that counsel perform reasonably under the existing circumstances. *See Strickland*, 466 U.S. at 689.

For these reasons, the Wisconsin Supreme Court rejected a claim that a defendant's right to counsel at a preliminary hearing precludes the admission of hearsay. *See State v. O'Brien*, 850 N.W.2d 8, 19-20 (Wis. 2014). "[T]he admission of hearsay at a preliminary hearing does not infringe on defendants' right to assistance of counsel," because "the constitution does not require that counsel be allowed to play the same role at a preliminary examination as counsel at trial." *Id.* at 19 (cleaned up).

Moreover, the cases that Defendant relies on regarding counsel's effectiveness in cross-examining witnesses all address cross-examination at *trial*. *See Mot.* at 8-10 & n.1. Those cases do not support the contention that the right to counsel at a *preliminary hearing*

requires counsel to be able to cross-examine all hearsay declarants at that hearing. Defendant therefore provides no authority to support his claim that his Sixth Amendment right to counsel can create a right to confrontation that the Confrontation Clause does not.

E. The Fourteenth Amendment's Equal Protection clause does not indirectly create a right to confrontation at a preliminary hearing.

Defendant also mistakenly asserts that the right to confrontation at parole revocation hearings, recognized in *Morrissey v. Brewer*, 408 U.S. 471 (1972), establishes an indirect right to confrontation at preliminary hearings under the Equal Protection Clause. Mot. at 11-14. The prosecution is not entirely barred from admitting hearsay at parole revocation hearing. Rather, a court may admit hearsay at that hearing if it finds good cause for doing so. *See Morrissey*, 408 U.S. at 489. “The purpose of [this] good cause requirement is to limit the use of unreliable evidence at revocation hearings.” *State v. Tate*, 1999 UT App 302, ¶ 11, 989 P.2d 73 (citing *Egerstaffer v. Israel*, 726 F.2d 1231, 1234 (7th Cir.1984)). But only reliable hearsay is admissible at a preliminary hearing. *See Utah Const. art. 1, § 12*. Because reliable hearsay is admissible at both parole revocation hearings and preliminary hearings, Defendant fails to demonstrate any equal protection violation.

In any event, Defendant's argument is inadequately briefed. Mere citation to authority without “development of that authority and reasoned analysis based on that authority” is inadequate to present an argument for decision. *State v. Thomas*, 961 P.2d 299, 305 (Utah 1998).

The extent of Defendant's equal protection argument is to remark, as part of his procedural due process argument, that his inability to confront hearsay declarants at his

preliminary hearing also denies him equal protection. Mot. at 10-15. But he makes no effort to explain how a parolee facing the reimposition of the remainder of his prison sentence is similarly situated to a pretrial detainee, who will not be subject to a prison sentence without first being convicted at a trial with full confrontation rights. Defendant completely omits this analysis even though “the initial inquiry in analyzing an equal protection claim is to determine whether a person is similarly situated to those persons who allegedly received favorable treatment.” *United States v. Whiton*, 48 F.3d 356, 358 (8th Cir. 1995). Defendant therefore fails to carry his burden of persuasion on his equal protection claim.²

F. The Eighth Amendment’s Cruel and Unusual Punishment Clause does not indirectly create a right to confrontation at a preliminary hearing.

As with his other claims, Defendant’s reliance on the Eighth Amendment’s Cruel and Unusual Punishment Clause to create an indirect confrontation right at preliminary hearing fails because he cites no authority establishing that the heightened reliability required to impose a death sentence applies to pretrial proceedings. Mot. at 19-21.

The possible punishment Defendant faces if convicted of aggravated murder has no relevance to a preliminary hearing. While the Eighth Amendment imposes a “heightened reliability” requirement in capital cases, that requirement applies “in the determination [of]

² And it is now too late for Defendant to attempt to provide the missing analysis. An opportunity to file a reply brief “is not a license to gap-fill missing arguments.... The timely presentation of arguments is essential to providing an opposing party with a fair opportunity to respond.” *Monticello Wind Farm, LLC v. Pub. Serv. Comm’n of Utah*, 2019 UT 43, ¶ 80, 449 P.3d 128; *see also State v. Kruger*, 2000 UT 60, ¶ 21, 6 P.3d 1116 (responding party’s observation that moving party failed to raise an argument does “not constitute a ‘new matter’ entitling [opposing party] to brief the issue in his reply brief”).

whether the death penalty *is appropriate* in a particular case.” *Sumner v. Shuman*, 483 U.S. 66, 72 (1987) (emphasis added).

Defendant cites no authority establishing that this heightened reliability standard extends to every decision and proceeding in a capital case, including pretrial determinations and hearings. Mot. at 19-21. Rather, Defendant’s authority addresses, for the most part, the imposition or execution of a death sentence, *see Ford v. Wainwright*, 477 U.S. 399, 401-05 (1986) (addressing whether an insane person could be executed); *Deck v. Missouri*, 544 U.S. 622, 632 (2005) (considering whether a defendant could be forced to appear at a capital sentencing hearing in shackles); *Gardner v. Florida*, 430 U.S. 349, 358 (1977) (analyzing evidence on which a capital sentence was based); *Turner v. Murray*, 476 U.S. 28 (1986) (considering how jury selection procedures would affect “a capital sentencing jury”).

Granted, one of Defendant’s cases, *Beck v. Alabama*, 447 U.S. 625, 627 (1980), does not address the imposition or execution of a death sentence. It analyzes whether the jury must be allowed to consider a lesser-included offense at the guilt phase of a capital trial. *See id.* But *Beck*’s holding that jurors must be instructed on lesser-included offenses was based on due process, not a conclusion that the Eighth Amendment’s heightened reliability standard required that result. *See id.* at 638 n.14 (“We need not and do not decide whether the Due Process Clause would require the giving of such instructions in a noncapital case.”). Defendant therefore cites no authority that would extend the Eighth Amendment’s heightened reliability standards for imposing the death penalty to a pretrial proceeding like a preliminary hearing. Mot. at 19-21.

Moreover, even if the admission of reliable hearsay at Defendant's preliminary hearing somehow decreased the reliability of the probable cause determination there, Defendant still would be eligible for the death penalty only if he were later convicted beyond a reasonable doubt at the guilt phase of his trial where the Confrontation Clause would apply. That conviction beyond a reasonable doubt would cure any defect in the preliminary hearing proceeding. *See Thomas v. State*, 2002 UT 128, ¶ 7, 63 P.3d 672 (“[A]n error at the preliminary stage is cured if the defendant is later convicted beyond a reasonable doubt.”) (cleaned up). The Eighth Amendment has no application to this pretrial hearing.

G. Separation of powers principles do not indirectly create a right to confrontation

Finally, Defendant fails to demonstrate that separation of powers principles can prohibit the legislature from classifying certain evidence as reliable hearsay. Mot. at 21-23. Defendant makes no argument that the Federal Constitution imposes any particular separation powers principles on the states. *See id.*

Nor could he. The Tenth Amendment reserves for the States any powers not expressly “delegated to the United States by the Constitution, nor prohibited by it to the States.” U.S. Const. amend. X. Because no Federal Constitutional provision requires states to follow any particular separation of powers principles, Utah is free to define and divide power among its governmental branches as it sees fit.

The Utah Constitution expressly allows for the admission at a preliminary hearing “of reliable hearsay evidence as defined *by statute or rule.*” Utah Const. art. I, § 12

(emphasis added). This provision therefore expressly allows the legislature to define categories of reliable hearsay. Moreover, as explained, even when reliable hearsay is admitted at a preliminary hearing, the determination of whether the admissible evidence demonstrates probable cause rests solely with the magistrate. See Utah R. Crim. P. 7B. Contrary to Defendant's representation, such a system creates no separation of powers issue. See *Whitman v. Superior Court*, 820 P.2d 262 (Cal. 1991) (discerning no separation of powers violation where magistrate retained full authority "to determine whether the proffered evidence demonstrates probable cause"). Defendant therefore fails to demonstrate that Rule 1102 violates any separation of powers principle.

In sum, Defendant cannot rely on a separate constitutional provision to require a right to confrontation that the Confrontation Clause itself does not provide. But even if he could, he has not demonstrated that any of the various provisions he cites indirectly require the right to confrontation at a preliminary hearing.

CONCLUSION

For the foregoing reasons, the Court should deny Defendant's motion and allow the State to introduce reliable hearsay at the preliminary hearing, consistent with Utah's practice for more than thirty years, as well as the practice in the federal courts and 44 other states.

Dated May 27, 2026.

Utah County Attorney's Office

s/ Christopher D. Ballard
Christopher D. Ballard
Deputy Utah County Attorney

CERTIFICATE OF SERVICE

I certify that on May 27, 2026, I filed the foregoing **OPPOSITION TO DEFENDANT'S MOTION IN LIMINE TO PRECLUDE THE UTILIZATION OF ARTICLE I, § 12 OF THE UTAH CONSTITUTION AND RULE 1102 OF THE UTAH RULES OF EVIDENCE TO SANCTION THE ADMISSIBILITY OF HEARSAY EVIDENCE TO ESTABLISH PROBABLE CAUSE AT THE PRELIMINARY HEARING** through the court's electronic filing system, which served a copy on all counsel of record.

s/ Christopher D. Ballard
Christopher D. Ballard

Addendum A-4

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IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT
IN AND FOR THE COUNTY OF UTAH, STATE OF UTAH

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**DEFENDANT TYLER JAMES ROBINSON'S
REPLY IN SUPPORT OF DEFENDANT'S
MOTION *IN LIMINE* TO PRECLUDE THE
UTILIZATION OF ARTICLE I, SECTION 12
OF THE UTAH CONSTITUTION AND RULE
1102 OF THE UTAH RULES OF EVIDENCE
TO SANCTION THE ADMISSIBILITY OF
HEARSAY EVIDENCE TO ESTABLISH
PROBABLE CAUSE AT THE PRELIMINARY
HEARING; MEMORANDUM OF POINTS
AND AUTHORITIES IN SUPPORT
THEREOF**

Case No. 251403576

Honorable Tony F. Graf, Jr.

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Defendant, Tyler James Robinson, by and through undersigned counsel, hereby files this reply in support of *Defendant's Motion in Limine to Preclude the Utilization of Article I, Section 12 of the Utah Constitution and Rule 1102 of the Utah Rules Of Evidence to Sanction the Admissibility of Hearsay Evidence to Establish Probable Cause at the Preliminary Hearing* ("Mtn.") (Dkt. 525) and in response to the State's *Opposition* thereto ("Opp.") (Dkt. 557).

INTRODUCTION

The *Opposition* makes three overarching arguments, two of which feature various sub-arguments: (1) controlling authority establishes that hearsay is admissible at a preliminary hearing because the Federal Confrontation Clause does not apply. If it did, then similar pretrial procedures in the federal system and 45 states would be unconstitutional, *Opp.* at 3-10; (2) Defendant does not explain how another federal constitutional provision can indirectly require a right that the Confrontation Clause directly provides but does not require, *id.* at 10-11; and (3) even if another constitutional provision somehow indirectly requires a right to confrontation, Defendant has not demonstrated that any of those other provisions apply here, *id.* at 12-23.

For reasons that follow, this Court should reject all of the State's arguments and sub-arguments. Mr. Robinson's motion presents several compelling reasons why this Court should grant the motion, and the *Opposition* has failed to explain why these reasons do not justify granting the relief that Mr. Robinson seeks, has cited cases that do not hold what the State claims they hold, and that in some instances the cases actually support Mr. Robinson's motion.

For clarity of analysis, Mr. Robinson addresses the State's arguments and sub-arguments under the Argument headings contained in his motion. At the outset, however, he addresses the overarching theme of the *Opposition* that Mr. Robinson's motion should be decided based on a misguided approach which assumes, without evidence, that almost every jurisdiction in the

nation has *similar* preliminary hearing procedures as those existing in Utah and then uses this incorrect comparison to suggest a parade of horrors will result if Mr. Robinson's motion is granted.

The Court Should Not Credit the State's Oversimplification of How Preliminary Hearings are Conducted Throughout Other Jurisdictions in the United States.

The State begins its fear-mongering by claiming that "[i]f the Federal Constitution barred the admission of hearsay at a preliminary hearing, then preliminary hearing procedures in the federal courts and 44 other states would also be unconstitutional." *Opp.* at 7. It bases these numbers and comparisons solely on an Appendix B attached to a law review article by former San Francisco District Attorney Chesa Boudin and a co-author entitled *Toward Pretrial Criminal Adjudication*, 66 B.C. L. Rev. 1135 (2025) ("Boudin").¹ A few observations about this study and the State's misapplication are helpful to the Court here.

First, the conclusion of Boudin's article does not support the State's position. Boudin opines that the present state of affairs is a disappointing trend turning the criminal justice system into a plea-bargaining engine that has no roots in a properly functioning due process oriented pretrial adversary-based criminal justice system. As Boudin concludes,

Robust pretrial adjudication can significantly improve a system of pleas. If every case ended up in front of a jury, pretrial adjudication would mostly just help the parties in preparing for trial. In our current system where almost no cases end up in front of a jury, however, pretrial adjudication is imperative to preserve the rule of law and the adversarial system.

Boudin, at 1198.

Consistent with this analysis, the United States Supreme Court has recognized that because our criminal justice system has become "for the most part a system of pleas, not a

¹ Available at <https://bclawreview.bc.edu/articles/3196/files/6810da6f82a37.pdf>.

system of trials, it is insufficient simply to point to the guarantee of a fair trial as a backstop that inoculates any errors in the pretrial process.” *Missouri v. Frye*, 566 U.S. 134, 143-44 (2012) (internal citations and quotation marks omitted).

Second, the Boudin article defines five basic flaws in a criminal justice system devoid of any adversary pre-trial adjudication, all of which counsel strongly in favor of granting Mr.

Robinson’s motion:

- (1) the lack of pretrial adversarial adjudication increases the risk of false convictions by “removing neutral factfinders’ role in sorting innocent defendants from guilty ones” (Boudin at 1147);
- (2) “a system of only guilty pleas sacrifices the rule of law” (*id.* at 1148);
- (3) “a system without adjudication lacks transparency” (*id.*);
- (4) “a system without adjudication sacrifices the dignitary value of due process” (*id.* at 1149); and
- (5) “a system without adjudication lacks procedural checks on the imposition of punishment”, *id.*

Third, the State’s assertion that “44 other states...allow hearsay at preliminary hearings,” *Opp.* at 9, tells the Court nothing about how many of those states not only “allow hearsay at preliminary hearings”, but have systems like Utah’s where hearsay alone can support a bindover, where a vast range of hearsay not covered by traditional hearsay exceptions is allowed, and, perhaps most importantly, where the Legislature has dictated that all such hearsay must be considered reliable, even though under *State v. Virgin*, 2006 UT 29, ¶¶ 21-24, 137 P. 3d 787, the magistrate is supposed to be making “some limited credibility determination at the preliminary hearing.” *See also State v. Timmerman*, 2009 UT 58, ¶ 16, 218 P.3d 590 (“Admission of evidence at preliminary hearings is exclusively governed by the reliable hearsay language in the Utah Constitution and rule 1102 of the Utah Rules of Evidence.”). The defense’s research has disclosed no jurisdiction except Utah which combines all of these features. *See also* Boudin, at

1169 (“Our fifty-state survey reveals a good deal of variation in states’ evidence rules at preliminary hearings.”).

Indeed, comparisons between Utah and other jurisdictions based on Boudin’s descriptions of procedures in Appendix B are rendered void from the outset because it erroneously states that in Utah “reliable hearsay is admissible in preliminary hearings[.]” Boudin, at 1226. The State repeats this same description throughout its *Opposition* and uses this misdescription as the basis for its assertion that Utah’s procedures are just like the procedures in 44 other states, but that description mischaracterizes “the reliable hearsay language in the Utah Constitution and Rule 1102 of the Utah Rules of Evidence” and the holding of *Timmerman* that that *specific* language exclusively governs the admission of evidence in Utah preliminary hearings. That language states in no uncertain terms that broad categories of hearsay evidence are in fact “reliable.”

Fourth, the State’s assertion that all of the listed jurisdictions “allow hearsay at the preliminary hearing” is incorrect and misleading. *Opp.* at 9. For example, the State lists Connecticut as a jurisdiction that “allow[s] hearsay at the preliminary hearing” (*id.* at 9-10 n.1), yet the Connecticut Supreme Court has declared that it is an open question whether Connecticut’s statute, which states only that “[t]he court shall be confined to the rules of evidence, except that written reports of expert witnesses shall be admissible in evidence and matters involving chain of custody shall be exempt from such rules” violates the federal confrontation clause. *State v. Randolph*, 933 A.2d 1158, 1186 n. 8, 1191 n. 15 (Conn. 2007) (quoting Conn. Gen. Stat. § 54-46a) (not mentioned in Boudin’s Appendix B). The State and Boudin are thus incorrect in asserting that Connecticut is a state that “allow[s] hearsay at the preliminary hearing”.

The State also lists Colorado as a state that allows hearsay at the preliminary hearing, but as Boudin points out,

Colorado does not apply the rules of evidence to preliminary hearings, but its courts have been unwilling to allow the prosecution to rely solely on hearsay evidence if the perceiving witness is available to testify. In [2009], in *People v. Huggins*, [220 P.3d 977, 980 (Colo. App. 2009)] the Colorado Appeals Court also created guardrails to limit the abuse of hearsay at preliminary hearings. Specifically, “[t]he prosecution satisfies the minimum requirement for nonhearsay if it (1) presents some competent nonhearsay addressing essential elements of the offense, and (2) presents hearsay testimony through a witness who is connected to the offense or its investigation and is not merely reading from a report.” [*Id.*] These guardrails help preserve the adjudicative value of preliminary hearings, but they are not as rigorous as the rules of evidence.

Boudin, at 1170 (footnotes omitted). This system is a far cry from Utah’s system, as is California’s system, another jurisdiction the State claims allows hearsay at preliminary hearings. As Boudin again explains,

In California the rules of evidence generally apply at preliminary hearings with a couple of significant, though limited exceptions. Since the passage of Prop. 115 in 1990, one layer of hearsay evidence via a sworn peace officer is admissible at a preliminary hearing. This ability to introduce one layer of hearsay is equally available to the defense and the prosecution. The defense may also, in some circumstances, call the declarant as a witness even if the prosecutor did not. A second way California relaxes the rules of evidence for preliminary hearings is that the best evidence rule does not apply, meaning copies of documents can be used rather than the originals. While these evidentiary exceptions somewhat diminish the adjudicative value of a preliminary hearing, they still permit robust hearings compared to other jurisdictions. For example, a prosecutor in California could not establish probable cause by simply having a case agent summarize a police report.

Id. at 1172-73 (footnotes omitted).

The State also lists Delaware as a state that allows hearsay at a preliminary hearing, but as Boudin’s Appendix B points out, (Boudin, at 1219), the Delaware Supreme Court held that there is “no requirement that Justice of the Peace first determine if such hearsay is reliable, unless [the] Justice of the Peace in his discretion believes inquiry into credibility of witnesses or

reliability of information is necessary to satisfy himself that probable cause exists.” *Schramm v. State*, 366 A.2d 1185, 1192 (Del. 1976). In Utah, that discretion has been removed by operation of Rule 1102, which simply declares that a vast amount of proffered hearsay is “reliable.”

The State also lists Iowa as a state that allows hearsay at a preliminary hearing. *See Opp.* at 9-10 n.1; Boudin, at 1220. However, Iowa’s Rule of Criminal Procedure 2.2(4)(c) specifically provides, “The finding of probable cause shall be based upon substantial evidence, which may be hearsay in whole or in part provided there is a substantial basis for believing the source of the hearsay to be credible and for believing that there is a factual basis for the information furnished.”² Again, in Utah, the judicial decisions mandated by Iowa’s Rule 2.2(4) have been supplanted by reliability determinations made by the legislature.

The State also lists Pennsylvania as a state that allows hearsay at a preliminary hearing, but in *Commonwealth v. McClelland*, 233 A.3d 717, 721, 735-36 (2020), the Pennsylvania Supreme Court held that hearsay evidence alone was insufficient to establish a prima facie case at a preliminary hearing, and it left standing a lower court ruling that the Commonwealth may not satisfy its burden by presenting the testimony of a mouthpiece parroting multiple levels of rank hearsay. *See* Boudin, at 1169 n. 217 (Pennsylvania allows hearsay “with some meaningful limitations”).

Finally, the State lists Florida, Indiana, Iowa, Missouri, North Dakota, and Vermont as states that allows hearsay at a preliminary hearing (*Opp.* at 9-10, n.1), yet as Boudin points out, “six states afford criminal defendants a broad right to depose witnesses in the case against them: Florida, Indiana, Iowa, Missouri, North Dakota, and Vermont.” Boudin, at 1180 (footnote

² Available at <https://www.legis.iowa.gov/law/courtrules/courtruleslistings>.

omitted). The pretrial criminal justice procedures of these states are in no way comparable to the procedure in Utah, where no such “broad right to depose witnesses” exists.

These examples are by no means exhaustive, but illustrative of the fact that the State’s assertion that 44 states “allow hearsay at a preliminary hearing” is an oversimplification of what is actually occurring within these states.

Fifth, the State’s approach ignores the undeniable fact that many positive changes in constitutional law occur against a background of massive legislative and other resistance to such changes. For instance, “[f]or most of U.S. history, the vast majority of state criminal defendants did not have the right to a court-appointed attorney.” Georgetown Law, Indigent Criminal Defense Research Guide, The Law Before Gideon (Last Updated Feb. 20, 2025, 2:47 PM) <https://guides.ll.georgetown.edu/c.php?g=363469&p=2455701>. That legislative consensus did not prevent the Supreme Court from holding in *Gideon v. Wainright*, 372 U.S. 335 (1963), that under the Sixth and Fourteenth Amendments indigent defendants were entitled to the appointment of counsel in felony cases, and that decision was made despite the fact that it had massive consequences to the existing criminal justice practices. *See, e.g., Betschart v. Oregon*, 103 F.4th 607, 615 (9th Cir. 2024) (noting that “the State of Florida released, or released and retried, over 4,000 prisoners after the Supreme Court issued its decision in *Gideon*.”); *U.S. ex rel. Durocher v. LaVallee*, 330 F.2d 303, 315 (2d Cir. 1964) (Friendly, J., concurring) (noting that “[t]he [*Gideon*] question must have been raised in scores of the many hundred pro se applications from state prisoners which deluged the Supreme Court and other federal courts in the years prior to March 1963”; “[b]y 1963 they were in the prisons of most of the fifty states thousands of defendants who had pleaded guilty without [counsel]”).

As another example, prior to *Brown v. Board of Education*, 347 U.S. 483 (1954), the country “had experienced more than a half-century of state-sanctioned segregation[.]” *Dobbs v. Jackson Women’s Health Org.*, 597 U.S. 215, 293 (2022). But that consensus did not prevent the Supreme Court from overruling the infamous decision in *Plessy v. Ferguson*, 163 U.S. 537 (1896). Yet under the State’s analysis, *Plessy* should have been upheld because of a preexisting national consensus.

In other words, legislation restricting the rights of criminal defendants adopted by a majority of states may reflect current public and political opinion that such rights should be restricted. But as the Supreme Court emphasized in *Dobbs*, “[t]he Judicial Branch derives its legitimacy, not from following public opinion, but from deciding by its best lights whether legislative enactments of the popular branches of Government comport with the Constitution.” 597 U.S. at 291 (citation omitted).

Lastly, the State’s focus on an inaccurate comparison of current state practices ignores another constitution precept stressed in *Dobbs*, which is that in determining whether a right is guaranteed by the Constitution, “the Court has long asked whether the right is deeply rooted in [our] history and tradition and whether it is essential to our Nation’s “scheme of ordered liberty. And in conducting this inquiry, we have engaged in a careful analysis of the history of the right at issue.” *Dobbs*, 597 U.S. at 237-238 (internal citations omitted). Mr. Robinson’s *Motion*, but not the *Opposition*, takes such an approach in arguing that in *Gerstein* the Court concluded that

Both the District Court and the Court of Appeals held that the determination of probable cause must be accompanied by the full panoply of adversary safeguards—counsel, confrontation, cross-examination, and compulsory process for witnesses. A full preliminary hearing of this sort is modeled after the procedure used in many States to determine whether the evidence justifies going to trial under an information or presenting the case to a grand jury. *See Coleman v. Alabama*, [399 U.S. 1, 90 (1970)]; Y. Kamisar, W. LaFare & J. Israel, *Modern Criminal Procedure* 957–967, 996–1000 (4th ed.

1974). The standard of proof required of the prosecution is usually referred to as ‘probable cause,’ but in some jurisdictions it may approach a prima facie case of guilt. ALI, Model Code of Pre-arraignment Procedure, Commentary on Art. 330, pp. 90–91 (Tent. Draft No. 5, 1972). *When the hearing takes this form, adversary procedures are customarily employed. The importance of the issue to both the State and the accused justifies the presentation of witnesses and full exploration of their testimony on cross-examination.* This kind of hearing also requires appointment of counsel for indigent defendants.

Gerstein v. Pugh, 420 U.S. 103, 119-20 (1975) (further citation omitted) (emphasis added).

As was held in *Crawford v. Washington*, 541 U.S. 36, 43 (2004), “[w]e must ...turn to the historical background of the [Confrontation] Clause to understand its meaning”, and that historical background, fully consistent with *Coleman*’s description of the adversary hearings “customarily employed” at a preliminary hearing, firmly establishes that:

- (1) “[t]he common-law tradition is one of live testimony in court subject to adversarial testing,” (*Crawford*, 541 U.S. at 43);
- (2) “by 1791 (the year the Sixth Amendment was ratified), courts were applying the cross-examination rule even to examinations by justices of the peace in felony cases” (*id.* at 46);
- (3) an initial proposed Federal Constitution that did not include a right of confrontation was criticized on the grounds that “[n]othing can be more essential than the cross examining [of] witnesses, and generally before the triers of the facts in question”, and that “[w]ritten evidence ... [is] almost useless; it must be frequently taken ex parte, and but very seldom leads to the proper discovery of truth” (*id.* at 49) (citations omitted);
- (4) “it is a rule of the common law, founded on natural justice, that no man shall be prejudiced by evidence which he had not the liberty to cross examine” (*id.*) (citation omitted); and
- (5) “the principal evil at which the Confrontation Clause was directed was the civil-law mode of criminal procedure, and particularly its use of *ex parte* examinations as evidence against the accused” (*id.* at 50).

It is this historical background, and not any false comparisons of current practices, that must guide the Court’s analysis of Mr. Robinson’s motion.

ARGUMENT

I. Utah Constitution, Article 1, Section 12 and Rule 1102 violate Mr. Robinson's Sixth Amendment Right to the Effective Assistance of Counsel.

As a foundational objection to the consideration of this claim, the State advances the novel proposition that Mr. Robinson's multiple constitutional challenges must stand or fall on the Sixth Amendment right to confrontation, and that this Court must ignore all other provisions of the Federal Constitution, including the Sixth Amendment right to the effective assistance of counsel, and the Fourteenth Amendment guarantees of procedural due process and equal protection. *See Opp.* at 10-13. This argument is flawed in a number of respects.

First, the proposition was specifically rejected long ago in *Powell v. State of Ala.*, 287 U.S. 45, 67-68 (1932), where, after a comprehensive review of the cases on this issue, the Court concluded:

The Sixth Amendment, in terms, provides that in all criminal prosecutions the accused shall enjoy the right 'to have the Assistance of Counsel for his defence.' In the face of the reasoning of [*Hurtado v. California*, 110 U.S. 516 (1884) (reasoning that the Fourteenth Amendment did not guarantee the right to an indictment in a state prosecution because such a right was not included in the Fifth Amendment's Grand Jury Clause)], if it stood alone, it would be difficult to justify the conclusion that the right to counsel, being thus specifically granted by the Sixth Amendment, was also within the intendment of the due process of law clause. But the *Hurtado* Case does not stand alone. In the later case of *Chicago, Burlington & Q.R. Co. v. Chicago*, [166 U.S. 226, 241 (1897)], this court held that a judgment of a state court, even though authorized by statute, by which private property was taken for public use without just compensation, was in violation of the due process of law required by the Fourteenth Amendment, notwithstanding that the Fifth Amendment explicitly declares that private property shall not be taken for public use without just compensation. This holding was followed in [*Village of Norwood v. Baker*, 172 U.S. 269, 277 (1898)]; *Smyth v. Ames*, 169 U.S. 466, 524 [(1898) overruled by *Fed. Power Comm. v. Natural Gas Pipeline*, 169 U.S. 466 (1942)], and *San Diego Land & Town Company v. National City*, 174 U.S. 739, 754 [(1899)].

Likewise, this court has considered that freedom of speech and of the press are rights protected by the due process clause of the Fourteenth Amendment, although in the First Amendment, Congress is prohibited in specific terms from abridging the right. *Gitlow v. People of State of New York*, 268 U.S.

652, 666 [(1925)]; *Stromberg v. California*, 283 U.S. 359, 368 [(1931)]; *Near v. Minnesota*, 283 U.S. 697, 707 [(1931)].

These later cases establish that notwithstanding the sweeping character of the language in the *Hurtado* Case, the rule laid down is not without exceptions. The rule is an aid to construction, and in some instances may be conclusive; but it must yield to more compelling considerations whenever such considerations exist. The fact that the right involved is of such a character that it cannot be denied without violating those ‘fundamental principles of liberty and justice which lie at the base of all our civil and political institutions’ [*Hebert v. State of Louisiana*, 272 U.S. 312, 316 (1926)], is obviously one of those compelling considerations which must prevail in determining whether [a right] is embraced within the due process clause of the Fourteenth Amendment, although it be specifically dealt with in another part of the Federal Constitution. Evidently this court, in the later cases enumerated, regarded the rights there under consideration as of this fundamental character. That some such distinction must be observed is foreshadowed in *Twining v. New Jersey*, 211 U.S. 78, 99 [(1908), overruled by *Mallow v. Hogan*, 378 U.S. 1 (1964)] where Mr. Justice Moody, speaking for the court, said that: “* * * It is possible that some of the personal rights safeguarded by the first eight Amendments against national action may also be safeguarded against state action, because a denial of them would be a denial of due process of law. [*Burlington*, 166 U.S. at 226]. If this is so, it is not because those rights are enumerated in the first eight Amendments, but because they are of such a nature that they are included in the conception of due process of law.”

In other words, the fact that the Confrontation Clause establishes a right to confront and cross examine witnesses does not preclude that same right from being guaranteed by other provisions of the constitution, such as the Sixth Amendment right to the effective assistance of counsel or the Fourteenth Amendment rights to procedural due process and equal protection. *See, e.g., McCray v. State of Ill.*, 386 U.S. 300, 312-13 (1967) (reaching the merits of the defendant’s claims that the failure to disclose an informant’s identity at a suppression hearing violated the Due Process Clause of the Fourteenth Amendment and the Sixth Amendment right to confrontation).

This fundamental constitutional principle is well illustrated by *Matter of Crim. Investigation*, 754 P.2d 633, 650 (Utah 1988), superseded by statute as stated in *Kearns v. Tribune Corp. v. Wilkinson*, 946 P.2d 372, 375 (Utah 1997). There, the constitutionality of the

Subpoena Powers Act in effect at the time was challenged under the Fourth Amendment, the Fifth Amendment privilege against self-incrimination, and the Fourteenth Amendment procedural due process right to confront and cross-examine witnesses, but not under the Confrontation Clause. *See generally id.* The Utah Supreme Court concluded that it must interpret the Act “in accordance with the requirements of several federal and state constitutional provisions which provide the basis for a sensible interpretation of the Act and allow us to give it practical effect.” *Id.* at 640; *see also id.* at 650 (“we must determine what form of ‘process’ is due under the fourteenth amendment and what procedural protections the state must afford one who is the potential target of a Subpoena Powers Act investigation”).

The Court went on to hold that the Fourteenth Amendment right to confront and cross examine witnesses did not apply to a Subpoena Powers Act investigation because it was investigatory in nature, but importantly for the present case the court distinguished “[a]djudicative proceedings”, which are “essentially judicial in nature and result in binding determinations that directly affect legal rights”, where “[t]he full panoply of procedural safeguards available in judicial proceedings are therefore available in adjudicative proceedings, including the rights to present evidence and cross-examine witnesses.” *Id.* at 651. According to the State here, the Utah Supreme Court had no authority to reach the merits of the Fourteenth Amendment claim because the Confrontation Clause only applies at the trial and is the sole source of confrontation rights. However, this reasoning is refuted by *Matter of Crim. Investigation* and is inconsistent with the constitutional principles established in *Powell*.

Second, the State’s argument rests primarily on the plurality opinion in *Albright v. Oliver*, a case arising from a 42 U.S.C. § 1983 civil rights action involving a Fourth Amendment claim which concluded that “[w]here a particular Amendment ‘provides an explicit textual source of

constitutional protection’ against a particular sort of government behavior, ‘that Amendment, not the more generalized notion of ‘substantive due process,’ must be the guide for analyzing these claims.’” 510 U.S. 266, 273 (1994) (quoting *Graham v. Connor*, 490 U.S. 386, 395 (1989)).

As the Tenth Circuit correctly observed in *Becker v. Kroll*, in cases like *Albright*, “[t]he Court has been careful to tie all actions under § 1983 to specifically protected constitutional rights in order to avoid creating a free-standing constitutional tort regime under § 1983.” 494 F.3d 904, 915 (10th Cir. 2007). The State here is trying to apply *Albright* totally divorced from the context in which the case was decided. Mr. Robinson’s challenges are not being brought in a § 1983 civil rights action and he is not alleging a substantive due process violation. The concerns underlying *Albright* are irrelevant and do not overrule the Supreme Court’s holding in *Powell*, which was a criminal case. *See also Taylor v. Meacham*, 82 F.3d 1556, 1561 n. 5 (10th Cir. 1996) (“As many courts have observed, in many ways *Albright* muddied the waters rather than clarified them. *Albright*’s discussion about the Fourth Amendment governing pretrial deprivations of liberty is *dicta*, inasmuch as Mr. Albright never alleged a Fourth Amendment violation. Thus, the Supreme Court specifically avoided deciding whether a Fourth Amendment malicious prosecution claim would succeed.”).

Third, the State asserts that in two other civil rights cases, *Becker* and *Pino v. Higgs*, 75 F.3d 1461, 1469 (10th Cir. 1996) the Tenth Circuit extended the reasoning of the *Albright* plurality opinion to procedural due process claims. *See Opp.* at 12-13. The State interprets this to mean that Mr. Robinson’s Sixth Amendment right to counsel and Fourteenth Amendment procedural due process or equal protection guarantees do not extend to Mr. Robinson’s preliminary hearing, which is allegedly governed solely by the Fourth Amendment. *Id.* Once again, the State has improperly lifted these cases out of the context in which they were decided.

More fundamentally, this argument completely ignores the Supreme Court’s decision in *Gerstein* and fails to inform the Court of the limitations of *Becker*, *Pino* and other like cases.

More specifically, the State’s argument overlooks that in *Gerstein*, the Supreme Court held that the Fourth Amendment was the constitutional provision to use *when evaluating questions of probable cause for arrest and detention*, but carefully distinguished the later preliminary hearing stage of a case where the Court concluded, without reference to the Fourth Amendment, that “[a] full preliminary hearing of this sort is modeled after the procedure used in many States to determine whether the evidence justifies going to trial under an information or presenting the case to a grand jury”, that “ [w]hen the hearing takes this form, adversary procedures are customarily employed” and that “[t]he importance of the issue to both the State and the accused justifies the presentation of witnesses and full exploration of their testimony on cross-examination.” 420 U.S. at 119-20. *See also* *Cnty. of Riverside v. McLaughlin*, 500 U.S. 44, 55 (1991) (“The Court recognized in *Gerstein* that a person arrested without a warrant is entitled to a fair and reliable determination of probable cause and that this determination must be made promptly.”); *Taylor*, 82 F.3d at 1564 (distinguishing a Fourth Amendment claim based on an unlawful seizure from one arising from the conduct of “a preliminary hearing, which, under Utah law is an adversarial proceeding”).

In other words, the deprivation of liberty inherent in an initial arrest or detention is not the same thing as determining what procedures are required at an adversary preliminary hearing, or even determining what restrictions can be imposed on a detainee following an arrest or detention. For “evaluating the constitutionality of conditions or restrictions of pretrial detention,” the Supreme Court directs that the “proper inquiry” is “whether those conditions or restrictions amount to punishment of the detainee” under the Due Process Clause. *Bell v. Wolfish*, 441 U.S.

520, 535 (1979). As in *Bell*, in this case “[w]e are not concerned with the initial decision to detain an accused and the curtailment of liberty that such a decision necessarily entails,” *Id.* at 533-34, but rather with determining what procedures are required by the Sixth Amendment right to the effective assistance of counsel and the Fourteenth Amendment at an adversary preliminary hearing to be conducted months after Mr. Robinson’s arrest.

Further, neither the plurality opinion in *Albright*, nor the Tenth Circuit’s opinions in *Becker*, 494 F.3d at 918-19, and *Pino*, 75 F.3d at 1469, address procedural rights at a preliminary hearing, and *Becker* expressly acknowledges that,

Several cases suggest that at some point in the prosecutorial process, due process concerns can be sufficient to support a claim under § 1983. *See, e.g.,* [*Pierce v. Gilchrist*, 359 F.3d 1279, 1285–86 (10th Cir. 2004) (en banc)]. In *Pierce*, we recognized that “at some point after arrest, and certainly by the time of trial, constitutional analysis [of a malicious prosecution claim] shifts to the Due Process Clause.” 359 F.3d at 1285–86; *see also Castellano v. Fragozo*, 352 F.3d 939, 942 (5th Cir.2003) (analyzing knowing use of manufactured evidence and perjured testimony at trial as violations of due process sufficient to support a § 1983 malicious prosecution claim); *Riley v. Dorton*, 115 F.3d 1159, 1162 (4th Cir.1997) [*abrogated on other grounds in Wilkins v. Gaddy*, 559 U.S. 34 (2010)] (holding that once a suspect is subject to pre-trial detention, due process governs the conditions of ongoing custody).

494 F.3d at 920. *Accord Shimomura v. Carlson*, 811 F.3d 349, 361 (10th Cir. 2015).

Riley v. Dorton, is particularly instructive in rebutting the State’s argument that Mr. Robinson is confined to raising a Fourth Amendment challenge to preliminary hearing procedure. In *Riley*, the Fourth Circuit refused to apply a Fourth Amendment analysis to the plaintiff’s excessive force claim, stressing that “[t]he Fourth Amendment governs claims of excessive force during the course of an arrest, investigatory stop, or other “seizure” of a person. The events about which Riley complains, however, took place at least two hours and ninety miles from the time and place of Riley’s arrest.” *Riley*, 115 F.3d at 1161-62 (citing *Graham v. Connor*, 490 U.S. 386, 395 n. 10 (1989) (“It is clear...that the Due Process Clause protects a

pretrial detainee from the use of excessive force that amounts to punishment.”)). The court elaborated that “[a] review of the Supreme Court’s basic jurisprudence reinforces our refusal to adopt the ‘continuing seizure’ theory of the Fourth Amendment. Decades of Fourth Amendment precedent have focused on the initial deprivation of liberty[,]” citing to numerous cases, including *Gerstein*. *Id.* at 1162-63.³

Finally, not even the cases cited by the State adopt the State’s proposed radical departure from constitutional principles. *See, e.g., United States v. Andrus*, 775 F.2d 825, 836 (7th Cir. 1985) (“[e]ven though the admission of out of court statements at a pretrial hearing may not violate the confrontation clause, the statements may still be an impermissible basis upon which to find the coconspirator’s declarations admissible.”); *Peterson v. California*, 604 F.3d 1166 (9th Cir. 2010) (addressing whether the admission of hearsay evidence at a preliminary hearing violates defendants’ rights to compulsory process or procedural due process); *State v. O’Brien*, 850 N.W.2d 8, 23 (Wis. 2014) (addressing whether the admission of hearsay evidence at a

³ *See also Page v. King*, 932 F.3d 898, 904 (9th Cir. 2019) (upholding a defendant’s right to assert a due process procedural challenge to his preliminary hearing procedure because “Page’s claim is closely analogous to the claim in *Gerstein*: The defendant in *Gerstein* challenged the state’s refusal to hold a probable cause hearing, while Page challenges the state’s alleged failure to hold a *constitutionally adequate* probable cause hearing.” (emphasis in original)); *Brothers v. Klevenhagen*, 28 F.3d 452, 456 (5th Cir. 1994) (rejecting the contention that the Fourth Amendment must govern post-arrest encounters; “First, the text of the Fourth Amendment—prohibiting unreasonable “seizures”—does not support its application to a post-arrest encounter. Second, the Supreme Court has refused to apply the Fourth Amendment to protect inmates after incarceration. And third, *Graham* and *Bell v. Wolfish* [] (refusing to concede that Fourth Amendment applied to pretrial detainee subjected to body cavity search), dictate that the Due Process Clause is the appropriate constitutional basis for pretrial detainee excessive force suits.”); *Wilkins v. May*, 872 F.2d 190, 192-93 (7th Cir. 1989) (endorsing the position that the Fourth Amendment’s text limits “seizure” to the “initial act of seizing.”); *Cottrell v. Caldwell*, 85 F.3d 1480, 1490 (11th Cir. 1996) (“[c]laims involving the mistreatment of arrestees or pretrial detainees in custody are governed by the Fourteenth Amendment’s Due Process Clause”).

preliminary hearing violates defendants' rights to compulsory process, effective assistance of counsel, or procedural due process).

When the State finally reaches the merits of Mr. Robinson's Sixth Amendment right to the effective assistance of counsel claim, its arguments are extremely thin and easily refuted.

The State first argues that Mr. Robinson's claim that the right to confront and cross examine hearsay declarants is necessary to effectuate his Sixth Amendment right to the effective assistance of counsel at a critical stage of the proceedings is "demonstrably false" because:

Although a defendant has the right to counsel at sentencing, *see State v. Cabrera*, 2007 UT App 194, ¶ 11, 163 P.3d 707, the rules of evidence do not apply and reliable hearsay is admissible, *see State v. Robinson*, 2018 UT App 227, ¶ 27, 438 P.3d 35 ("The rules of evidence in general, and the rules on hearsay exclusions in particular, are inapplicable in sentencing proceedings.") (quoting *State v. Sanwick*, 713 P.2d 707, 709 (Utah 1986)); *see also* Utah R. Evid. 1101(c) (providing that the Utah Rules of Evidence do not apply at sentencing).

Opp. at 17. This analogy is flawed in a number of respects.

First, none of three Utah cases cited by the State address the issue of whether the right to confront and cross examine hearsay declarants is necessary to effectuate the Sixth Amendment right to the effective assistance of counsel at a critical stage of the proceedings. *Cabrera* actually cuts against the State's Confrontation Clause argument because, like *Coleman v. Alabama*, it demonstrates that the Sixth Amendment applies outside the context of the trial itself and extends to sentencing proceedings. *Cabrera*, 2007 UT App 194, ¶ 11.

Robinson only addressed the defendant's contention that "Robinson contends that the district court plainly erred because police reports and photographs are insufficiently reliable to satisfy due process." 2018 UT App 227, ¶ 26. The court confirmed that "[d]ue process requires that a sentencing judge act on reasonably reliable and relevant information in exercising discretion in fixing a sentence", and that, in contrast to Utah's preliminary hearing procedure, it

is up to the judge (not the legislature) to determine “if the evidence in question had indicia of reliability and was relevant in sentencing.” *Id.* (quotation marks and citations omitted).

The State also cites *State v. Sanwick*, 713 P.2d 707, 709 (Utah 1986) (per curium) for the proposition that “[t]he rules of evidence in general, and the rules on hearsay exclusions in particular, are inapplicable in sentencing proceedings.” *Opp.* at 17. However, the State fails to point out that in that case the Utah Supreme Court also added the important qualification that “it does not follow, however, that a defendant must stand mute in the face of allegations which he claims are untrue” because, as was held in *State v. Johnson*, 618 P.2d 759 (Idaho 1980), “[h]earsay was admissible as long as the defendant had the opportunity to rebut the adverse evidence and to challenge the reliability of the evidence presented”, and as was held in *State v. King*, 601 P.2d 982 (Wash. App. 1979), “due process considerations come into play at the time of sentencing and require that if hearsay allegations incorporated in a presentence report are challenged [that] defendant be given a chance to rebut them.” *Sanwick*, 713 P. 2d at 709. The *Sanwick* Court also agreed with defendant’s argument that he had a statutory right of confrontation at sentencing. *See id.* at 709 (“Defendant maintains he could never refute or disprove such vague accusations except through cross-examination of his daughters. These arguments form the underpinnings for his request that upon remand he be permitted to confront his daughters and that his sentence be redetermined in light of their cross-examination. He claims that section 77–18–1(4) of the Code of Criminal Procedure mandates that the sentencing court ‘shall hear any testimony ... the defendant ... may wish to present concerning the appropriate sentence.’ We have no quarrel with defendant’s interpretation of the statute.”).⁴

⁴ This current version of this provision is exactly the same but has been redesignated as Utah Code § 77-18-103(9)(a) (“At the time of sentence, the court shall receive any testimony, evidence, or information that the defendant or the prosecuting attorney desires to present

Especially in light of *Sanwick*, the State's analogy to sentencing proceedings proves too much. For if, as the State suggests, Mr. Robinson should be granted the same procedural rights at his critical stage preliminary hearings that are granted to defendants at critical stage sentencing proceedings, then under *Sanwick* he is entitled as a matter of procedural due process to confront and cross examine hearsay declarations. *Sanwick* also challenges the State's assertion that confrontation rights must be grounded only in the Sixth Amendment Confrontation Clause.

Lastly, if, as the State contends, we must look to other critical stages of the criminal proceedings to define Mr. Robinson's procedural rights, then surely, we must look at suppression hearings, a comparison that the State understandably does not bring to the Court's attention. Suppression hearings are indistinguishable from sentencing hearings and preliminary hearings in that all three are critical stages at which the right to counsel attaches and in which hearsay evidence is allowed. *See United States v. Raddatz*, 447 U.S. 667, 679 (1980) ("At a suppression hearing, the court may rely on hearsay and other evidence, even though that evidence would not be admissible at trial.").

Yet numerous cases hold that the right to confrontation extends to suppression hearings precisely because they are a critical stage of the proceedings at which the accused is entitled to the Sixth Amendment right to the effective assistance of counsel. *See State v. Curry*, 2006 UT

concerning the appropriate sentence."). The statutory right to confrontation at sentencing is also extended to those convicted defendants who are accused of probation or parole violations. *See* Utah Code § 77-18-108(3)(e) ("The persons who have given adverse information on which the allegations are based shall be presented as witnesses subject to questioning by the defendant, unless the court for good cause otherwise orders."); Utah Code § 77-27-11(5)(b) ("The board or the board's appointed examiner shall provide the parolee the opportunity: ... (iv) to confront and cross-examine adverse witnesses, absent a showing of good cause for not allowing the confrontation.").

App 390, ¶ 9-10, 147 P.3d 483 (suppression hearing was a critical stage where counsel must be present to cross-examine the prosecution's witness).⁵

The State's next argument, although not clear, seems to be centered in the notion that "the right to counsel cannot create any additional substantive right, because the [*Strickland v. Washington*, 466 U.S. 668 (1984)] standard for gauging counsel's effectiveness is incompatible with that notion." *Opp.* at 17. However, as was held in *Matter of Crim. Investigation*, "[a]lthough a court cannot supply substantive terms that are absent from a statute... it not only may, but must supply omitted procedural elements that are necessary to implement legislation consistent with constitutional requirements." 754 P.2d at 640-41 (citing *Kennecott Copper Corp. v. Anderson*, 514 P.2d 217, 219 (Utah 1973)) (collecting cases). One of those "constitutional requirements", as established in *Strickland*, is the right to the effective assistance of counsel. In the context of a preliminary hearing,

⁵ See also *United States v. Hodge*, 19 F.3d 51, 53 (D.C. Cir. 1994) (a suppression hearing is a critical stage of the prosecution and "any limitations on the right of cross-examination ... must be justified by weighty considerations") (internal quotation marks and citations omitted); *United States v. Green*, 670 F.2d 1148, 1154 (D.C. Cir. 1981) (because of the historical and practical importance of the right of cross-examination, any limitations on the right at the suppression hearing must be justified by weighty considerations); *United States v. Clark*, 475 F.2d 240, 246-47 (2d Cir. 1973) (the defendant has a right to be present at a pretrial suppression hearing "held to determine the constitutionality of a seizure of evidence from an accused"; defendant was "entitled to assist his counsel in cross-examining [the prosecution's] witnesses and in developing [] matters further at the suppression hearing."); *Curry v. State*, 228 S.W.3d 292, 297 (Tex. Ct. App. 2007) (the Confrontation Clause applies at a suppression hearing because it is a "critical stage" of the criminal prosecution); *State v. Ehtesham*, 309 S.E.2d 82 (W. Va. 1983) (per curiam) (suppression hearing should be "a meaningful hearing, at which both the state and the defendant should be afforded the opportunity to produce evidence and to examine and cross-examine witnesses" (citation omitted); defendant's right denied where judge refused defense opportunity to cross examine officer who obtained search warrant); *State v. Sigerson*, 282 So. 2d 649, 651 (Fla. App. 1973) ("The hearing on the motion to suppress, while not deciding the guilt or innocence of the appellee, is clearly a critical stage of the prosecution and the confrontation clause of the Sixth Amendment to the United States constitution guarantees an accused in a criminal case the right to confront the witnesses against him.").

Plainly the guiding hand of counsel at the preliminary hearing is essential to protect the indigent accused against an erroneous or improper prosecution. First, the lawyer's skilled examination and cross-examination of witnesses may expose fatal weaknesses in the State's case that may lead the magistrate to refuse to bind the accused over.

Coleman, 399 U.S. at 9. *See also Gerstein*, 420 U.S. at 120 ("The importance of the issue to both the State and the accused justifies the presentation of witnesses and full exploration of their testimony on cross-examination."); *Pearce v. Cox*, 354 F.2d 884, 890 (10th Cir. 1965) ("We hold that preliminary examination, from the arraignment of the defendant until the end of the examination, is a critical stage of the criminal proceedings against the defendant. This, because a defendant needs ... the assistance of counsel in cross-examining the state's witnesses at the preliminary examination").

Indeed, one of the very cases cited by the State at page fourteen of its *Opposition* broadly endorses the Sixth Amendment principle set forth in *Coleman*, *Gerstein*, and *Pearce*. In *State v. Montes*, the Utah Court of Appeals wrote:

The examination and cross-examination of witnesses also constitutes a critical stage of the criminal process. The United States Supreme Court has stated that a preliminary hearing is a "critical stage" in the criminal process precisely because it involves the examination and cross-examination of witnesses: "[T]he lawyer's skilled examination and cross-examination of witnesses [during a preliminary hearing] may expose fatal weaknesses in the State's case.... [T]he skilled interrogation of witnesses by an experienced lawyer can fashion a vital impeachment tool for use in cross-examination of the State's witnesses at the trial...." [*Coleman*, 399 U.S. at 9]; *see also Schneckloth v. Bustamonte*, 412 U.S. 218, 239 [] (1973) (The "right of cross-examination ... is an essential safeguard to [a defendant's] right to confront the witnesses against him."). The inability of an accused to realize the advantages of effective examination and cross-examination absent a lawyer's assistance makes a preliminary hearing "a critical stage of the State's criminal process at which the accused is as much entitled to such aid of counsel as at the trial itself." *Coleman*, 399 U.S. at 10 [] (cleaned up). Part of a lawyer's value is assisting the accused by making informed and experienced judgment calls about when and to what extent, if at all, to engage in examination and cross-examination of witnesses. Thus, where courts have recognized the critical nature of examination and cross-examination of witnesses at preliminary

proceedings, it follows, a fortiori, that the examination of witnesses marks a critical stage of the trial itself.

2019 UT App 74, ¶ 38, 442 P.3d 1247.

The State’s last argument is that this Court should follow *State v. O’Brien*, which reasoned that “[t]he admission of hearsay at a preliminary hearing does not infringe on defendants’ right to assistance of counsel,” because “the constitution does not require that counsel be allowed to play the same role at a preliminary examination as counsel at trial.” *Opp.* at 18 (quoting *O’Brien*, 850 N.W.2d at 19-20 (quotation marks and citation omitted)). This reasoning simply begs the question of what role counsel is required to play at the preliminary hearing. *Coleman*, *Gerstein*, *Crawford* and *Montes* authoritatively answer that question and require that counsel be allowed to confront and cross examine hearsay declarants at a preliminary hearing.

II. Utah Constitution Article 1, Section 12 and Rule 1102 violate Mr. Robinson’s Fourteenth Amendment Rights to Procedural Due Process and Equal Protection.

The State’s principal response to this claim is that the Fourteenth Amendment’s Due Process Clause cannot indirectly impose a right to confrontation because that right is exclusively governed by the Confrontation Clause. *See Opp.* at 13. As argued above, this argument is inapposite to the law.

The State’s back-up argument is that “[g]iven the extremely limited nature of a preliminary hearing, due process does not demand a right to confrontation at that hearing and the corresponding ability to prevent the admission of hearsay.” *Opp.* at 14. This reasoning is contradicted by *Coleman*, which recognized and stressed the limited nature of a preliminary hearing, but nonetheless concluded that the Sixth and Fourteenth Amendments required that a

defendant be provided with the effective assistance of counsel at a preliminary hearing so that the attorney could effectively exercise the right to cross examine his accusers. 399 U.S. at 7-9.

Contradicting itself, the State then argues that “[d]espite this very limited purpose of a preliminary hearing, a defendant is nevertheless entitled to counsel and to cross-examine *any witness that the prosecution calls at the hearing.*” *Opp.* at 14 (citing *Montes*, 2019 UT App 74, ¶ 38) (emphasis added). The referenced passage from *Montes* is quoted in full above, and a fair reading of it indicates that the court’s statement that “a preliminary hearing is a ‘critical stage’ in the criminal process precisely because it involves the examination and cross-examination of witnesses” was premised on the assumption that the preliminary hearing being discussed was the customary one discussed in *Coleman* where witnesses are called to meet the State’s burden of establishing probable cause as to each and every element of the charged offense, and the defendant is then entitled to have counsel cross examine those witnesses. The Court did not hold or even imply, that the right to confrontation it recognized was limited only to “any witness the prosecution calls at the hearing” under a procedure like the one established by article 1, section 12 and Rule 1102 where the State need not call *any* witness to establish the essential element of the charged offense, but can establish those elements based exclusively on hearsay evidence that the legislature mandates must be considered reliable. Such a system intolerably diminishes the federal constitutional rights to counsel and to confrontation established by *Coleman* and emphasized by *Montes*.

The State next argues that “[a] defendant also has the right to call witnesses, to testify himself, and to argue that the prosecution’s evidence is insufficient (citing Utah R. Crim. P. 7B)”, and that “Defendant has not shown why these procedural protections are inadequate to satisfy due process given the limited nature of a preliminary hearing.” *Opp.* at 14. This argument

is disingenuous in light of the position that the State took in Dkt. 476 in which it vigorously opposed a continuance of the preliminary hearing and argued that once the State established a prima facie case based entirely on hearsay evidence that the Court was required to consider as reliable, the defense had no right to call any witnesses, expert or otherwise. *See* Dkt. 476 at 5 (emphasizing that “rule 1102(b)(4) of the Utah Rules of Evidence deems ‘scientific, laboratory, or forensic reports and records’ to be reliable hearsay admissible without foundation or the testimony of their author”); *id.* at 6 (“even if Defendant could show that expert testimony and additional expert discovery would defeat expert conclusions tying him to the murder, it would not defeat probable cause”); *id.* at 8 (emphasizing that “[t]he findings of probable cause may be based, in whole or in part, on reliable hearsay” and that “[b]y definition, [hearsay expert reports] are reliable hearsay...” (citations omitted)). In fact, Dkt. 476 goes so far as to concede that if the preliminary hearing is conducted in accordance with article I, section 12, and Rule 1102, the defendant’s constitutional right to have effective assistance of counsel to cross examine witnesses will be rendered meaningless. *See* Dkt. 476 at 9 (quoting *State v. Goins*, 2017UT 61, ¶ 34, 423 P.3d 1236 for the proposition that “[a] defense attorney who assumes that the magistrate will conduct a preliminary hearing that comports with article I, section 12 does not have an incentive to prepare to thoroughly cross-examine on credibility.”)).

Further, like its citation to *Sanwick*, the State’s reliance on Utah Rule of Criminal Procedure 7B for the proposition that “[a] defendant also has the right to call witnesses” proves too much. *Opp.* at 14. Rule 7B(a) does in fact state that “[a]t the conclusion of the state’s case, the defendant may testify under oath, call witnesses, and present evidence. The defendant may also cross-examine adverse witnesses.” As indicated above, in *Sanwick* the Utah Supreme Court agreed with the defendant that the similarly worded Utah Code § 77-18-103(9)(a) guaranteed the

right to cross examine hearsay declarants at a sentencing hearing. *Sanwick*, 713 P.2d at 709. The same result should follow here given the State’s insistence that preliminary hearings are comparable to other hearings held for purposes of determining procedural rights.

The State again urges the Court to follow the Wisconsin Supreme Court in *O’Brien*, which rejected a similar due process claim based solely on the reasoning that “[t]he United States Supreme Court has determined that informal proceedings are sufficient for probable cause determinations.” *Opp.* at 14 (quoting *O’Brien*, 850 N.W.2d at 20 (citing *Gerstein*, 420 U.S. at 121)). The Court should decline the invitation because *O’Brien* is not only inconsistent with *Matter of Crim. Investigation* and *Sanwick*, but its reasoning represents a gross misreading of *Gerstein*.

As Mr. Robinson’s motion explains at pages five through six, the Court in *Gerstein* took great pains to distinguish the non-adversarial probable cause determination required by the Fourth Amendment and referenced by *O’Brien*, from the formal adversary preliminary hearing at issue in *Coleman*. *See also Gerstein*, 420 U.S. at 120 (describing the full panoply of adversary safeguards—counsel, confrontation, cross-examination, and compulsory process for witnesses available at the “full preliminary hearing...modeled after the procedure used in many States to determine whether the evidence justifies going to trial under an information or presenting the case to a grand jury” and then stating that “[t]hese adversary safeguards are not essential for the probable cause determination required by the Fourth Amendment.”); *Williams v. Kobel*, 789 F.2d 463, 468-69 (7th Cir.1986) (discussing the distinction between the probable cause determination under Illinois law at the preliminary hearing for binding over for trial and the probable cause required to make a warrantless arrest); *Lewis v. Dart*, 2010 WL 2990101, at *3 (N.D. Ill. July 22, 2010) (“The ‘probable cause’ determination in the preliminary hearing is to determine if there is

a reason to hold the accused over for trial, not whether there was probable cause to arrest and detain as required by *Gerstein*.”).

The State also asks the Court to rely on the terse reasoning of *Peterson v. California*, which rejected a procedural due process claim similar to the one raised here with the comment that “[i]f the phrase ‘due process of law’ in the Fifth Amendment does not prohibit the use of hearsay in grand jury proceedings, then the same phrase in the Fourteenth Amendment cannot be read to prohibit the use of hearsay evidence at a preliminary hearing.”. *Opp.* at 15 (quoting *Peterson*, 604 F.3d at 1171). If this logic was sound, and it was really true that a defendant’s rights at a preliminary hearing must be restricted to the rights granted at a grand jury proceeding, then *Coleman* would have rejected out of hand defendant’s claim of entitlement to the effective assistance of counsel at a preliminary hearing because there is obviously no right to counsel at grand jury proceedings. *Peterson* is not persuasive.

Lastly, the State claims that Mr. Robinson’s equal protection claim is flawed because “he makes no effort to explain how a parolee facing the reimposition of the remainder of his prison sentence is similarly situated to a pretrial detainee, who will not be subject to a prison sentence without first being convicted at trial with full confrontation rights.” *Opp.* at 20. Mr. Robinson’s motion at pages ten to fifteen explains in great detail how parolees are similarly situated to a pretrial detainee like Mr. Robinson who is facing the same *prolonged pretrial detention* that a parolee is facing when he is detained on a parole violation and faces revocation. The State’s sleight of hand in substituting the words “prison sentence [following a trial and conviction]” for the words “prolonged pretrial detention” in the foregoing comparison is an apples and oranges comparison that incorrectly assumes that fundamental constitutional protections such as the right to counsel and the right to confront and cross examine hearsay declarants have no role to play in

any context outside a criminal trial itself. *Morrissey v. Brewer*, 408 U.S. 471 (1972), and the Supreme Court’s rulings cited in Mr. Robinson’s *Motion* requiring such protections in a civil context refute the premise of this illogical comparison. And as the Ninth Circuit has held in response to the identical argument made with respect to the Sixth Amendment right to counsel:

Again citing no authority, the dissent claims that “the harm the Sixth Amendment protects against is a conviction obtained through uncounseled critical stages” and that “[t]here’s no *independent* Sixth Amendment protection against being held in pretrial custody without counsel.” In other words, the dissent apparently believes there is *no* Sixth Amendment protection for those jailed by the state before conviction, when they are presumed innocent, and that Sixth Amendment protection only kicks in *after* they have been proven guilty beyond a reasonable doubt. This cannot be correct. The Sixth Amendment’s protection applies to “all criminal prosecutions.” U.S. Const. Amend. VI. The dissent would edit the Sixth Amendment from “prosecutions” to “prosecutions that *result in convictions*.” This view also ignores all of the caselaw, ... holding that the Sixth Amendment provides essential protection for defendants awaiting trial.

Betschart, 103 F.4th at 618 (emphases in original).

III. Article 1, Section 12 and Rule 1102 Violate the Due Process Clause of the Fourteenth Amendment Because They Establish an Unconstitutional Mandatory Presumption of Reliability for an Overbroad Range of Hearsay Evidence.

The State’s response to this claim is again an instance where the State is taking inconsistent positions. The State now claims that Rule 1102 does not create an unconstitutional mandatory presumption because it “merely deem[s] evidence to be *admissible*” and does not create “a mandatory presumption that the evidence is *credible*.” *Opp.* at 15 (emphasis in original). But that is not what the State told the Court in its *Memorandum in Opposition to Defendant’s Motion to Continue Preliminary Hearing*, filed April 3, 2026 (Dkt. 476) where the State emphasized that “Rule 1102(b)(4) of the Utah Rules of Evidence deems ‘scientific, laboratory, or forensic reports and records’ to be reliable hearsay admissible without foundation or the testimony of their author” (*id.* at 5), and that “[b]y definition, [hearsay expert reports] are reliable hearsay[.]” (*id.* at 6). The State’s present position is both inconsistent with its prior

position and with the plain language of Rule 1102 which clearly does much more than deem a broad range of hearsay evidence admissible. Rule 1102 dictates that all such evidence must be deemed by the Court to be “reliable hearsay.” Therefore, unless there is some distinction between “credible” evidence and “reliable” evidence, which the State does not advance, Rule 1102 creates an unconstitutional mandatory presumption. *See State v. Robbins*, 2009 UT 23, ¶¶ 14, 20, 210 P.3d 288 (using “reliable evidence” and “credible evidence” interchangeably).

The State’s remaining responses to this claim are all premised on the clearly erroneous premise that Rule 1102 merely deems certain evidence admissible. For instance, the State claims that “mandatory presumptions are improper only when they pertain to ultimate issues that a factfinder must determine, not merely to the admissibility of certain evidence.” *Opp.* at 16. An ultimate issue that this Court must determine at the preliminary hearing is whether the hearsay evidence that the State will offer to establish the elements of the charged crime is “reliable,” or, in the words of the State, “credible.” Rule 1102 dictates that all such evidence must be deemed “reliable” and thus credible evidence. Because of this Rule it is simply not true, as the State contends, that “[t]he ultimate determination of whether evidence is credible always rests with the factfinder.” *Opp.* at 15.

The State further contends that “if Defendant were correct that presumptions of admissibility are improper, then any number of evidentiary rules would be unconstitutional.” *Opp.* at 16. Once again, as the State itself conceded in Dkt. 476, Rule 1102 does not create a “presumption of admissibility”, but rather, a “presumption of reliability”.

As Mr. Robinson argues in his motion at page nineteen, the fundamental constitutional flaw in Rule 1102 is that it seeks to replace the magistrate’s duty to “assess the credibility of the evidence presented” with a legislatively created irrebuttable presumption that broad categories of

hearsay evidence must be considered “reliable hearsay”. Unlike the rebuttable presumption upheld in *Murray City v. Hall*, 663 P.2d 1314, 1320 (Utah 1983) and *Roosevelt City v. Nebeker*, 815 P.2d 738, 739-40 (Utah Ct. App. 1991) (*see Mtn* at 16-17) the irrebuttable presumption contained in Rule 1102 is not confined to a narrow range of hearsay evidence the reliability of which has “universal acceptance”, it does not leave the ultimate question of reliability of evidence in the hands of the magistrate, it establishes conclusive evidence that the hearsay is reliable, and it does not constitute “a very limited intrusion upon an accused’s right of confrontation.” *Hall*, 663 P.2d at 1320-22. Rule 1102 should therefore be found unconstitutional.

IV. Utah Constitution Article 1, Section 12 and Rule 1102 Violate Mr. Robinson’s Eighth Amendment Right to be Free from Cruel and Unusual Punishment.

The State’s first response to this claim is that Mr. Robinson’s motion “cites no authority establishing that the heightened reliability required to impose a death sentence applies to pretrial proceedings.” *Opp.* at 20. The State has overlooked Mr. Robinson’s citation to *Ford v. Wainwright*, which broadly proclaims that “[i]n capital proceedings generally, this Court has demanded that factfinding procedures aspire to a heightened standard of reliability.” 477 U.S. 399, 411 (1986). The State does not and cannot claim that this case is presently not a “capital proceeding[]” or that a preliminary hearing is not a “factfinding procedure.” *Ford* therefore applies to this case. *See also Deck v. Missouri*, 544 U.S. 622, 632 (2005) (“The Court has stressed the ‘acute need’ for reliable decisionmaking when the death penalty is at issue.”).

In making this argument, the State also completely ignores another Eighth Amendment principle that Mr. Robinson invokes at page twenty-one of his motion, which is that “[w]hen a defendant’s life is at stake, the Court has been particularly sensitive to insure that every safeguard is observed.” *Gregg v. Georgia*, 428 U.S. 153, 187 (1976). The State does not and cannot claim that Mr. Robinson’s life is not presently at stake or that the right to confront

hearsay declarants at a preliminary hearing is not encompassed within the broad phrase “every safeguard.”

To the State’s point that there is “no authority establishing that the heightened reliability required to impose a death sentence applies to pretrial proceedings”, California has a long line of cases establishing exactly that proposition. The leading case is *Ghent v. Superior Ct.*, 153 Cal. Rptr. 720, 726–27 (Cal. Ct. App. 1979), where the Court held:

Allegations of special circumstances may produce the penalty of death, which cannot realistically be equated with “additional punishment” because it is Total punishment. (See *Woodson v. North Carolina* (1976) 428 U.S. 280, 305 [.]) They are thus distinguishable from “enhancement” allegations on the stark basis that death is distinguishable from life. A further distinction appears in the gross disparity between the consequences of “enhancement” allegations, on the one hand, and allegations of special circumstances on the other.

These distinctions invalidate [cases involving non-capital enhancements] as authority for the Attorney General’s argument that allegations of special circumstances may not be challenged on a section 995 motion [challenging a bindover]. The distinctions also demonstrate that the People, as well as the accused, have an overriding interest in the assurance that these allegations are founded on perceptible evidence showing reasonable cause to make them and to assume their portentous consequences in a prosecution for murder. ... That assurance will be forthcoming only if the prosecuting authorities produce the requisite evidence at the pre-accusatory inquiry on the murder charge And if its sufficiency to support the allegations may be tested in a pretrial procedure which includes appellate review.

See also *Ramos v. Superior Ct.*, 648 P.2d 589, 593 (Cal. 1982) (“Following *Ghent*’s lead, a number of Court of Appeal decisions have confirmed that the adequacy of evidence to support a charged special circumstance allegation may be reviewed under section 995.”).

In contrast to these cases, the State reads the Supreme Court’s Eighth Amendment jurisprudence narrowly, contending that “[w]hile the Eighth Amendment imposes a ‘heightened reliability’ requirement in capital cases, that requirement applies ‘in the determination [of] whether the death penalty *is appropriate* in a particular case.’” *Opp.* at 20-21 (quoting *Sumner v.*

Shuman, 483 U.S. 66, 72 (1987)) (emphasis added). The one sentence that the State plucks out of context from *Sumner* states:

In explaining why the guided-discretion statutes of Georgia, Florida, and Texas were facially valid, but the mandatory statutes of North Carolina and Louisiana were not, the Court relied to a significant degree on the unique nature of the death penalty and the heightened reliability demanded by the Eighth Amendment in the determination whether the death penalty is appropriate in a particular case.

Sumner, 483 U.S. at 72. The State interprets this one sentence to mean that while the Eighth Amendment imposes a heightened reliability requirement in capital cases, that requirement applies *only* “‘in the determination [of] whether the death penalty *is appropriate* in a particular case.” *See Opp.* at 20-21. Neither *Sumner* nor any other Supreme Court case so holds, and as the State apparently concedes *Beck v. Alabama*, 447 U.S. 625 (1980) flatly contradicts that notion. *See Opp.* at 21. *See also California v. Ramos*, 463 U.S. 992, 1009 (1983) (“T]he concern of *Beck* regarding the risk of an unwarranted conviction is simply not directly translatable to the deliberative process in which the capital jury engages in determining the appropriate penalty, where there is no single determinative issue apart from the general concern that the penalty be tailored to the individual defendant and the offense.”).

The State dismisses *Beck* on the ground that “*Beck*’s holding that jurors must be instructed on lesser-included offenses was based on due process, not a conclusion that the Eighth Amendment’s heightened reliability standard required that result.” *Opp.* at 21. The State is wrong. In *Beck*, the petitioner contended that “the prohibition on giving lesser included offense instructions in capital cases violates both the Eighth Amendment as made applicable to the States by the Fourteenth Amendment and the Due Process Clause of the Fourteenth Amendment by substantially increasing the risk of error in the factfinding process.” 447 U.S. at 632. The Court agreed with this contention, ruling that

To insure that the death penalty is indeed imposed on the basis of “reason rather than caprice or emotion,” we have invalidated procedural rules that tended to diminish the reliability of the sentencing determination. The same reasoning must apply to rules that diminish the reliability of the guilt determination. Thus, if the unavailability of a lesser included offense instruction enhances the risk of an unwarranted conviction, Alabama is constitutionally prohibited from withdrawing that option from the jury in a capital case.

Id. at 638. The Court then dropped a footnote, which reads: “We need not and do not decide whether the Due Process Clause would require the giving of such instructions in a noncapital case.” *Id.* at 638 n.14. The State seizes on this footnote as somehow indicating that the Court was placing no reliance on the Eighth Amendment. *Opp.* at 21. However, *Beck* specifically references the death penalty as the basis for the Court’s decision. *See also Howell v. Mississippi*, 543 U.S. 440, 442 (2005) (referring to *Beck* as establishing a “rule of our capital jurisprudence.”); *Ohio Adult Parole Auth. v. Woodard*, 523 U.S. 272, 280 (1998) (describing *Beck* as an “Eighth Amendment decision[] holding that additional procedural protections are required in capital cases”).

As Mr. Robinson argues, application of article 1, section 12 and Rule 1102 in this case would violate the Eighth Amendment principle of heightened reliability because it would allow the Court to make a critical factual finding necessary for the State’s continued pursuit of the death penalty based on evidence that has not been subjected to the full adversarial testing process, and that is based on an assessment by the Legislature, and not a court, that certain evidence is reliable. *See Mtn.* at 20-21. Further, these unique Utah provisions eliminate the procedural rights of confrontation and cross examination, rights which are afforded even to alleged parole and probation violators. They thus violate another precept of Eighth Amendment jurisprudence, which is that “[w]hen a defendant’s life is at stake, the Court has been particularly

sensitive to insure that every safeguard is observed.” *Gregg*, 428 U.S. at 187. The State’s incorrect legal analysis does not address or rebut these arguments.

Lastly, without citing any authority for the proposition, the State makes the bizarre argument that this Court should apply the appellate concept of harmless error at a point in the proceedings when the Court has the opportunity to prevent the error from ever happening. The State asserts:

Moreover, even if the admission of reliable hearsay at Defendant’s preliminary hearing somehow decreased the reliability of the probable cause determination there, Defendant still would be eligible for the death penalty only if he were later convicted beyond a reasonable doubt at the guilt phase of his trial where the Confrontation Clause would apply. That conviction beyond a reasonable doubt would cure any defect in the preliminary hearing proceeding. *See Thomas v. State*, 2002 UT 128, ¶ 7, 63 P .3d 672 (“[A]n error at the preliminary stage is cured if the defendant is later convicted beyond a reasonable doubt.”) (cleaned up). The Eighth Amendment has no application to this pretrial hearing.

Opp. at 22.

A very similar argument was strongly rejected by the Ninth Circuit in the context of a Sixth Amendment right to counsel in *Betschart*,

The dissent ignores ... bedrock Sixth Amendment cases and dismisses every Sixth Amendment violation that occurs prior to a jury verdict as “collateral.” That is incorrect. The Sixth Amendment is not a haphazard jack-in-the-box that occasionally appears when cranked. As the Supreme Court made clear when rejecting a similar argument, it is an ongoing right that persists throughout trial court proceedings. *See [Lafler v. Cooper]*, 566 U.S. 156, 164-65 (2012)] (“[T]he Solicitor General claim[s] that the sole purpose of the Sixth Amendment is to protect the right to a fair trial. Errors before trial, they argue, are not cognizable under the Sixth Amendment unless they affect the fairness of the trial itself. The Sixth Amendment ... is not so narrow in its reach.” (citations omitted)); *see also [Padilla v. Kentucky]*, 559 U.S. 356, 373 (2010)] (detailing counsel’s duty to provide competent immigration advice to defendants during plea bargaining). [*United States v. Leonti*, 326 F.3d 1111, 1117 (9th Cir. 2003)], a case the dissent itself cites, also undercuts its argument. *Leonti* held that the right to counsel extended to the entire period of time in which a defendant could “attempt[] to render substantial assistance to the government” to lower his sentence—*after*

pleading guilty and thus, *after* the merits of his case were already decided. 326 F.3d at 1122.

103 F.4th at 621 (emphasis in original). This Court should likewise reject the State's argument that the Eighth Amendment does not apply to pretrial proceedings.

V. Article 1, Section 12 and Rule 1102 violate the Fourth Amendment and Separation of Powers Principles.

The State's response to Mr. Robinson's separation of powers claim is both incomplete and muddled.

More specifically, the State does not respond to Mr. Robinson's Fourth Amendment claim, which is based on the holding in *Gerstein* that the Fourth Amendment requires as a precondition to detaining an arrestee for a significant time pending trial a prompt determination of probable cause, and that "[w]hatever procedure a State may adopt, it must provide a *fair and reliable determination* of probable cause as a condition for any significant pretrial restraint of liberty, and this determination must be made by a *judicial officer* either before or promptly after arrest." *Gerstein*, 420 U.S. at 124-25 (emphasis added). *See also Virgin*, 2006 UT 29, ¶¶ 21-24 ("*[M]agistrates* must, to a certain extent, assess the credibility of the evidence presented." (emphasis added)); *Mtn.* at 21-23.

Mr. Robinson argues that a State cannot avoid this federal constitutional and state law requirement by mandating, without any procedural safeguards, that all expert and lay hearsay reports offered by the prosecution shall be admissible and conclusively reliable, which in effect shifts the determination of probable cause solely to the Legislature and the prosecutor and unconstitutionally allows for a finding of probable cause based solely on hearsay that has never been tested. *See Mtn.* at 22. The State has conceded the validity of this argument by failing to respond to it.

The State's response to the separation of powers claim is muddled because it begins with the assertion that "Defendant fails to demonstrate that separation of powers principles can prohibit the legislature from classifying certain evidence as reliable hearsay" *Opp.* at 22. This would seem to be an implicit concession of the fact that in Rule 1102 the legislature was in fact "classifying certain evidence as reliable hearsay", which of course is in contradiction to the State's response on the unconstitutional presumption claim where the State was adamant that Rule 1102 was only deeming certain evidence admissible. To confuse things further, on the very next page after asserting that Mr. Robinson fails to demonstrate that separation of powers principles can prohibit the legislature from classifying certain evidence as reliable hearsay, the State reverts back to the position it asserted in response to the unconstitutional presumption claim by arguing that "as explained, even when reliable hearsay is admitted at a preliminary hearing, the determination of whether the admissible evidence demonstrates probable cause rests solely with the magistrate." *Opp.* at 23. As argued above, that argument is contradicted by the plain language of Rule 1102.

Although not developed, the State also asserts that no separation of powers issue is present in this case because "[t]he Utah Constitution expressly allows for the admission at a preliminary hearing 'of reliable hearsay evidence as defined *by statute or rule.*' Utah Const. art. I, § 12 (emphasis added)", and "[t]his provision therefore expressly allows the legislature to define categories of reliable hearsay." *Opp.* at 22-23 (emphasis in original). What this argument is apparently directed to is article V, section 1 of the Utah Constitution, which provides:

The powers of the government of the State of Utah shall be divided into three distinct departments, the Legislative, the Executive, and the Judicial; and no person charged with the exercise of the powers properly belonging to one of these departments, shall exercise any functions appertaining to either of the others, except in the cases herein expressly directed or permitted.

Utah Const. art. V, § 1.

To determine whether a statute or rule violates this provision, the Utah Supreme Court applies an analytical model that poses three questions:

First, are the [actors] in question “charged with the exercise of powers properly belonging to” one of the three branches of government? Second, is the function that the statute has given the [actors] one “appertaining to” another branch of government? The third and final step in the analysis asks: if the answer to both of the above questions is “yes,” does the constitution “expressly” direct or permit exercise of the otherwise forbidden function? If not, article V, section 1 is transgressed.

In Re Young, 1999 UT 6, ¶ 8, 976 P.2d 581 (quoting Utah Const. art. V, § 1).

The State appears to be conceding that the answer to the first two questions is “yes”, since its only argument is that article 1, section 12 “expressly allows the legislature to define categories of reliable hearsay.” *Opp.* at 23. It is questionable, however, whether the voters who passed Proposition 1 in 1994 ever expressly allowed the legislature to define categories of reliable hearsay as broadly as the Utah Legislature did in Rule 1102.

Utah Proposition 1, captioned “Rights Of Crime Victims”, was on the ballot as a legislatively referred constitutional amendment in Utah on November 8, 1994. It was approved. See Utah Voter Information Pamphlet (General Election Nov. 8, 1994), available at <https://vote.utah.gov/wp-content/uploads/2023/09/1994-IP.compressed.pdf>.

According to the Impartial Analysis in the Voter Information Pamphlet, the purpose of the provision amending article I, section 12 to allow the use of reliable hearsay at a preliminary hearing was as follows:

Hearsay is a statement that is made by a person outside the courtroom which may be retold by another person in the courtroom to prove the truth about something in the case. Under this proposal, reliable hearsay may be used by the magistrate at a preliminary hearing under rules or statutes which define the hearsay standards more broadly than under existing courts rules of evidence. For example, a magistrate could rely solely on the law enforcement officer’s

testimony at the preliminary hearing to determine probable cause when the investigating officer gives the victim's description of the crime, This means that the crime victim need not testify in person and be cross-examined by the defendant's attorney for the court to determine probable cause at this stage of the criminal proceedings. The provisions protecting the use of reliable hearsay may apply also at any pretrial proceeding, such as a bail hearing concerning the release of the defendant.

Id. at 8.

It is readily apparent that Rule 1102 went well beyond the one example cited in the Voter Information Pamphlet to inform voters of the meaning of the proposed amendment. In light of this history, the Court should conclude that all three requirements of the *In Re Young* test are met and that Rule 1102 violates Utah Const. art. V, § 1 and that in any event article 1, section 12 and Rule 1102 violate the Fourth Amendment.

VI. Article 1, Section 12 and Rule 1102 violate the Confrontation Clause of the Sixth Amendment.

The State relies primarily upon *State v. Timmerman*, 2009 UT 58, to address Mr. Robinson's Sixth Amendment Confrontation Clause challenge to article 1, section 12 and Rule 1102. *Opp.* at 3-6. Despite *Timmerman*, Mr. Robinson maintains that article 1, section 12 and Rule 1102 violate the Confrontation Clause of the Sixth Amendment. *Mtn.* at 23-24. *Timmerman* runs contrary to federal constitutional law.

First, *Timmerman* never addresses the text of the Sixth Amendment, which enumerates an accused's rights "in all criminal prosecutions." The very words "in all criminal prosecutions" signify that the confrontation right is guaranteed in proceedings before, during, and after the trial. The text of the Sixth Amendment does not use the word "trial" in stating the accused's confrontation right. In comparison, the accused's Sixth Amendment right to "enjoy the right to a speedy and public trial" explicitly refers to "speedy and public" as a trial right.

In its cases interpreting and applying the enumerated Sixth Amendment right to counsel, the Court has interpreted the Sixth Amendment text “in all criminal prosecutions” to mean at “critical stages” of the criminal prosecution. *See, e.g., Coleman v. Alabama*, 399 U.S. at 7 (an accused “requires the guiding hand of counsel at every step in the proceedings against him” (quoting *Powell*, 287 U.S. at 69)); *United States v. Wade*, 388 U.S. 218, 226 (1967) (“It is central to that principle that *in addition to counsel’s presence at trial*, the accused is guaranteed that he need not stand alone against the State at any stage of the prosecution, formal or informal, in court or out, where counsel’s absence might *derogate from the accused’s right to a fair trial*.” (emphasis added)).

The United States Supreme Court has also declared that an accused’s Sixth Amendment right to a public trial grants an accused the right to a public suppression hearing. *See Waller v. Georgia*, 467 U.S. 39 (1984). Given these decisions, the text of the Sixth Amendment, and the historical background of the Confrontation Clause set forth in *Crawford* and summarized above, there is no sound reason to invoke a selective interpretation of the words “in all criminal prosecutions.”

Second, *Timmerman* relied on the statement in *Barber v. Page*, 390 U.S. 719, 725 (1968) that “[t]he right to confrontation is basically a trial right.” *Timmerman*, 2009 UT 58, ¶ 10. But as Justice Abrahamson has correctly noted,

Indeed, the United States Supreme Court has never explicitly held that the Confrontation Clause is an accused’s right at trial only. True, the Court has referred to confrontation as a trial right or a right at trial in its discussion of the Sixth Amendment. But these references have been in the context of cases involving trials. It makes good sense to confine an opinion’s discussion to the facts presented—which, in each of the Court’s cases referenced by the majority opinion, was a trial. It does not make good sense to extrapolate from these decisions that the confrontation right is exclusively a right at trial.

State v. Zamzow, 2017 WI 29, ¶¶ 45-46, 892 N.W.2d 637 (Abrahamson, J., dissenting)

Third, *Timmerman* placed heavy reliance on the Court’s conclusion that “*Gerstein* failed to clarify the relevant differences between an arraignment and a preliminary hearing.” 2009 UT 58, ¶ 12. As demonstrated above and in *Gerstein* itself, that is manifestly not true.

Lastly, although *Timmerman* itself does not cite any decisions from the lower federal court supporting its brief discussion of the Confrontation Clause claim in that case, it does cite several state court decisions which in turn rely on a number of lower federal court decisions. *Timmerman*, 2009 UT 58, ¶ 13 n. 2. These federal decisions are also cited in the State’s *Opposition. Opp.* at 4.

The federal cases that the State cites for the proposition that the Sixth Amendment right to confrontation applies only at trial are unconvincing and provide a shaky foundation upon which the State cases relied upon by *Timmerman* are built. *United States v. Campbell*, 743 F.3d 802, 806 (11th Cir. 2014) did not involve preliminary hearing procedure and held only that “[b]ecause the stateless nature of Campbell’s vessel was not an element of his offense to be proved at trial, the admission of [a] certification [at a pretrial hearing] did not violate his right to confront the witnesses against him.” The *Campbell* Court cited several cases in support of the its holding, including *United States v. Nueci-Peña*, 711 F.3d 191, 199 (1st Cir. 2013) (holding that “[i]n this non-trial context, where evidence does not go to guilt or innocence, the Confrontation Clause does not apply” (citation omitted)) and *United States v. Clark*, 475 F.2d 240, 247 (2d Cir. 1973) (holding that the confrontation right applies at a pretrial suppression hearing because “the suppression hearing centers upon the validity of the search for and seizure of evidence which the government plans to use later in seeking to prove guilt”). *Campbell*, 743 F.3d at 808-09. *Campbell* expressly declared: We need not decide whether the Confrontation Clause could ever apply to a pretrial determination and conclude only that it does not apply to this pretrial

determination of jurisdiction where the certification does not implicate either the guilt or innocence of a defendant charged with an offense under the Act.” *Id.* at 809. Unlike the hearsay evidence at issue in *Campbell*, the hearsay at issue here does relate to all of the elements of the offense to be proved at trial.

Cited also by *Timmerman*, 2009 UT 58, ¶ 10, *United States v. Andrus*, did not involve preliminary hearing procedure and held only that a trial court could use hearsay evidence in determining whether a foundation had been established for the admissibility of a co-conspirator statement at trial. 775 F.2d at 836. In the course of reaching that decision, the *Andrus* Court stated in dicta that “the sixth amendment does not provide a confrontation right at a preliminary hearing”, citing to *United States v. Harris*, 458 F.2d 670, 677–78 (5th Cir. 1972), but the court’s ultimate holding was that “[a] hearing to determine whether statements are admissible under rule 801(d)(2)(E) does not take place before the jury, nor does it determine the guilt of the defendant.” *Andrus*, 775 F.2d at 836. Here, the hearsay evidence sought to be admitted will determine Mr. Robinson’s probable guilt.

United States v. Harris, in turn, involved a claim that the failure to require a pre-trial hearing for the purpose of having a government witness identify the defendants prior to trial was reversible error. 458 F.2d at 672. The case was prosecuted by way of indictment, not preliminary hearing. *Id.* The court’s entire discussion of the issue presented, rendered three years before *Gerstein*, 420 U.S. at 119-120, declared that “[t]he importance of the issue [presented at a preliminary hearing] to both the State and the accused justifies the presentation of witnesses and full exploration of their testimony on cross-examination”, was as follows:

“We find no merit whatsoever to appellants’ fourth contention, that they were denied their Sixth Amendment right to confront witnesses against them. Each of the appellants confronted and cross-examined witness Johnson, the alleged co-conspirator, during the trial. There is no Sixth Amendment requirement that they

also be allowed to confront Johnson at a preliminary hearing prior to trial. The indictment returned by a grand jury is sufficient to establish probable cause for trial, and further preliminary hearing for the purpose of direct pre-trial identification of any defendant is not constitutionally mandated.

Harris, 458 F.2d at 677 (citing *Swingle v. United States*, 389 F.2d 220 (10th Cir. 1968)). *Swingle* held only that, “[i]n the case at bar the appellant was arrested upon a grand jury indictment. No provision is found in the rules for a preliminary examination under this circumstance.” 389 F.2d at 223.

Peterson v. California, 604 F. 3d at 1166, did involve a Confrontation Clause challenge to California’s preliminary hearing procedures, but as *Whitman v. Superior Ct.*, 820 P.2d 262, 274 (Cal 1991), *Hosek v. Superior Ct.*, 12 Cal. Rptr. 2d 650, 652 (Cal. Ct. App. 1992), and the Boudin article discussed above demonstrate, California’s allowance of hearsay at a preliminary hearing is far more limited than is allowed in Utah and such hearsay has not been deemed to be reliable by the legislature.

Moreover, for a number of reasons, *Peterson*’s rejection of a Confrontation Clause challenge to California’s preliminary hearing procedure is based on faulty reasoning and is therefore not controlling or persuasive.

First, *Peterson* stressed that “the preliminary hearing itself is not constitutionally mandated.” *Peterson*, 604 F.3d at 1169. If that logic was sound, there would have been no reason for the Supreme Court to have held in *Hurtado*, 110 U.S. at 538 that,

[W]e are unable to say that the substitution for a presentment or indictment by a grand jury of the proceeding by information after examination and commitment by a magistrate, certifying to the probable guilt of the defendant, with the right on his part to the aid of counsel, and to the cross-examination of the witnesses produced for the prosecution, is not due process of law.

The Court could simply have disposed of the case in a brief opinion like the one in *Peterson* declaring that since “the preliminary hearing itself is not constitutionally mandated”, no constitutionally enforceable rights attach to that hearing.

Similarly, in *Coleman*, 399 U.S. at 8, where the Court expressly acknowledged that “[t]he preliminary hearing is not a required step in an Alabama prosecution”, if the logic of *Peterson* was sound, there would have been no need for the Court to have held, as it did, that the defendant was constitutionally entitled to the effective assistance of counsel at a preliminary hearing. *Id.* at 9.

Second, *Peterson* found it significant that “both the Fifth and Seventh Circuits have held that there is no right to confront witnesses at a preliminary hearing before being required to stand trial.” 604 F.3d at 1170 (citing *Harris*, 458 F.2d at 677-78; *Andrus*, 775 F.2d at 836). But as just demonstrated, neither *Harris* nor *Andrus* involved preliminary hearing procedure and the courts’ brief dicta about preliminary hearings were not holdings essential to the decision of those cases.

Third, like *Timmerman*, *Peterson* reasoned that “the United States Supreme Court has repeatedly stated that the right to confrontation is basically a trial right” (604 F.3d at 1169), without ever addressing the analysis of this claim set forth above or the text of the Sixth Amendment. Yet in its more recent decision in *Betschart*, quoted above, it takes a very expansive view of the Sixth Amendment and counsel’s duties under that Amendment. *See, e.g.*, 103 F.4th at 620 (“The right to counsel encompasses myriad attorney duties beyond mere presence at certain pretrial hearings.”). *Peterson*’s perfunctory analysis of the Sixth Amendment cannot be squared with the Ninth Circuit’s sweeping decision in *Betschart*.

CONCLUSION

For all of the foregoing reasons, and those stated in Mr. Robinson's motion this Court should rule that article I, section 12 and Rule 1102 are constitutionally infirm under the Federal Constitution and that the State is therefore precluded from utilizing article I, section 12 of the Utah Constitution, and Rule 1102 of the Utah Rules of Evidence to sanction the admissibility of hearsay evidence to establish probable cause at the preliminary hearing.

RESPECTFULLY SUBMITTED this 3rd day of June, 2026.

/s/ Kathryn N. Nester
Kathryn N. Nester

/s/Richard G. Novak
Richard G. Novak

/s/ Michael N. Burt
Michael N. Burt

/s/ Staci Visser
Staci Visser

Attorneys for Defendant, Tyler James Robinson

CERTIFICATE OF SERVICE

This is to certify that a true and correct copy of the foregoing was served via the Court's electronic filing system on the 3rd day of June 2026, which served all attorneys of record.

/s/ Staci Visser

Staci Visser

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1 June 12, 2026; 12:47 PM

2 * * *

3 **THE COURT:** All right. We're switching gears, going
4 to the motion in limine to exclude hearsay statements, as -- as
5 mentioned in the briefing. Again, I will note that the Court
6 has examined those briefings in detail. And so the Court
7 wishes for limited argument, as the briefing provides a lot of
8 guidance from both sides on the -- the parties' positions.

9 And so if the parties would like to take up to 15
10 minutes to argue that, you certainly can. And then we'll go to
11 the final issue that Mr. Novak brought up in the beginning.

12 And as this is defense's motion, we'll turn to
13 defense.

14 Mr. Burt.

15 **MR. BURT:** Thank you. Good morning, Your Honor.

16 **THE COURT:** Good morning -- well, afternoon now.

17 **MR. BURT:** Afternoon, I guess.

18 **MR. NOVAK:** My fault.

19 **MR. BURT:** Judge, as the Court knows, and as you've
20 just noted, there has been extensive briefing here. I'm not
21 going to get into all the technical arguments, and there are
22 many here. But the briefing outlines six different bases for
23 the Court to find here that the use of hearsay evidence in this
24 particular preliminary hearing, in this death penalty case, is
25 unconstitutional under the federal constitution.

1 The state constitution has separate rules, as we
2 outline in the -- in the brief. And I know the Court is
3 familiar with those. But the constitutional issues raised
4 under the federal constitution are unique. For the most part,
5 they have not been addressed by any Utah court, with one
6 exception, and that's the confrontation clause objection that
7 is addressed in Timmerman.

8 But as to our other arguments, procedural due
9 process, equal protection, the Sixth Amendment right to
10 counsel, those issues have not been addressed. And there is,
11 of course, one issue, separation of powers, that's a state law
12 issue, that has also not been addressed by any Utah court.

13 But I wanted to take just a few minutes with the
14 Court, if I could, to outline why this motion is important in
15 this particular case. I don't think that's really outlined in
16 the motion, but I think it's important for the Court to
17 consider.

18 And I know the Court has not reviewed the exhibits
19 that have been submitted to the defense from the prosecution in
20 terms of what they're going to present at the preliminary
21 hearing. But I'll represent to the Court that for the most
22 part, the State -- and I'm sure they'll correct me if I'm -- if
23 I'm wrong on this -- intends to rely almost exclusively on
24 hearsay evidence at this preliminary hearing to make out the
25 elements to the charges and allegations, and especially the

1 death penalty eligible allegations against Mr. Robinson.

2 And probably most problematic, from our standpoint,
3 is that the -- the central witness who is going to be presented
4 against Mr. Robinson, is a witness who the prosecution and the
5 federal government have given promises of immunity to. And in
6 lieu of putting that witness on the stand and subjecting him to
7 cross-examination, they met with this witness outside the
8 presence of the defense, asked a series of leading questions,
9 that the witness was asked to agree to, videotaped it. And the
10 State proposes to introduce that into evidence.

11 In addition, a prominent feature of the evidence at
12 the prelim will be a number of forensic reports by federal and
13 possibly some state law enforcement forensic examination
14 examiners. And those reports, for the most part, are simply
15 conclusory opinions about certain findings that were made.
16 There is no indication on the face of the report as to the
17 methodology that was used, or the reliability of those methods.
18 The reports are simply going to present the Court with
19 conclusions.

20 And then the State is going to rely on Section 1102
21 of the rules of evidence to urge this Court that those
22 statements by law are reliable evidence. And that's the gist
23 of the problem here, because 1102, in combination with Article
24 1, Section 12, essentially removes what was supposed to be this
25 Court's function at the preliminary hearing, which is to assess

1 the reliability and the credibility of the evidence.

2 And the intent of Article 1, Section 12, if the Court
3 goes back into the legislative history, was specifically to
4 remove the Court's discretion to decide whether certain
5 evidence was reliable, and that's where the separation of power
6 issue comes into play.

7 Now that, we say, violates the federal constitution
8 in a number of respects, and also the State separation of
9 powers provision. But I wanted to point out to the Court that
10 the State's position on this issue is really contrary to the
11 position they've taken on almost every other procedural issue
12 that has been raised in this case.

13 And the prime example is the one just presented to
14 the Court in connection with the OSC. One of the things that
15 Mr. McBride said was, "We have a duty to make sure the truth
16 gets out there." And similarly, the defense has a duty to make
17 sure that the defense -- the truth gets out there. And how
18 they do that in this system, traditionally and historically,
19 has been through the use of cross-examination, confronting
20 adverse witnesses.

21 Another example of the inconsistency that's being
22 urged upon the Court in the State's opposition to this motion.
23 The Court will recall the State's position on our motion to
24 exclude cameras from the courtroom. And Mr. Grunander began
25 his argument to the Court with this statement, "Your Honor,

1 mischief lurks in the dark or in secret, or that's at least how
2 many people view the workings of government, even the courts.
3 And while this is primarily the media's fight here, we do not
4 represent the media. We strongly support open and transparent
5 proceedings in this case, so that the public will trust the
6 process here. There are conspiracy theories that abound.
7 There are questions being raised, and the best antidote for
8 falsehood is the truth, is accuracy, it's the actual real
9 proceedings." And that's at page 214 of the hearing on
10 April 14th.

11 And similarly here, Your Honor, the defense's right
12 to cross-examine and confront adverse witnesses, immunize
13 witnesses in this case who are going to provide the bulk of the
14 evidence against Mr. Robinson. The purpose of our doing so is
15 to get at the truth, to lead to transparency.

16 And one of the articles that the State has cited to
17 the Court, as indicative of an analysis that's relevant to this
18 issue, is an article by a former district attorney, who -- this
19 is the Bowden article that the State cites. And one of the
20 things that Mr. Bowden, former prosecutor, says in his article
21 that the State cites is -- he's addressing the issue of why
22 it's important to have adversary proceedings at pretrial
23 proceedings, such as preliminary hearings.

24 And he says -- this is at page 1,148 of his
25 article -- "A system without adjudication lacks transparency.

1 The public normally has no way of learning why prosecutors make
2 the offers they do, or why certain cases reach certain
3 outcomes. The opacity prevents the public from understanding
4 how criminal courts function. It frustrates journalists and
5 scholars who wish to study criminal courts, and it distorts
6 democratic feedback as voters are left with little idea of how
7 these institutions work."

8 And the Court, in its rulings on public access, and
9 even this morning, you have also emphasized transparency as a
10 goal of the criminal justice system.

11 So this motion asks the Court: How can we further
12 transparency by relying exclusively, or almost exclusively in
13 this case, on hearsay evidence that implicates Mr. Robinson in
14 a death penalty case?

15 And we say to the Court that if the Court looks
16 carefully at the cases we've cited -- cited on the federal
17 constitutionality of this practice, the Court should determine
18 that it's simply unfair to proceed on the basis of hearsay in a
19 case where Mr. Robinson's life is at stake. The federal
20 constitution requires that people who are facing parole
21 revocations have the right to confront and cross-examine
22 witnesses.

23 The U.S. Supreme Court has determined that people
24 facing probation violations have a right to confront and
25 cross-examine witnesses. The State Supreme Court has

1 determined that people at suppression hearings have the right
2 to confront and cross-examine witnesses. The State Supreme
3 Court has determined that people who face sentencing have a
4 right to confront and cross-examine witnesses.

5 And we say that due process, equal protection, and
6 the other provisions we cite all point in the same direction,
7 which is that the Court should not -- should not allow the use
8 of hearsay to make the determination in this case that
9 Mr. Robinson should or should not be bound over for trial.

10 And I'll be glad to answer any questions the Court
11 may have. I know they're -- the briefing is fairly extensive,
12 so if the Court does have questions, I'm prepared to address
13 them.

14 **THE COURT:** I do. I have one question. I'll be
15 asking both sides this question.

16 **MR. BURT:** Sure.

17 **THE COURT:** And the Court previously indicated, and
18 you noted it, that it wasn't reviewing the exhibits ahead of
19 the preliminary hearing in order to go in with an open mind and
20 weigh it accordingly. But is it your request that the Court
21 review the proposed State's exhibits that relate to this motion
22 prior to the preliminary hearing?

23 **MR. BURT:** Your Honor, I think it would be helpful to
24 the Court to do that, because I think the Court would then have
25 a better context of just how central hearsay is going to play

1 in this case. And also, especially in regard to the crucial
2 witness, the immunized witness, how the State structured that
3 hearsay. And I think if the Court did that, it would -- it
4 would clearly see the importance of -- of cross-examination and
5 confrontation. So I would have no objection to it, and I would
6 urge the Court to do that.

7 **THE COURT:** And do you have those exhibits, those
8 exhibit numbers? And if you need time to confer with your team
9 as I go to the other side, I don't expect you to just come off
10 with those numbers off the top of your head.

11 **MR. BURT:** Sure. I know the Court -- the State
12 provided those to the Court. And I think there was some email
13 traffic about how the Court then gave them back to the clerk,
14 but I think they're still in the clerk's possession. The State
15 will correct me if I'm wrong on that.

16 **THE COURT:** Right.

17 **MR. BURT:** But they're the State's exhibits, so --

18 **THE COURT:** No. No. You're -- you're right. I
19 know. But I'm wondering if there is specific ones that you
20 want to identify that relate directly to your motion that you
21 wish the Court to review.

22 **MR. BURT:** Yes, Your Honor. If I could have a
23 minute, I'll identify what those exhibit numbers are.

24 **THE COURT:** All right. So I'll turn to the State.

25 **MR. BURT:** Great.

1 **THE COURT:** And, again, I'm not trying to put you on
2 the spot there.

3 **MR. BURT:** Understood.

4 **THE COURT:** All right. Mr. Ballard.

5 **MR. BALLARD:** Thank you, Your Honor.

6 The Utah Supreme Court has already rejected the
7 defendant's argument in State versus Timmerman. This Court
8 can't overrule the supreme court. And I think it's
9 fundamental -- or it's important to think about the fundamental
10 reason why the court held in Timmerman that the Sixth Amendment
11 right to confrontation does not apply at preliminary hearings.
12 And it's because of the very, very low burden and low standard
13 that the State has to meet at a preliminary hearing. All we
14 have to show is probable cause.

15 The magistrate at a preliminary hearing isn't making
16 any factual findings. The issue is just whether there is a
17 reasonable -- a reasonable probability of the -- that an
18 offense was committed, and that the defendant committed it.
19 And in making that decision, as Your Honor well knows, you have
20 to draw all of the inferences in favor of the State. You can't
21 weigh conflicting evidence. You can make only very, very
22 limited credibility determinations.

23 So even if the defense could impeach a witness to
24 some degree through cross-examination, like the fact that this
25 witness has been granted immunity, it doesn't matter at the

1 preliminary hearing because the magistrate is duty-bound to
2 ignore those blemishes and draw everything -- draw all
3 reasonable inferences in favor of the State.

4 So even if the State's only witness to a robbery was
5 a convicted forger who wasn't wearing his glasses when he saw
6 the robbery, and who had a grudge against the defendant, even
7 if the defense could bring all of that out on
8 cross-examination, it's irrelevant to the probable cause
9 finding because it's such a low burden.

10 That's an extreme example. I don't think the State
11 would ever bring charges in a case like that, but we do have an
12 example that is similar in scope to that, and that's
13 straight -- State versus Droesbeke. That, I think, is how you
14 pronounce the name. D-R-O-E-S-B-E-K-E. That's 2010 Utah App
15 275.

16 In that case, you had a child -- a victim of -- a
17 child victim of sexual abuse who reported the sexual abuse to
18 law enforcement, reported it during a CJC interview, but then
19 took the stand at the preliminary hearing and recanted those
20 allegations. That -- there was still sufficient evidence
21 under that situation to bind the defendant over, even though
22 the witness recanted those allegations because there was a
23 reasonable explanation as to why the witness might have been
24 telling the truth when she reported to the police and during
25 the CJC interview, and why she might have recanted at the -- at

1 the -- at the preliminary hearing. So that's the standard that
2 the Court is applying.

3 And so defense talks about "We have to have reliable
4 evidence." And State absolutely agrees that we have to have
5 reliable evidence, but reliability -- the degree of reliability
6 depends upon the circumstances of the proceeding. So is
7 hearsay sufficiently reliable for a conviction beyond a
8 reasonable doubt at trial? Certainly not.

9 But is hearsay reliable enough to be able to make
10 this low probable cause finding? Yes, it is. And that's why
11 Timmerman held that the Sixth Amendment right to confrontation
12 does not apply at preliminary hearings, and that's why every
13 other state court that has examined this issue has found that
14 the Sixth Amendment right to confrontation does not apply.

15 Timmerman collected those cases as of 2009. You've
16 also got the Ninth Circuit in Peterson versus California. And
17 we've included all of these cases in our brief.

18 In fact, if this Court granted the defendant's
19 motion, it would be going where no other court has gone before.
20 This Court would be the first court to find that the Sixth
21 Amendment right to confrontation applies at a preliminary
22 hearing.

23 Because Timmerman is clear that the Sixth Amendment
24 right to confrontation doesn't apply at a preliminary hearing,
25 defendant is trying to rely on other federal constitutional

1 provisions. But defendant's attempt to do that violates the
2 rules of constitutional construction, legal interpretation
3 because it would create contradictory constitutional
4 provisions.

5 What defendant is trying to say is: Even though the
6 Sixth Amendment right to confrontation, which we know would
7 provide the right to cross-examination and therefore prevent
8 the State from relying on hearsay, even though that right
9 doesn't apply at the preliminary hearing, there is some other
10 constitutional right that could somehow indirectly provide that
11 right.

12 But then we would have two conflicting constitutional
13 provisions, and that's not how we read the constitution.
14 That's not how we read statutes. We read them to be in harmony
15 with each other -- different provisions to be in harmony with
16 each other, and to not render a different provision
17 superfluous.

18 If you could provide the right to confrontation
19 through the Sixth Amendment right to counsel, or 14th Amendment
20 right to due process, then what -- what work is the Sixth
21 Amendment right to confrontation doing? It just doesn't make
22 sense to do that.

23 So that's exactly why the Ninth Circuit in Peterson
24 versus California said, "It's illogical to conclude that the
25 substitute for a grand jury indictment" -- which is the State

1 preliminary hearing procedure -- "must contain greater
2 protections than the grand jury provides for itself in the
3 federal system."

4 So if the federal system -- the equivalent to the
5 state preliminary hearing is a grand jury proceeding. The
6 grand jury proceeding allows the federal system to determine
7 probable cause to require a defendant to stand trial. The
8 defendant doesn't have a right to be present in those
9 proceedings, doesn't have a right to representation, doesn't
10 have a right to cross-examination, or even to present
11 exculpatory evidence. If that type of a procedure is
12 constitutional, then Utah -- Utah's preliminary hearing
13 procedure is certainly constitutional.

14 I could go through each of the different
15 constitutional provisions that defendant has relied on. I'll
16 just do that very briefly, just summarize the reasons why we
17 don't believe those apply. The Sixth Amendment -- even
18 assuming the defendant could rely on some other provision,
19 which we don't believe he can -- but the Sixth Amendment right
20 to counsel, it doesn't create additional rights. What it does
21 is it evaluates counsel's performance under the circumstances
22 as they existed at the time.

23 Now defendant brought up the fact that there is a
24 right to -- to confront witnesses at suppression hearings and
25 at sentencing hearings, and at parole revocation hearings.

1 That's a procedural right to cross-examination. It's not a
2 Sixth Amendment right to confrontation.

3 We know from Crawford versus Washington, the Sixth
4 Amendment right means that the State cannot rely on hearsay
5 evidence that a defendant has not had a prior opportunity to
6 cross-examine. That -- and so it's the Sixth Amendment right
7 that prevents the State from relying on hearsay.

8 That's completely different from saying the defendant
9 has the right to be able to cross-examine any witnesses that
10 the State calls. And, in fact, at a preliminary hearing, the
11 defendant will have the right to cross-examine -- I think we're
12 planning on calling four witnesses. Defendant will have a
13 right to cross-examine those witnesses.

14 But a procedural right to cross-examination doesn't
15 mean that the Sixth Amendment right, as interpreted in
16 Crawford, applies and precludes the reliance on hearsay.

17 With respect to due process and the 14th Amendment,
18 again, you have to look at what process is due under the
19 circumstances. And here, again, we've got a very low standard.
20 And the State's process here gives the defendant far more
21 protections than the federal grand jury proceeding does. Both
22 of them determine probable cause as to whether the defendant
23 can go to trial. And so due process doesn't supply some sort
24 of right to confrontation that the Sixth Amendment right
25 doesn't -- doesn't supply.

1 The equal protection argument is interesting because
2 defendant has not shown that he is similarly situated -- well,
3 let me back up. What defendant relies on is Morrissey versus
4 Brewer, which is the case that says defendants have a right to
5 confront and cross-examine witnesses at a parole revocation
6 hearing. But that's a defendant who is -- has been convicted
7 at trial and who is facing reimposition of a criminal sentence
8 that -- to serve out the remainder of his sentence.

9 Defendant here isn't similarly -- similarly situated
10 to that type of a defendant. So he can't make an equal
11 protection challenge based on that situation. And, again,
12 Morrissey versus Brewer does not say that the Sixth Amendment
13 right to confrontation applies. It merely says, as a matter of
14 due process, if the State is calling the witness, the defendant
15 has the right to cross-examine them at the proceeding, just
16 like defendant does at this preliminary hearing.

17 As far as the Eighth Amendment goes, the State
18 doesn't have any qualms with the idea that the Eighth
19 Amendment -- when we get -- if we get to the point of whether
20 or not the death penalty is an appropriate penalty here,
21 certainly the Eighth Amendment heightened protections apply
22 there, but we're not at that point, and defendant hasn't cited
23 any case that would extend those Eighth Amendment protections
24 beyond the decision to impose the death penalty, or they do
25 cite Beck versus Alabama, which talks about instructing the

1 jury at the guilt phase. We're not at that point.

2 You can't use the Eighth Amendment and say, "Well,
3 because this is a death case, there is super due process or
4 super -- there is additional rules that apply above and beyond
5 the procedural and evidentiary rules that apply at every other
6 stage of this proceeding."

7 And then finally, as to separation of powers, I don't
8 see anywhere in the federal constitution that dictates any
9 particular separation of powers principles to the states. And
10 so it's completely up to the State of Utah to determine how it
11 wants to divide the powers between its various branches of
12 government. And the constitutional provision that's at issue
13 here, clearly says that the -- that reliable hearsay can be
14 defined as by statute or by rule. So the constitution itself
15 is giving the legislature and the courts the ability to define
16 what constitutes reliable hearsay.

17 As far as Your Honor's question about what you would
18 like -- what the State would like you to review, as far as the
19 exhibits go, we'd just renew our request that the Court review
20 all of the exhibits in preparation for the preliminary hearing.

21 **THE COURT:** Thank you, Mr. Ballard.

22 **MR. BALLARD:** Any other questions?

23 **THE COURT:** No, thank you.

24 **MR. BALLARD:** Okay.

25 **THE COURT:** Mr. Burt.

1 **MR. BURT:** Just to answer the Court's question, the
2 Docket 523 is the State's exhibit preliminary hearing witness
3 and exhibit list. And I can provide a copy to the Court. I've
4 circled the exhibits we're asking the Court to review. They
5 are: Exhibits 11, 16, 30, 31, 32, 33, and 34.

6 I have a copy for the Court with those highlighted,
7 if the Court would like it.

8 **THE COURT:** Thank you, Mr. Burt. Yes. And if you'd
9 like to approach.

10 **MR. BURT:** May I approach?

11 **THE COURT:** You may.

12 **MR. BURT:** Thank you.

13 **THE COURT:** I appreciate it.

14 **MR. BURT:** Sure.

15 **THE COURT:** All right. Thank you to both parties.

16 **MR. BURT:** And, Judge, could I just briefly respond
17 to the --

18 **THE COURT:** Oh, of course.

19 **MR. BURT:** -- arguments that were made by the State?

20 Just quickly to run through them, the State
21 emphasizes there is a low burden at the prelim. Granted, it's
22 a low burden, but as the State versus Virgin -- V-I-R-G-I-N --
23 case said, "Low burden does not mean no burden."

24 And the U.S. Supreme Court in Coleman versus Alabama
25 recognized that the burden of proof at the prelim is very low.

1 They nevertheless held that the defendant has a Sixth Amendment
2 right to the effective assistance of counsel. So the fact that
3 it's a low burden does not govern whether procedural rights
4 should be applied, and the Coleman case holds exactly that.

5 The State says that the degree of reliability depends
6 on the nature of the proceedings; that's true. But this is a
7 case where the State of Utah has provided procedural rights at
8 the preliminary hearing, unlike grand jury proceedings. There
9 are rights granted by statute to counsel. There's
10 constitutional right to counsel. There is a right by statute
11 to call defense witnesses, to subpoena witnesses. So the Court
12 has to take those procedural indicia into account in
13 determining what other rights might be applicable. And both
14 the U.S. Supreme Court and the Utah Supreme Court has said that
15 the preliminary hearing is a critical stage of the proceedings.

16 The State says that -- citing this Ninth Circuit
17 brief opinion, the Peterson case, that, "It's illogical that
18 the preliminary hearing must have greater protection than grand
19 jury proceedings." It might be illogical, but the reality is
20 that defendants are accorded greater rights in preliminary
21 hearings than at grand jury proceedings. There is no right to
22 counsel at grand jury proceedings. There is no right to
23 subpoena defense witnesses at a grand jury proceeding.

24 And yet in Utah, as elsewhere, defendants do enjoy
25 those rights to certain protections. And once having defined

1 that it's an adversary critical proceeding, the State has an
2 obligation to provide the tools necessary to make that
3 confrontation meaningful.

4 The State emphasizes that the defense has a right to
5 call witnesses. Theoretically true, but irrelevant in this
6 case because, as the Court will see from reviewing the
7 exhibits, how the State proposes to make its case in this case
8 is exclusively through the use of hearsay.

9 So calling a record custodian or a police officer who
10 has no knowledge about the essential elements of the -- of the
11 offense, the defense could cross-examine that person on some
12 chain of custody issues, but it's got nothing to do with the
13 critical issues before the Court, which is: Are the essential
14 elements shown by probable cause? And in this case, those
15 elements are going to be satisfied by hearsay alone.

16 The defense says that -- or the State says that there
17 is no equal protection problem here because we're not similarly
18 situated to probation or parole violators. In all three of
19 those cases, the interest at stake is whether the defendant
20 should be confined for prolonged periods of time pending the
21 outcome of his hearing.

22 So a parole revocation hearing, especially the
23 preliminary parole revocation hearing, is very -- in fact, it's
24 indistinguishable from a preliminary hearing. The goal is the
25 same: To determine whether there is cause to hold the person,

1 deprive that person of liberty pending further proceedings. So
2 there is an equal protection violation here.

3 The State says that the Court can only look to the
4 Sixth Amendment. As I understand the argument, the Court
5 cannot look to procedural due process as guaranteed by the 14th
6 Amendment. It cannot look to equal protection. It cannot look
7 to the Eighth Amendment. It cannot look to any other doctrines
8 besides the Sixth Amendment to determine confrontation.

9 And we've pointed to the Court a long line of cases
10 in both the U.S. Supreme Court and the Utah Supreme Court which
11 refute that contention. It's clear the Court has an obligation
12 to look at whatever constitutional provisions are implicated by
13 the procedure in question.

14 And the Utah Supreme Court, when it was looking at
15 the subpoena powers case, looked at whether the act violated
16 confrontation rights, equal protection, separation of powers.
17 No one ever suggested that the Court had no power to look at
18 various constitutional theories. That theory is not supported
19 by the case law.

20 And then lastly, the State says that we cited no
21 cases to the Court saying that the Eighth Amendment applies to
22 the preliminary hearing procedure in this case, and that's
23 simply not true. Gregg versus Georgia said that every
24 procedural protection -- every procedural protection must be
25 observed in a capital case. Not at a capital trial, in a

1 capital case. And as charged right now, this is a capital
2 case.

3 And we've also cited to the Court the Ford case, Ford
4 versus Wainwright. Also, along the same lines, saying that in
5 capital proceedings, there is a heightened need for
6 reliability.

7 And then lastly, in our reply, we cited a whole
8 string of state court cases which hold that at the preliminary
9 hearing -- at the preliminary hearing, not the trial, the
10 preliminary hearing, the Court has an obligation to employ a
11 heightened standard of reliability. Thank you.

12 **THE COURT:** Thank you.

13 All right. Thank you to the parties.

14 Returning to the last item, and I -- just cutting to
15 the chase: Does the State oppose defendant's request on Docket
16 593?

17 **MR. MCBRIDE:** Your Honor, can I have just a moment?

18 **MR. NOVAK:** And there is also the scheduling of the
19 responses to an EMC request, which we discussed.

20 **THE COURT:** Okay. Well, thank you for reminding me.

21 **MR. NOVAK:** We need to deal with that as well.

22 **THE COURT:** Thank you, Mr. Novak.

23 **MR. MCBRIDE:** Your Honor --

24 **THE COURT:** If you would like to approach the
25 lectern, Mr. McBride.

1 **MR. MCBRIDE:** Your Honor, the -- so this is
2 a -- basically, a motion to begin the process of
3 compelling -- of getting a subpoena for an out-of-state
4 witness.

5 **THE COURT:** Yes.

6 **MR. MCBRIDE:** Here is the issue: Is Mr. -- we know
7 that -- from the pleading that the out-of-state witness's
8 attorney has declined to accept service for their client, and
9 this witness has appeared by 1102. We believe that that's
10 appropriate and satisfies probable cause. The rule requires
11 defense counsel to certify that this witness is necessary and
12 material to the probable cause determination. Under State v.
13 Lopez, we don't believe it is.

14 We got this at 8:03 last night. I have -- I looked
15 at it for the first time just moments ago. What I'd really
16 like to do is have a couple of days to respond to this. I know
17 time is of the essence, but that's -- that's where we're at.
18 So I really don't want to respond right now. If I did, I'd
19 probably submit on what I've said right now.

20 **THE COURT:** I see. Thank you.

21 To defense, is there any additional briefing needed
22 in addition to what you've submitted on Docket 593? And so I'm
23 just trying to -- seeing if there is, trying to create an
24 expedited --

25 **MR. NOVAK:** Only -- only to respond expeditiously to

1 whatever the State files. So for example -- and again, we're
2 both going off the fly. I'm now responding to Mr. McBride's
3 statement. This is not a Lopez situation. The witness is not
4 the victim in this case, as Your Honor knows.

5 **THE COURT:** Right.

6 **MR. NOVAK:** So it's not a Lopez situation. It's a
7 question of whether the witness is a material witness. So I
8 think to squarely answer the Court's question, we need a very
9 short period of time after the State responds. And if the
10 witness's counsel wants to respond, to file, I guess what we
11 call a reply. But we are moving as we -- we can move as
12 quickly as the Court requires.

13 **THE COURT:** Thank you.

14 To the State, how much time? And, again, I realize
15 that this is -- appeared on the horizon.

16 **MR. MCBRIDE:** If we can have until Tuesday, Tuesday
17 at close of business.

18 **THE COURT:** All right. So we're looking at Tuesday,
19 the 16th of June?

20 **MR. MCBRIDE:** Yes.

21 **THE COURT:** All right. Close of business.

22 Mr. Novak, with that information --

23 **MR. NOVAK:** I think Thursday, the 18th.

24 **THE COURT:** All right. By close of business as well?

25 (End of requested portion at 1:23 PM.)

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C E R T I F I C A T E

STATE OF UTAH)
)
COUNTY OF SALT LAKE)

 This is to certify that the foregoing proceedings
were taken before me, Katie Harmon, a Certified Shorthand
Reporter in and for the State of Utah, residing in Salt Lake
County, Utah;

 That the proceedings were reported by me in
stenotype, and thereafter caused by me to be transcribed into
printed form, and that a true and correct transcription of said
testimony so taken and transcribed is set forth in the
foregoing pages, inclusive.

 DATED this 29th of June, 2026.



KATIE HARMON, RPR, CSR
LICENSE NO. 7386959-7801

MR. BALLARD: [3] 11/5 18/22 18/24 MR. BURT: [16] MR. MCBRIDE: [6] 23/17 23/23 24/1 24/6 25/16 25/20 MR. NOVAK: [6] 3/18 23/18 23/21 24/25 25/6 25/23 THE COURT: [29]	8 84102 [1] 2/10 84103 [1] 2/13 84601 [1] 1/16 84606 [1] 2/7 8:03 [1] 24/14	applying [1] 13/2 appreciate [1] 19/13 approach [3] 19/9 19/10 23/24 appropriate [2] 17/20 24/10 April [1] 7/10 April 14th [1] 7/10 are [18] argue [1] 3/10 argument [6] 1/10 3/7 6/25 11/7 17/1 22/4 arguments [3] 3/21 4/8 19/19 article [6] 5/23 6/2 7/18 7/19 7/20 7/25 articles [1] 7/16 asked [2] 5/8 5/9 asking [2] 9/15 19/4 asks [1] 8/11 assess [1] 5/25 assistance [1] 20/2 assuming [1] 15/18 attempt [1] 14/1 attorney [2] 7/18 24/8 ATTORNEY'S [1] 2/6 Avenue [1] 2/15	Burt [5] 2/16 2/17 3/14 18/25 19/8 business [3] 25/17 25/21 25/24
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Addendum B-1

**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**ORDER REGARDING
DEFENDANT'S APPLICATION FOR
CERTIFICATE FOR ATTENDANCE
OF OUT-OF-STATE WITNESS AND
STATE'S MOTION TO QUASH
SUBPOENA**

Case No. 251403576

Judge Tony F. Graf, Jr.

This matter comes before the Court on Defendant Tyler James Robinson's Application for Certificate for Attendance of Out-of-State Witness under Utah Code § 77-21-3. Defendant seeks to compel the live testimony of Lance Twiggs at the upcoming preliminary hearing. The State opposes the application and seeks to quash the subpoena. Having reviewed the briefing, and the pertinent legal authorities, the Court issues the following Decision and Order.

I. INTRODUCTION

Defendant is charged with aggravated murder, felony discharge of a firearm, obstruction of justice, tampering with a witness, and violent offense committed in the presence of a child. Lance Twiggs allegedly resided with and was in a romantic relationship with Defendant at the time of the alleged offenses.

The State does not intend to call Mr. Twiggs to testify live at the preliminary hearing. Instead, the State plans to establish probable cause through reliable hearsay, specifically a video-recorded interview of Mr. Twiggs conducted pursuant to Utah Rule of Evidence 1102. The State will also rely on electronic messages, a handwritten note, and other corroborating evidence. According to

the record before the Court, Mr. Twiggs allegedly made statements to investigators indicating that Defendant confessed to the crimes, concealed the weapon, disposed of clothing, and directed Mr. Twiggs not to contact law enforcement.

Defendant seeks to compel Mr. Twiggs's attendance from Texas to provide live testimony. Defendant asserts that he intends to cross-examine Mr. Twiggs extensively concerning the reliability and credibility of his statements, his immunity agreements with state and federal prosecutors, his state of mind, and the surrounding circumstances of the alleged offenses. When Mr. Twiggs's counsel declined to accept service of a subpoena, Defendant sought this Court's intervention to certify the out-of-state subpoena.

II. LEGAL STANDARD

The preliminary hearing is a fundamental procedural right under Article I, Section 13 of the Utah Constitution, but its purpose is strictly limited to determining whether probable cause exists to bind a defendant over for trial. To prevail, the State must present sufficient evidence to support a reasonable belief that an offense has been committed and that the defendant committed it.

Under Rule 7B of the Utah Rules of Criminal Procedure, the probable cause determination may be based, in whole or in part, on reliable hearsay. While Rule 7B(a) states that a defendant may call witnesses and cross-examine adverse witnesses, the right to subpoena witnesses is not absolute. Under Rule 14(a)(2), the Court may "quash or modify the subpoena if compliance would be unreasonable".

The Utah Supreme Court has repeatedly emphasized that a preliminary hearing is "not a trial on the merits" but a "gateway to the finder of fact". Consequently, the magistrate's role is not to weigh credible but conflicting evidence, nor to eliminate alternative inferences favoring the

defense; such tasks are reserved for the jury at trial. A magistrate may only disregard evidence if it is "wholly lacking and incapable of creating a reasonable inference".

Recently, in *State v. Lopez*, 2020 UT 61, the Utah Supreme Court clarified the intersection between a defendant's right to call witnesses at a preliminary hearing and the court's authority to quash subpoenas. The Court held that a subpoena compelling an alleged victim to testify at a preliminary hearing is unreasonable and should be quashed unless the defendant demonstrates that "the subpoena is necessary to present specific evidence that is reasonably likely to defeat the showing of probable cause".

III. ARGUMENTS

Defendant's Arguments: Defendant argues that he has a constitutional right to compulsory process under the Sixth Amendment and Article I, Section 12 of the Utah Constitution, as well as a right to call witnesses under Rule 7B. Defendant contends that Mr. Twiggs is a central, highly material witness whose testimony touches on nearly every charge and enhancement. Defense counsel argues that *Lopez* was specifically tailored to protect the constitutional rights of victims (pursuant to the Victims' Rights Amendment), and because Mr. Twiggs is not a victim, *Lopez* does not directly apply. Defendant asserts that he must be permitted to test Mr. Twiggs's credibility, the circumstances of his immunity, and the reliability of his statements through live cross-examination.

State's Arguments: The State opposes the certification and moves to quash the subpoena. The State argues that preliminary hearings are no longer discovery devices, having been strictly limited to probable-cause determinations. Furthermore, the State argues that the Utah Constitution expressly permits the use of reliable hearsay at preliminary hearings, a practice that would be eviscerated if defendants could routinely subpoena the hearsay declarants. The State relies on *State*

v. Schmidt and *State v. Ramirez* to assert that credibility weighing at this stage is extremely limited, rendering Defendant's stated goal of "testing credibility" immaterial to the probable-cause analysis. Thus, the State argues the subpoena is unreasonable under Rule 14(a)(2).

IV. ANALYSIS

1. The State's Prima Facie Probable-Cause Showing

The Court expresses no opinion regarding whether the State ultimately will establish probable cause. The Court addresses only whether the subpoena should be enforced based upon the parties' current proffers. The proffered evidence—including statements that Defendant confessed to the shooting, hid a rifle, changed clothes, and directed Twiggs to withhold information—is directly material to the elements of aggravated murder, obstruction of justice, and witness tampering. If this evidence is presented at the hearing and evaluated under the governing preliminary-hearing standard, which requires the Court to view it in the light most favorable to the prosecution, as required by *State v. Schmidt*, it would constitute evidence from which a magistrate could find probable cause if credited under the standards governing preliminary hearings.

2. Rule 14(a)(2), *Lopez*, and Reasonableness

A central dispute is whether the standard established in *State v. Lopez* applies to Mr. Twiggs, who is a non-victim witness. Defendant correctly argues that *Lopez* arose in the context of a subpoena directed to an alleged victim and that the Utah Supreme Court's analysis was informed in part by the protections afforded under Utah's Victims' Rights Amendment. The Court agrees that *Lopez* cannot be read without attention to that context. Victim status mattered in *Lopez* because the subpoena imposed burdens upon persons whom Utah law independently protects from unnecessary harassment, delay, and retraumatization.

Although *Lopez* arose in the context of a victim subpoena, its discussion of Rule 14(a)(2) provides guidance concerning how courts evaluate reasonableness in light of the limited purpose of a preliminary hearing. The Court need not decide whether *Lopez*'s precise holding extends to all non-victim witnesses. Even assuming it does not, the same Rule 14 reasonableness considerations identified in *Lopez* support denial of the requested certification under the circumstances presented here.

The *Lopez* Court emphasized several principles that are not dependent upon victim status: (1) a preliminary hearing is not a discovery device; (2) the Utah Constitution permits the State to establish probable cause through reliable hearsay; and (3) the magistrate's role is limited to determining whether probable cause exists, not to resolving ordinary credibility disputes or weighing competing evidence. Those structural principles apply regardless of whether the subpoenaed witness is a victim, an eyewitness, a cooperating witness, or another hearsay declarant.

Accordingly, the Court relies primarily on Rule 14(a)(2) and the limited purpose of a preliminary hearing. The Court references *Lopez* only because its discussion of reasonableness informs that analysis. Whether *Lopez* formally governs subpoenas directed to non-victim witnesses need not be resolved to decide the present motion.

The Court's ruling does not depend upon extending *Lopez* beyond its facts. Rather, *Lopez* is persuasive authority regarding the application of Rule 14(a)(2)'s reasonableness requirement, while the Court's holding rests independently upon Rule 14(a)(2), Rule 7B, and the limited function of a preliminary hearing.

The Court also considers Defendant's constitutional arguments. The Sixth Amendment and Article I, Section 12 of the Utah Constitution protect a defendant's right to compulsory process for obtaining witnesses in his favor. That right remains important at the preliminary-hearing stage but

operates within the procedural framework governing probable-cause determinations. Accordingly, the relevant question is not whether Defendant may compel Mr. Twigg's testimony at trial, but whether the proposed testimony is necessary to present evidence reasonably likely to defeat probable cause at this preliminary-hearing stage.

The Court recognizes that compulsory process serves interests distinct from confrontation and discovery. Nevertheless, at the preliminary-hearing stage those interests must be evaluated within the procedural framework governing probable-cause determinations and the limitations imposed by Utah law upon that proceeding.

The Court determines that compulsory process does not automatically require live testimony from a hearsay declarant at a preliminary hearing merely because a defendant seeks impeachment. Whether compulsory process requires live testimony depends upon the relationship between the proposed testimony and the probable-cause determination at issue. Under the circumstances presented here, Defendant has not identified testimony reasonably likely to negate probable cause, and the Court therefore concludes that compulsory process does not require certification of the subpoena.

For these reasons, the Court need not determine whether *Lopez* formally governs subpoenas directed to non-victim witnesses. Even assuming it does not, Rule 14(a)(2) reasonableness principles discussed in *Lopez* support the result here. The question remains whether Defendant has demonstrated that the proposed testimony is necessary to present specific evidence reasonably likely to defeat probable cause rather than merely impeach the credibility of the State's evidence.

3. Has Defendant Shown that Live Testimony is Reasonably Likely to Defeat Probable Cause?

Even under the framework discussed in *Lopez*, a subpoena survives a motion to quash only if the defendant demonstrates that the testimony is necessary to present specific evidence that is reasonably likely to defeat the showing of probable cause.

Defendant asserts he wishes to cross-examine Mr. Twiggs on his reliability, credibility, immunity, state of mind, and the surrounding circumstances. Under Utah law, this does not establish a basis to require live testimony at a preliminary hearing. As established in *State v. Ramirez* and *State v. Schmidt*, a magistrate may not weigh credible but conflicting evidence. Even if Defendant's cross-examination successfully exposed inconsistencies in Mr. Twiggs's statements or highlighted his motives to lie due to his immunity agreements, the magistrate is required to draw all reasonable inferences in favor of the State.

Evidence demonstrating bias, motive, immunity benefits, or inconsistent statements may be highly relevant at trial and may provide fertile grounds for cross-examination before the ultimate finder of fact. The Court does not minimize the significance of immunity agreements as potential sources of bias. Rather, under the governing preliminary-hearing standard, such evidence affects the probable-cause determination only if it eliminates the reasonable inference arising from the State's proffered evidence. However, under the limited function of a preliminary hearing, such evidence defeats probable cause only if it would render the State's evidence incapable of supporting a reasonable inference that Defendant committed the charged offenses. Absent such a showing, the Court may not resolve competing credibility determinations or weigh conflicting inferences against the State.

Even assuming Defendant successfully elicited the anticipated impeachment evidence regarding bias, immunity, motive, or inconsistent statements, the Court cannot conclude on the present record that the State's proffer would become wholly lacking or incapable of supporting a reasonable inference of probable cause under the standards governing preliminary hearings.

The Court recognizes that impeachment evidence may, in an appropriate case, undermine probable cause where it demonstrates that the State's evidence is so unreliable, internally inconsistent, or otherwise deficient that no reasonable inference supporting probable cause remains. In such circumstances, impeachment evidence may do more than merely challenge credibility; it may negate the evidentiary foundation necessary to support bindover. Defendant has not made that showing here. The anticipated examination concerns matters that would generate competing credibility inferences rather than eliminate the reasonable inferences supporting the State's showing.

Nothing in this ruling should be understood as creating a categorical prohibition against subpoenas directed to non-victim witnesses at preliminary hearings. The Court concludes only that Defendant's present proffer does not identify testimony reasonably likely to negate probable cause under the circumstances presently before the Court.

The Court also notes that Defendant seeks compulsory process through the interstate witness-certification procedure, which imposes burdens upon a nonresident witness and a sister-state court. While not dispositive, those considerations further inform the Rule 14 reasonableness analysis.

Under the record presently before the Court, Defendant has identified anticipated impeachment and credibility evidence but has not identified specific testimony reasonably likely to negate probable cause. Given the limited purpose of a preliminary hearing and the State's ability to proceed through reliable hearsay, the Court concludes that enforcement of the subpoena would be

unreasonable under Rule 14(a)(2). This ruling rests on Defendant's present proffer and the record currently before the Court. The Court need not decide whether different circumstances, a different evidentiary showing, or a different category of witness would warrant a different result under Rule 14(a)(2).

The Court's ruling is procedural rather than evidentiary. Nothing in this Decision and Order should be construed as a determination regarding the credibility, reliability, weight, or ultimate admissibility of any witness, statement, or item of evidence that may later be presented. Those matters remain for determination under the governing standards applicable at subsequent stages of the proceedings.

V. FINDINGS

1. The preliminary hearing is limited to determining probable cause and is not a discovery device.
2. The State is constitutionally permitted to rely on reliable hearsay to establish probable cause.
3. The record presently before the Court indicates that the proposed examination is directed primarily toward credibility, bias, reliability, and impeachment rather than toward evidence likely to negate probable cause.
4. Applying Rule 14(a)(2)'s reasonableness requirement in light of the limited purpose of a preliminary hearing and the authorities discussed above, Defendant has failed to identify specific anticipated testimony that is reasonably likely to negate probable cause, as distinguished from anticipated impeachment that would merely create competing credibility inferences.
5. Therefore, enforcement of the subpoena is not warranted on the present record

VI. ORDER

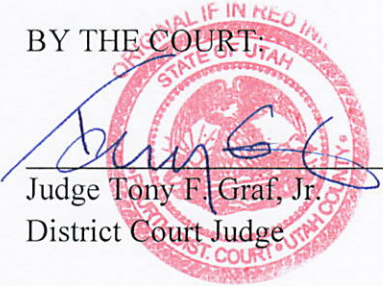
Based on the foregoing Analysis and Findings, the Court issues the following Order:

IT IS HEREBY ORDERED that Defendant's Application for Certificate for Attendance of Out-of-State Witness is respectfully **DENIED**, and the State's Motion to Quash the Subpoena is **GRANTED**.

IT IS FURTHER ORDERED that this denial is **WITHOUT PREJUDICE** subject to renewal. Because probable-cause determinations necessarily depend upon the evidence actually presented, this denial is without prejudice. If the State's presentation materially differs from the proffer presently before the Court, or if Defendant can identify specific testimony reasonably likely to negate probable cause, Defendant may renew the request.

Dated this 22nd day of June, 2026.

BY THE COURT:


Judge Tony F. Graf, Jr.
District Court Judge

CERTIFICATE OF NOTIFICATION

I certify that a copy of the attached document was sent to the following people for case 251403576 by the method and on the date specified.

MANUAL EMAIL: KATHRYN NESTER KATHY@NESTERLEWIS.COM

MANUAL EMAIL: STACI VISSER STACI@BROWNBRADSHAW.COM

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06/22/2026

/s/ SHIRLEY MOLINA

Date: _____

Signature

Addendum B-2

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Attorneys for Tyler James Robinson

IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT
IN AND FOR THE COUNTY OF UTAH, STATE OF UTAH

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**DEFENDANT TYLER JAMES
ROBINSON'S APPLICATION FOR
CERTIFICATE FOR ATTENDANCE OF
OUT-OF-STATE WITNESS (Utah Code §
77-21-3)**

Case No. 251403576

Honorable Tony F. Graf, Jr.

Defendant, Tyler James Robinson, by and through undersigned counsel, hereby requests this Court to issue a Certificate of Requesting State for Attendance of Witness Located Outside Utah to enable the defense to call Lance Twiggs as a witness at the preliminary hearing currently scheduled for July 6-10, 2026. Mr. Twiggs is a material witness whose testimony is necessary to the probable cause determination.

This request is being made pursuant to the Uniform Act to Secure the Attendance of Witnesses from Without a State in Criminal Proceedings, codified at Utah Code, Title 77, Chapter 21.

FACTS

At the time of the alleged facts in the Information charging Mr. Robinson with aggravated murder, felony discharge of a firearm, obstruction of justice, tampering with a witness, and violent offense committed in the presence of a child (Dkt. 1), Mr. Robinson is alleged to have resided with and been in a romantic relationship with State witness, Mr. Lance Twiggs. It is alleged that Mr. Robinson communicated with Mr. Twiggs by text, in a handwritten note, in person, and on the application Discord about the events on September 10, 2025 at Utah Valley University in Orem, Utah. The discovery in this case reveals a substantial number of communications between Mr. Robinson and Mr. Twiggs over an extended period of time as well as other evidence regarding Mr. Twiggs and his relationship with Mr. Robinson.

Based upon a witness and exhibit list provided to the Defense by the State on April 3, 2026, it was anticipated that Lance Twiggs would testify at the preliminary hearing. *See* Dkt. 523, at 4-6. However, on May 6, 2026, the State filed its *Preliminary Hearing Witness and Exhibit List*, notifying the Court and Mr. Robinson that it intended to proceed at the preliminary hearing with a recorded statement from State witness Lance Twiggs. *See* Dkt. 523, at 1-3. A

video recorded interview between Attorney Ryan McBride and Mr. Twiggs was provided to the defense in discovery on April 28, 2026. *See Declaration of Richard G. Novak (Novak Dec.)*, Exhibit A (Transcript of Recorded Interview on April 20, 2026). With the recording of the interview, the State also provided copies of immunity letters provided to Mr. Twiggs' counsel in anticipation of the interview. *Id.* Exhibits B, C. Also, based upon the interview of Mr. Twiggs, it is believed that he is currently residing in the area of Houston, Texas.

On May 29, 2026, Mr. Robinson sought the cooperation of Mr. Twiggs' counsel in accepting a subpoena on behalf of his client to testify at the preliminary hearing. On June 4, 2026, Counsel for Mr. Twiggs advised Mr. Robinson's counsel that he is not inclined to accept service of the subpoena. *See Novak Dec.* ¶ 7. On June 8, 2026, Mr. Robinson's counsel sought the cooperation of the Utah County Attorney's Office in securing the attendance of Mr. Twiggs for the preliminary hearing. *Id.* ¶ 8, Exhibit D. On June 11, 2026,UCAO responded, "We do not intend to produce or compel Mr. Twiggs to be present for the preliminary hearing." *Id.* ¶ 9.

As demonstrated in the attached Declaration and discussed further below, Mr. Twiggs is a material witness in this case generally and more specifically, for defense purposes at the preliminary hearing. *See Novak Dec.* ¶¶ 12-17.

ARGUMENT

I. Utah Is Party to the Uniform Act to Secure the Attendance of Witnesses from Without a State in Criminal Proceedings and this Court Should Issue a Certificate to Enable Mr. Robinson to Secure Material Witness Lance Twiggs.

Mr. Robinson seeks a certificate from this Court to enable the defense to call witness Lance Twiggs at the preliminary hearing in this case. The *Uniform Act to Secure the Attendance of Witnesses from Without a State in Criminal Proceedings* ("Uniform Act"), Utah Code § 77-21-3 provides the procedural means by which Mr. Robinson may request the State in which Mr.

Twiggs resides, believed to be Texas, issue a summons to secure Mr. Twiggs' appearance.

Utah's provision states:

If a person in any state, which by its laws has made provision for commanding persons within its borders to attend and testify in criminal prosecutions, or grand jury investigations¹ commenced or about to commence, in this state, **is a material witness in a prosecution pending in a court of record in this state**, or in a grand jury investigation... a judge of the court may issue a certificate under the seal of the court stating these facts and specifying the number of days the witness will be required. The certificate may include a recommendation that the witness be taken into immediate custody and delivered to an officer of this state to assure his attendance in this state. This certificate shall be presented to a judge of a court of record in the county in which the witness is found.

If the witness is summoned to attend and testify in this state he shall be tendered such sum as may be required by the laws of the state in which the witness is found, not exceeding the sum of 20 cents a mile for each mile by the ordinary traveled route to and from the court where the prosecution is pending and \$30 for each day that he is required to travel and attend as a witness. A witness who has appeared in accordance with the provisions of the summons shall not be required to remain within this state a longer period of time than the period mentioned in the certificate unless otherwise ordered by the court. If the witness, after coming into this state, fails without good cause to attend and testify as directed in the summons, he shall be punished in the manner provided for the punishment of any witness who disobeys a summons issued from a court of record in this state.

(emphasis added).

Texas has likewise implemented the *Uniform Act to Secure Attendance of Witnesses from Without State* in Chapter 24 of the Texas Code of Criminal Procedure. Section 3 of Article 24.28 states:

If a judge of a court of record in any State which by its laws has made provision for commanding persons within that State to attend and testify in this State certifies under the seal of such court that there is a criminal prosecution pending in such court, or that a grand jury investigation has commenced or is about to commence, that a person being within this State is a material witness in such prosecution, or grand jury investigation, and that his presence will be required for

¹ In Utah, prosecutors may proceed either by way of charging information, whereby a defendant is entitled to a preliminary hearing, or by seeking to summon a grand jury where "the prosecutor may then ask the jurors to return an indictment and charge the defendant without a preliminary hearing." *State v. Christiansen*, 2015 UT 74, ¶ 2, 365 P.3d 1189.

a specified number of days, upon presentation of such certificate to any judge of a court of record in the county in which such person is, such judge shall fix a time and place for a hearing, and shall make an order directing the witness to appear at a time and place certain for the hearing.

At the hearing in Texas, the court must determine if “the witness is material and necessary, and it will not cause undue hardship to the witness” to be compelled to testify. A certificate from this Court constitutes prima facie evidence of all facts stated within the certificate. *Id.* Tex. Code Crim. P. art. 24.28(3)(b); *see also Ex Parte Ames*, 582 S.W.2d 434, 438 (Tex. Crim. App. 1979) (“We hold that the certificate from the requesting state setting out that the witness is material and necessary is sufficient to support the trial court's finding of that fact.”).²

II. Mr. Robinson Is Entitled to Call and Cross-Examine Witnesses at the Preliminary Hearing and Mr. Robinson Is Entitled to Compulsory Process to Secure the Attendance of Witnesses.

“The preliminary hearing is a fundamental procedural right guaranteed by article I, section 13 of the Utah Constitution.” *State v. Prisbrey*, 2020 UT App 172, ¶ 19, 479 P.3d 1126. The magistrate’s role in a preliminary hearing, “while limited, is not that of a rubber stamp for the prosecution.” *State v. Clark*, 2001 UT 9, ¶ 10, 20 P.3d 300 (citation and quotation marks omitted). Indeed, the preliminary hearing is supposed to provide a meaningful opportunity for magistrates to ferret out groundless and improvident prosecutions. *See, e.g., State v. Schmidt*, 2015 UT 65, ¶ 19. “To prevail at a preliminary hearing, the prosecution must still produce

² To comply with the *Uniform Act*, the Certificate must also contain the language from Utah Code § 77-21-5 assuring that the witness will not be arrested and served with process related to this case:

If a person comes into this state in obedience to a summons directing him to attend and testify in this state he shall not, while in this state pursuant to such summons, be subject to arrest or the service of process, civil or criminal, in connection with matters which arose before his entrance into this state under the summons.

Mr. Twiggs will also be provided with witness fees in accordance with Utah Code § 77-21-3.

believable evidence of all the elements of the crime charged.” *Clark*, 2001 UT 9, ¶ 15 (cleaned up). A magistrate should therefore refuse bindover “where the prosecution fails to present sufficiently credible evidence on at least one element of the crime,” and also, “where the facts presented by the prosecution provide no more than a basis for speculation – as opposed to providing a basis for a reasonable belief.” *State v. Virgin*, 2006 UT 29, ¶ 21, 137 P.3d 787.

Magistrates also have limited discretion to make credibility determinations. *See Schmidt*, 2015 UT 65, ¶ 13. Assessing the credibility of the witnesses in a preliminary hearing “is an important element in the determination of probable cause” and preventing magistrates from doing so “would undermine the fundamental purpose served by the preliminary examination.” *Virgin*, 2006 UT 29, ¶ 24 (cleaned up). “Indeed, that the probable cause standard demands ‘reasonable belief’ rather than merely ‘belief’ strongly suggests that magistrates must, to a certain extent, assess the credibility of the evidence presented.” *Id.*

Utah Rule of Criminal Procedure 7B(a) permits Mr. Robinson to call witnesses, present evidence, and cross-examine adverse witnesses at his preliminary examination. This means Mr. Robinson may call Mr. Twiggs for the purposes of the preliminary hearing. Further, the Sixth Amendment to the United States Constitution, applicable to Utah through the due process clause of the Fourteenth Amendment, affords Mr. Robinson the right to compulsory process. *See Washington v. Texas*, 388 U.S. 14, 17-19 (1967); *see also* Utah Const. art. I, § 12 (defendants are entitled to compulsory process to insure witness attendance); Utah Code § 77-1-6(1)(e) (same). Failing to afford relief under the Uniform Act upon a showing that the witness is a material witness, deprives a defendant of due process. *See State v. Brady*, 594 P.2d 94, 96 (Ariz. 1979) (due process denied to defendant by trial court’s refusal to issue certificate for out of state witness).

III. Lance Twiggs is a Material and Necessary Witness Within the Meaning of the *Uniform Act*.

The core issue before this Court is if Mr. Twiggs is a material witness under the *Uniform Act*. The *Uniform Act* does not define what a “material witness” is. Utah appellate courts also offer little guidance on what this phrase means in the context of a pretrial request for a certificate to obtain an out-of-state subpoena.³ However, other jurisdictions have opined on the “material witness” showing to the district court under the *Uniform Act*.

In the Maryland case, *In re Thompson*, the State of Texas sought a certificate in Texas because the witness, a journalist, received emails from the defendant that were ultimately turned over to the state. 309 A.3d 51, 53-55 (Md. 2024). The prosecution sought the journalist’s appearance through the *Uniform Act* in order to authenticate the emails at the pending criminal trial. *Id.* at 55. The Maryland Court discounted the journalist’s argument that she was “not a material and necessary witness, within the meaning of the Uniform Act.” *Id.* at 64. “Evidence is material if it bears on a fact of consequence to an issue in the case.” *Id.* (quoting *State v. Smith*, 98 A.3d 444 (Md. 2014)). And, “necessary evidence is evidence that is useful, legally significant and noncumulative.” *Id.* (quoting *Codey v. Capital Cities, American Broadcasting Corp.*, 626 N.E.2d 636, 641 (N.Y. 1993)).

Examining the issue of a “material witness” the Supreme Court of Georgia agreed with courts in Nevada and Florida, construing the term to mean “a witness who can testify about

³ The Utah Supreme Court has opined on the “materiality” requirement *to obtain relief after conviction* on a claim that the district court erred in failing to issue a certificate for an out-of-state witness. *See State v. Schreuder*, 712 P.2d 264, 274 (Utah 1985). The *Schreuder* Court noted that the Utah Supreme Court’s “analysis of materiality may differ from that of the trial court” and ultimately concluded that the defendant’s constitutional right to compulsory process was not violated because in the context of the entire record, the potential testimony did not meet the appellate requirements for materiality. *Id.* at 274-75.

matters having some logical connection with the consequential facts, esp. if few others, if any, know about these matters.”” *Davenport v. State*, 711 S.E.2d 699, 703 (Ga. 2011) (quoting Black’s Law Dictionary (8th ed. 2004)); *see also Wyman v. State*, 217 P.3d 572, 583 (Nev. 2009); *State v. Bastos*, 985 So.2d 37, 41 (Fla. Dist. Ct. App. 2008). Also, like Georgia, Utah has adopted the Uniform Act language that the act “shall be interpreted and construed as to effectuate its general purpose to make uniform the law of the states which enact it.” Utah Code § 77-21-1; *see Davenport*, 711 S.E.2d at 702-03. As such, this Court should, like the Georgia Court, afford “great weight to the statutory construction” of sister states’ constructions “where they are well-reasoned and legally sound.” *Davenport*, 711 S.E.2d at 703.

The State has previewed the anticipated evidence for the preliminary hearing, including a recorded interview between a prosecutor and Mr. Twiggs and the multiple exhibits to which Mr. Twiggs’ testimony relates. *See Novak Dec.*, Exhibit A. It is apparent that the State intends to utilize Mr. Twiggs’ bare minimum statements in the interview to establish elements of the charged offenses and the sought enhancements in the Information. *See Novak Dec.* ¶¶ 12-15. The evidence provided by Mr. Twiggs is crucial to the State’s effort to establish probable cause at the preliminary hearing, making cross-examination of Mr. Twiggs regarding the evidence, circumstances surrounding the evidence, state of mind, and other considerations relevant to Mr. Twiggs’ reliability and credibility as a witness crucial to the defense. This Court is unable to assess the credibility and reliability of Mr. Twiggs’ testimony without him testifying.

Up until Mr. Robinson’s team received Mr. Twiggs’ 1102 interview in discovery, it was anticipated that the State would be calling Mr. Twiggs to testify. Instead, the State conducted an interview with Mr. Twiggs, effectively engaging in direct examination of Mr. Twiggs without giving Mr. Robinson the opportunity to cross examine this key State witness—a witness so

important that both State and Federal governments have provided Mr. Twiggs with immunity from any potential criminal liability for his testimony. *Novak Dec.* Exhibits B and C. Mr. Twiggs' testimony surely bears on facts of consequence in this capital prosecution. *In re Thompson*, 309 A.3d at 64. Further, the evidence Mr. Twiggs will offer and be subject to cross-examination about is altogether "useful, legally significant and noncumulative" because that testimony is intended to establish elements of the offenses that are in dispute. The defense intends to test the reliability of this witness's statements through cross-examination using Mr. Twiggs' prior statements and the significant amount of evidence the State has provided regarding Mr. Twiggs and his relationship to this case.

Mr. Robinson has made a sufficient showing that Mr. Twiggs is a material witness and, as such, this Court should issue the certificate in compliance with Utah Code, Title 77, Chapter 21.

CONCLUSION

For all the foregoing reasons, this Court should issue the concurrently filed *Certificate of Requesting State for Attendance of Witness Located Outside Utah* to enable the defense to call Lance Twiggs as a witness at the preliminary hearing in this matter.

RESPECTFULLY SUBMITTED this 11th day of June, 2026.

/s/ Kathryn N. Nester
Kathryn N. Nester

/s/Richard G. Novak
Richard G. Novak

/s/ Michael N. Burt
Michael N. Burt

/s/ Staci Visser
Staci Visser

Attorneys for Defendant, Tyler James Robinson

CERTIFICATE OF SERVICE

This is to certify that a true and correct copy of the foregoing was served via the Court's electronic filing system on the 11th day of June 2026, which served all attorneys of record.

/s/ Staci Visser

Staci Visser

1 the State and to call their own witnesses. The Sixth Amendment to the United States
2 Constitution and Section 12 of Article 1 of the Utah Constitution also guarantees to
3 Mr. Robinson the right to compulsory process.

4 7. Mr. Twiggs resides outside of the State of Utah and his exact location is
5 unknown to Mr. Robinson's counsel. Therefore, in order to exercise Mr. Robinson's
6 constitutional rights and his rights under Rule 7B, on May 29, 2026, counsel for Mr.
7 Robinson provided Mr. Twiggs' counsel, Mr. Kittrell, with a subpoena which, if
8 properly served, requires Mr. Twiggs to appear during the preliminary hearing in this
9 matter to testify. Mr. Kittrell has declined to accept service of the subpoena on behalf
10 of Mr. Twiggs.

11 8. Therefore, on June 8, 2026, counsel for Mr. Twiggs asked the Utah
12 County Attorney's Office to instruct Mr. Twiggs to be available to testify at the
13 preliminary hearing. The letter communicating that request is attached here as Exhibit
14 D.

15 9. On June 10, 2026, counsel for the State informed undersigned counsel
16 that UCAO "do[es] not intend to produce or compel Mr. Twiggs to be present for the
17 preliminary hearing."

18 10. Therefore, in order to secure Mr. Twiggs' presence, Mr. Robinson's
19 counsel now must seek a certification from this Court pursuant to Utah Code of
20 Criminal Procedure section 77-21-3, which is Utah's codification of its participation
21 in the *Uniform Act to Secure the Attendance of Witnesses from Without a State in*
22 *Criminal Proceedings* which has been adopted in all 50 states and in the District of
23 Columbia, Puerto Rico, and the Virgin Islands.

24 11. As set forth below, there are numerous reasons why Mr. Twiggs is a
25 material witness in the forthcoming preliminary hearing.

26 12. First, the State has charged Mr. Robinson with two offenses (Counts 5
27 and 6) under Utah Code §76-8-508, which allege that he "attempted to induce or
28 otherwise cause his roommate (Mr. Twiggs) to withhold testimony or information"

1 concerning “an official proceeding or investigation.” While Mr. Twiggs’ 1102
2 interview addresses this issue, Mr. Robinson’s counsel intend to cross-examine him
3 more fully on this contested issue.

4 13. Second, the State has alleged in three “victim targeting enhancements”
5 that Mr. Robinson “intentionally selected Charlie Kirk because of [his] belief or
6 perception regarding Charlie Kirk’s political expression.” While Mr. Twiggs’ 1102
7 interview touches on this charged enhancement, Mr. Robinson’s counsel intend to
8 cross-examine him more fully on this contested issue.

9 14. Third, the State has charged Mr. Robinson with an obstruction of justice
10 offense (Count 3) under Utah Code §76-8-306(2) related to the “concealing or
11 removal” of a firearm. While Mr. Twiggs’ 1102 interview addresses this charge
12 briefly, Mr. Robinson’s counsel intend to cross-examine him more fully on this
13 contested issue.

14 15. Fourth, Mr. Robinson is charged (in Count 1) with the aggravated murder
15 of Charlie Kirk on September 10, 2025. Mr. Twiggs was asked questions about Mr.
16 Robinson’s conduct and his state of mind in the period before September 10, 2025 and
17 thereafter. Mr. Robinson’s counsel intend to cross-examine Mr. Twiggs more fully on
18 the facts and circumstances of the offense charged in Count 1.

19 16. Additionally, Mr. Twiggs’ 1102 interview addresses other issues which
20 he was required, both under his agreement and pursuant to Utah law, to be truthful
21 about, including not making any material misstatements or omissions. Mr. Robinson’s
22 counsel intend to make further inquiries about a number of these other issues which
23 will bear upon the Court’s ultimate determination as to whether the State has met its
24 burden of proof in the forthcoming preliminary hearing.

25 17. The State has produced to Mr. Robinson a significant volume of
26 discovery concerning a) Mr. Twiggs individually, including materials that are related
27 to issues he discusses in his 1102 interview and b) Mr. Twiggs’ relationship with Mr.
28 Robinson, including materials that are related to issues he discusses in his 1102

interview, all of which are relevant to the findings this Court must make at the conclusion of the preliminary hearing. These discovery materials included, *inter alia*, electronic communications between Mr. Twiggs and Mr. Robinson, and among Mr. Twiggs and others, writings by Mr. Twiggs, reports of earlier interviews with Mr. Twiggs, and reports of interviews with other individuals who have personal knowledge about Mr. Twiggs' pertinent character traits, including his ability to accurately perceive events and the intentions of others.

18. Mr. Robinson's counsel have a good faith basis for every question that will be asked of Mr. Twiggs.

I declare under penalty of perjury under the laws of the State of Utah that the foregoing is true and correct.

Executed on this 11th day of June 2026.

/s/ Richard G. Novak
Richard G. Novak

Exhibit A

Defense Prepared Transcript of Bates 023148
Lance Twiggs 1102 Statement (Video)
4/20/2026

Evidence Title: Lance Twiggs Meeting-20260420_143855-Meeting
Recording.mp4

DATE: April 20, 2026

INTERVIEW OF: Lance Twiggs

INTERVIEWED BY: Ryan McBride, UCAO

ALSO PRESENT: Sam Pete AUSA
Chris Elsholz, SBI
Brian Davis, SBI
Lauren Hunt, UCAO
Sarah LNU, Victim Coordinator
Joel Kittrell (Twiggs' attorney)

VIDEO-RECORDED 1102 STATEMENT

RYAN MCBRIDE: This meeting is, uh, to use your statement here instead of your testimony at a preliminary hearing. Do you understand that?

LANCE TWIGGS: Mm-hmm <affirmative>.

RYAN MCBRIDE: Okay. So, um, in order to do that, to do that, I need to place you under oath and also give you a, uh, an admonition about false statements, okay? First, uh, you do solemnly swear or affirm that the evidence you shall give in this issue shall be the truth, the whole truth, and nothing but the truth, so help you God.

LANCE TWIGGS: Yes.

RYAN MCBRIDE: Um, I also need to notify you that you are notified the statements you're about to make may be presented at a, to a magistrate or a judge in lieu of your sworn testimony at a preliminary examination. Any false statement you make and that you do not believe to be true may be sub, may subject you to criminal punishment as a class A misdemeanor. Do you understand that?

LANCE TWIGGS: Yes [00:53]

RYAN MCBRIDE: It potentially could be used as, uh, for punishment, as a higher offense, or as obstruction of justice. Um, in addition, I just

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wanna make sure that our recording here is clear that, uh, you've also been given, um, uh, a federal agreement and a state agreement granting you immunity from prosecution for materials that you discuss now. Do you understand that?

LANCE TWIGGS: Mm-hmm <affirmative>.

RYAN MCBRIDE: Okay. Um, first, uh, we're gonna cover some of the things that you've already talked about, but to make it, um, as part of this record, um, first, what's your name?

LANCE TWIGGS: Uh, full name with middle name, or just first and last?

RYAN MCBRIDE: First and last is fine.

LANCE TWIGGS: Okay. My name is Lance Twiggs.

RYAN MCBRIDE: And do you know Tyler Robinson?

LANCE TWIGGS: Yes, I do. Or, well, yeah, I do. [01:44]

RYAN MCBRIDE: And this is the same Tyler Robinson that's been charged with the shooting of Charlie Kirk?

LANCE TWIGGS: Yes.

RYAN MCBRIDE: And would you say when you first met, uh, Tyler?

LANCE TWIGGS: I think it was 2023. I've known him longer than that, though. That was, I think the first time I met him in person. [01:59]

RYAN MCBRIDE: Okay. Um, and will you describe your relationship with, with Tyler, uh, when you first met him anyway?

LANCE TWIGGS: Um, when I first met him, uh, I didn't know him super well. He was just a new roommate. So, uh, I knew he knew my friend group and I knew he liked playing games, but that, that's about it when we first, uh, like when he first moved in. [02:29]

RYAN MCBRIDE: Okay. Um, before we go on, I realize my mic was muted at the outset. Was yours on? Your microphone?

LAUREN HUNT: No, I think I mute it.

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RYAN MCBRIDE: Okay. I'm gonna repeat those admonitions just to make sure we've got it recorded. Okay. So, um, again, I placed you under oath. Um, um, just to make a record, I'm gonna do it again. You do solemnly swear that the evidence you shall give in this issue shall be the truth, the whole truth, and nothing but the truth, so help you God?

LANCE TWIGGS: Yes. [02:57]

RYAN MCBRIDE: And again, I'm giving, going to give you the false ad, uh, statement admonition.

LAUREN HUNT: Sorry, hold on. I'm, um, if they're saying that it's echoing, so I

LANCE TWIGGS: Think, I think this one's mic is on. Okay.

LAUREN HUNT: Okay, sorry, I messed that up.

RYAN MCBRIDE: Okay. You know what, I'll mute my mic. That's fine. Okay. So we should be good. Alright. So, is that mic on?

LAUREN HUNT: Yes.

RYAN MCBRIDE: Okay, great. All right. Um, okay. Sorry about that interruption. Alright, so you said when you first met, met, you were roommates?

LANCE TWIGGS: Uh, yeah. [03:34]

RYAN MCBRIDE: Okay. And then, um, at some point, uh, your relationship progressed to something more than just roommates, is that right?

LANCE TWIGGS: Mm-hmm <affirmative>.

RYAN MCBRIDE: When was that?

LANCE TWIGGS: Um, I think we started dating two or three months after he moved in.

RYAN MCBRIDE: Okay. And where did you live at that time?

LANCE TWIGGS: St. George, uh, in an apartment complex. [03:53]

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RYAN MCBRIDE: And is that apartment the same place you lived, uh, when, on September 10th?

LANCE TWIGGS: Yes.

RYAN MCBRIDE: Um, when you lived there, uh, with Tyler, were you in the same room? Did you live in the same room or different rooms?

LANCE TWIGGS: Uh, no. Separate rooms. [04:09]

RYAN MCBRIDE: And at that time, let's say September of 2025, um, what was, what were you doing with your life? Were you working? School?

LANCE TWIGGS: Uh, I was working. Um, I was doing like bathtub and shower repair and stuff, and new construction.

RYAN MCBRIDE: Okay. How about Tyler?

LANCE TWIGGS: Um, I think he was both working, I think he was working for an electric, like an electrician company then, and he was also in a trade school for being a, I don't know, higher, like, ranking electrician. I'm not sure how the trade system works for that.

RYAN MCBRIDE: Okay.

LANCE TWIGGS: But yeah, I think it was both. [04:46]

RYAN MCBRIDE: What was his typical workday like?

LANCE TWIGGS: Um, I think he'd leave around seven generally and get back around three to four, uh, depending on like where the job was and how long it was for the day. And then on certain days of the week during school, like semesters, he would then later in the day, I think around five or six go to school. [05:14]

RYAN MCBRIDE: Okay.

LANCE TWIGGS: So, yeah.

RYAN MCBRIDE: Okay. Let's jump to September 10th. Um, did he spend, spend the night in the apartment the night of September 9th into September 10th?

LANCE TWIGGS: Into September 10th? Yeah. He did. Uh, yes.

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RYAN MCBRIDE: Do you know when he left the apartment on September 10th?

LANCE TWIGGS: Um, I don't know an exact time. I just know he left early. Uh, I heard him leaving and he just said he had a, like, um, long drive to work that day, so he was leaving early. [05:43]

RYAN MCBRIDE: Okay. So early, um, any guess as to what, um, when that was?

LANCE TWIGGS: Uh, I don't know. I would've thought it was 5:00 AM because that's when, like an early workday was for him, but it was probably more like four. [06:00]

RYAN MCBRIDE: Okay.

UNK MALE: Ryan, will you have him spit out his gum just to make sure that you're --

LANCE TWIGGS: I can do that.

UNK MALE: There's some tissue right in front of your laptop.

RYAN MCBRIDE: Oh, here you go.

LANCE TWIGGS: Thank you.

LAUREN HUNT: Here's <inaudible>.

RYAN MCBRIDE: All right. So what time did you get up on September 10th?

LANCE TWIGGS: Probably like 12 to 1:00 PM [06:31]

RYAN MCBRIDE: Okay. You didn't have to work that day?

LANCE TWIGGS: Uh, no.

RYAN MCBRIDE: And did you hear from Tyler, did he call or text you before then?

LANCE TWIGGS: Uh, no. He sent that message in the group chat I mentioned, but, uh, he didn't message me directly at all that day. [06:46]

RYAN MCBRIDE: Okay. When did you first hear from him on September 10th?

LANCE TWIGGS: Uh, it was at 11 o'clock with that like, automated message.

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RYAN MCBRIDE: Okay. 11:00 PM

LANCE TWIGGS: Yeah. [06:56]

RYAN MCBRIDE: And what do you remember about that message?

LANCE TWIGGS: Uh, I remember it saying to check under his keyboard for a note. [07:04]

RYAN MCBRIDE: Okay. And what did you do when you got that message?

LANCE TWIGGS: Uh, I think I just sent him like, I think I said why, or sent him a question mark, or I just went in, like checked for a note, then did. [07:19]

RYAN MCBRIDE: Okay.

LANCE TWIGGS: Because I think my original hope was that it was gonna be like a, I don't know, sweet note or something, something nice.

RYAN MCBRIDE: Okay. And, uh, will you just describe more or less what that note -- I'll show you the note in a minute, but, uh, what that note said.

LANCE TWIGGS: Um, from what I remember, it just kind of, uh, explicitly stated that he was planning to try to kill Charlie Kirk. Uh, in more words than that, but that is the gist of what I remember of it. [07:45]

RYAN MCBRIDE: How did you react when you saw that note?

LANCE TWIGGS: Uh, I think I sent him some texts, pretty confused, and I, again, didn't really understand if it was like, some sort of weird joke 'cause I'd been in my room all day. I thought maybe he snuck in. I, I, I didn't really have a good way to process that, so I didn't, I didn't really -- I kind of just didn't want to think it was true until I had some, something more substantial than a note under the -- not from him in person or anything, so. [08:15]

RYAN MCBRIDE: Okay. Uh, and did you exchange several texts back and forth between you and he?

LANCE TWIGGS: Yeah. After that. Yeah.

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RYAN MCBRIDE: And, uh, after that, did you, did you ever call him or talk to him on the phone besides the text messages?

LANCE TWIGGS: Uh, I think I texted -- there was the group chat, but I don't think that was directly to me. I think I messaged him on Discord, I want to say, 'cause I used that more than iMessage overall for texting. I don't know if I called him. I, I don't remember.
[08:54]

RYAN MCBRIDE: Okay. Alright. Uh, I'm gonna show you, um, an exhibit. Okay, I have here, um, what has been labeled exhibit 16.1. Do you see that on the screen?

LANCE TWIGGS: Mm-hmm <affirmative>. [09:22]

RYAN MCBRIDE: Okay. Now, you talked about a note, and it looks like based on, from the screen that we're looking at here, the image, there's a, a name at the top, Tyler heart. Do you see that?

LANCE TWIGGS: Mm-hmm <affirmative>.

RYAN MCBRIDE: Who's, who's this person that you're texting with?

LANCE TWIGGS: That is Tyler Robinson. [09:39]

RYAN MCBRIDE: And do you know what, what this, whose phone this is that's shown in this picture?

LANCE TWIGGS: That's my phone, or my old phone, but yeah.

RYAN MCBRIDE: And how do you recognize that as your phone?

LANCE TWIGGS: The, the, uh, large cracks on it and the green bar on the left side going down. [09:55]

RYAN MCBRIDE: Do you remember when this picture was taken?

LANCE TWIGGS: Uh, it looks like it's the room they interrogated me at the police office or station, um, the FBI agents.

RYAN MCBRIDE: Okay. So let's go through this. Um, halfway down there's a note, uh, that says, "drop what you are doing and look under my keyboard." You see that?

LANCE TWIGGS: Mm-hmm <affirmative>. [10:15]

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RYAN MCBRIDE: And who is in, who is name in grey?

LANCE TWIGGS: That's Tyler Robinson.

RYAN MCBRIDE: So that was Tyler's message to you --

LANCE TWIGGS: Yes.

RYAN MCBRIDE: -- "drop what you're doing and look under my keyboard." And then you responded "what" question marks, you're joking, right?

LANCE TWIGGS: Yeah. [10:29]

RYAN MCBRIDE: And he responds with, "fuck, I tried to delete that."

LANCE TWIGGS: Yes.

RYAN MCBRIDE: Okay. We're just gonna scroll through these. And, um, this is the next page. Um, and are these text messages between you and Tyler?

LANCE TWIGGS: Yes, they are. [10:53]

RYAN MCBRIDE: Does this look like this is the, the same order in which the text messages took place?

LANCE TWIGGS: Yeah.

RYAN MCBRIDE: So he responds. "I'm still okay in my love, but I'm stuck in Orem for a little while longer yet. Shouldn't be long until I can come home, but I gotta grab my rifle still. To be honest, I had hoped to keep this secret till I died of old, old age. I'm sorry to involve you." And you responded "you weren't the one who did it. Right?" And he responded, "I am. Sorry." Is this right? Am I reading this correctly?

LANCE TWIGGS: Uh-huh. <affirmative>. [11:24]

RYAN MCBRIDE: Okay. "I thought they caught the person." He responds, "No, they grabbed some crazy old dude then interrogated someone in similar clothing. I had planned to grab my rifle from my drop point shortly after, but most of that side of town got locked down. It's quiet almost enough to get out. But there's one

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vehicle lingering.” And you responded, “why?” And he responded, “why did I do it?” You responded “yeah.” “I had enough of his hatred. Some hate can’t be negotiated out. If I’m able to grab my rifle on scene, I will have left no evidence. Going to attempt to retrieve it again. Hopefully they have moved on. I haven’t seen anything in the news about them finding it. I’ll update you by midnight.” And then you respond, “all right. Stay safe. How long have you been planning this?” And he responds, “a bit over a week. I believe I can get close to it, but there is a squad car parked right by it. I think they already swept that spot, but I don’t wanna chance it while they are parked there. If they had found it, I imagine there would be more commotion. Again, I’m so sorry for roping you into all this. You shouldn’t have to worry about this.” And this is all taking place shortly after you find the note? [12:35]

LANCE TWIGGS: Mm-hmm <affirmative>.

RYAN MCBRIDE: Is that a yes?

LANCE TWIGGS: Yes.

RYAN MCBRIDE: Sorry, sorry. Um, yeah, the, the, mm-hmm <affirmative>.

LANCE TWIGGS: It doesn’t, it doesn’t count? Okay. [12:44]

RYAN MCBRIDE: Yeah. It can be confusing to make sure we know what that is. Sorry. Um, “does anyone else know?” “Not to my knowledge.” Um, and this is again, Tyler speaking, “it’s gonna be real fucking annoying if I can’t get this thing till like three, uh, then have to drive back and still go to work.” And you responded, “you’re sure they aren’t waiting to see if anyone comes to collect the gun?” And he responds, “I’ve got close enough to it that they would’ve jumped me if they were waiting and they would probably be more concerned with pulling prints off of it. When I checked the area about three hours ago, there was an officer with a canine walking nearby the area hoping that pooch has a bad sniffer.” Um, “I’m wishing I had circled back and grabbed it as soon as I got to my vehicle because it sounds like the police couldn’t get in for a long while because the traffic. Needless to say, I’m gonna be late coming home, [I’d be].” And you responded, “just stay safe.” Right? And I don’t think we need to read these out loud. They speak for themselves. But this is the text conversation that you and Tyler had.

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LANCE TWIGGS: Yes. [13:44]

RYAN MCBRIDE: And this is the night of September 10th, maybe going into the morning of September 11th?

LANCE TWIGGS: Yeah, yeah. Because it would've started, um, at or after 11 o'clock. So yeah, it could be 12:00 AM or, or still 11, the 10th. It could be 12:00 AM the 11th, or still the 10th. Sorry. [14:03]

RYAN MCBRIDE: Okay. Let's just go through this and make sure we have the images of all of these texts recorded. So it says here, uh, looks like the third, uh, paragraph down, "Getting worried. Hard to know for sure, but I'm not finding my rifle. Could be in the wrong spot." You responded, "Do you think they found it?" He responded, "Don't know. They haven't published anything if they have." "Why did you leave it behind originally? Also, does it have a serial number?" "I don't know if as a serial number," Tyler says, "but it wouldn't trace to me. I worry about prints. I had to leave it in a bush where I changed outfits. Didn't have the ability to, or time to bring it with." Um, then he talks about he, he doesn't know how he will explain losing it to his dad. Is that right?

LANCE TWIGGS: Yeah. [14:56]

RYAN MCBRIDE: Do you remember these text messages?

LANCE TWIGGS: Yeah.

RYAN MCBRIDE: Okay. And then the next one you asked him about his change of clothes. "Was your change of clothes there or was that also gone? Or did you bring those clothes with you originally 'cause you replaced the gun?" and he says, "the only thing I left was the rifle wrapped in a towel. I'll bet that canine sniffed it out." Um, and then he mentions this, "remember how I was engraving bullets? The fucking messages are mostly a big meme. If I see notices, bulge uw UWU on Fox News, I might have a stroke." So let me ask you about that text.

LANCE TWIGGS: mm-hmm <affirmative>. Yes. [15:39]

RYAN MCBRIDE: What about is he asks you here, "remember how I was engraving bullets", was he engraving bullets before this?

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LANCE TWIGGS: Uh, yeah. I don't remember exactly when, but, uh, he had said he was planning to go hunting with his family. Um, and he asked me for a, if we had a, like a Dremel to, 'cause he said he wanted to engrave messages on bullets. Um, and I just told him where Dremel was and, uh, told him to make sure he doesn't like, set off a bullet on accident in the house. Um, but I didn't really think about it until then. [16:15]

RYAN MCBRIDE: How long before, um, September 10th was this that you, he asked about the Dremel?

LANCE TWIGGS: I, I don't remember because he'd been talking about the, uh, hunting slash camping trip for a couple months, but I, I don't remember when he was specifically asking to engrave the bullets. So -- [16:37]

RYAN MCBRIDE: Okay. So, are we talking like a year before?

LANCE TWIGGS: Oh, no, not, not that, not that long. It would've been at -- I'd say at most a month before this was when he was asking. [16:46]

RYAN MCBRIDE: Okay. Um, all right, we're gonna come back to the engravings in a minute, but let's keep going through this thread. Um, after that, he talks about, you and him exchange texts about him, uh, trying to explain to his dad the loss of the gun, right? Is that accurate?

LANCE TWIGGS: Uh, yeah. [17:10]

RYAN MCBRIDE: And then he later says he's on his way home, 3.5 hours, drive safe, and then he asks you to delete this exchange, right?

LANCE TWIGGS: Yeah. And I did not do that, 'cause I didn't feel comfortable deleting all that off my phone. [17:26]

RYAN MCBRIDE: Okay. Then he talks about having to pull over 'cause he's tired. Um, uh, he said his dad wants photos of the rifle. Uh, he said his grandpa wants to know who has it because the feds released a photo of the rifle and it's very unique. Um, and, uh, you keep going back and forth about the rifle. And then he talks about, uh, his dad trying to call him, uh, and he's asking if his dad is gonna cover for him. Right? Okay. There's a text here that says, "my family had been trying to work, uh, trying to work him back, but since Trump got into office, he has been pretty diehard Maga. I

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think I might, uh, simply be fucked.” And is, what’s he referring to there? Do you remember when he says he might be fucked?

LANCE TWIGGS: Um, I, I think he just means in terms of like, uh, getting turned in. [18:38]

RYAN MCBRIDE: Okay. Let’s keep going through these. Um, now you, he asked, he said his family’s there, “like, at the apartment? Are you letting them in?” He says “no.” “Is there any chance you could just up and leave?” Um, he said he’s surround, he’s likely surrounded. Um, and then you say you’ll be home at seven. And so, when this is happening, where, where were you at this point in the, in the conversation, do you know?

LANCE TWIGGS: Yeah, I was at my, uh, at my parents’ house celebrating my mom’s birthday. [19:09]

RYAN MCBRIDE: Okay. So let’s talk about this for a minute. Well, I, we’ll come back to this actually. Let’s keep going through this text, uh, thread. Uh, later he says, “I’m sorry, I think this might be it. The way is clear, I can try to come your way to say goodbye.” After that, uh, “I have a spot in mind that I’ll call the police to.” Um, then he says, uh, “I have no doubts they’ll be on, on me within the hour.” And this is, con -- this continues. This is your text thread, is that right?

LANCE TWIGGS: Mm-hmm <affirmative>. [19:44]

RYAN MCBRIDE: So he says gonna turn himself in willingly. One of his neighbors is a deputy sheriff. Uh, we hope that things keep things short and quiet, quiet here. You say you’re gonna met-- miss each other. Okay, are you able to read through these?

LANCE TWIGGS: Yeah. [20:17]

RYAN MCBRIDE: Alright, that’s the last one. Is that an, is that an accurate, um, recording of the messages you had with Tyler?

LANCE TWIGGS: Uh, I believe so. [20:27]

RYAN MCBRIDE: Okay. All right. Um, you talked about the note that he left. Um, I wanna bring this up and I should say that, um, the, these text messages that we’ve been looking at here are, um, Bates number 54. Okay. Uh, the notes have been titled 16.3, the note,

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and this is Bates number 58. Do you recognize that, uh, that on the screen there?

LANCE TWIGGS: Yeah. Yeah. [21:03]

RYAN MCBRIDE: What do you recognize it as?

LANCE TWIGGS: Um, that was the note under his keyboard that he was referring to in the first text of that chain.

RYAN MCBRIDE: Okay. So where did you find this?

LANCE TWIGGS: On, on his desk underneath his key, like, uh, computer keyboard. [21:20]

RYAN MCBRIDE: And, uh, what, I assume you read it?

LANCE TWIGGS: Yeah.

RYAN MCBRIDE: And then what did you do with it after you read it?

LANCE TWIGGS: Um, I believe I just put it back down on the desk after I took a picture of it. [21:40]

RYAN MCBRIDE: Okay. And again, the time you read it was probably around 11 o'clock or so on the 10th?

LANCE TWIGGS: Yes. [21:46]

RYAN MCBRIDE: The night of September 10th?

LANCE TWIGGS: Mm-hmm <affirmative>.

RYAN MCBRIDE: All right. And did you ever see that again after you placed it back on his desk?

LANCE TWIGGS: Uh, no, I don't think I did. [21:58]

RYAN MCBRIDE: And that was a desk in his bedroom?

LANCE TWIGGS: Yes.

RYAN MCBRIDE: And that's a separate bedroom than your bedroom?

LANCE TWIGGS: Yeah. [22:04]

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RYAN MCBRIDE: Okay. I now wanna go to, uh, what's been titled 16.2. And do you recognize this series of messages here?

LANCE TWIGGS: Um, yeah, that was the server, uh, like his friends, that I was mentioning. [22:30]

RYAN MCBRIDE: Okay. And this is your phone again?

LANCE TWIGGS: Uh, yeah.

RYAN MCBRIDE: And I'm assuming you recognize it 'cause the big crack up at the top?

LANCE TWIGGS: Mm-hmm <affirmative>. [22:39]

RYAN MCBRIDE: And so this is a server, is this Discord?

LANCE TWIGGS: Yeah, this is Discord.

RYAN MCBRIDE: And who, who are members of this server? I don't want names. Just generally, who are these people who are members of the server?

LANCE TWIGGS: Um, this is his friend group. Um, they play D and D together every week. [22:56]

RYAN MCBRIDE: Okay. And I just wanna scroll through this to make sure that, uh, you get a chance to take a look at it. Ready to go to the next page?

LANCE TWIGGS: Mm-hmm <affirmative>. Or, yes.

RYAN MCBRIDE: And so Tyler Ikum, who's that?

LANCE TWIGGS: That's Tyler Robinson. [23:22]

RYAN MCBRIDE: Okay. And these other people are just others that are, that are members of the server?

LANCE TWIGGS: Yes.

RYAN MCBRIDE: Jug, Barnaby, Marina, dm.

LANCE TWIGGS: Mm-hmm <affirmative>.

Defense Prepared Transcript of Bates 023148

Lance Twiggs 1102 Statement (Video)

4/20/2026

RYAN MCBRIDE: Yes.

LANCE TWIGGS: Yeah. D like DM means Dungeon Master. So this is, uh, these are like, most of them are names they're using in the, in the game they're playing currently. [23:39]

RYAN MCBRIDE: Got it. Okay. Okay. And it looks like the last text from Tyler looks like it's, um, 8:00 PM and, do you know what day this would've been? 8:00 PM on the 10th or the 11th?

LANCE TWIGGS: Uh, I would think that would be the 11th. [24:05]

RYAN MCBRIDE: Okay.

LANCE TWIGGS: Because, uh, on at least I, I think so. 'cause I don't think on the 10th that he messaged anyone before me at like eleven, so,

RYAN MCBRIDE: And he turned himself in on the 11th, right?

LANCE TWIGGS: I thought so, yeah. [24:19]

RYAN MCBRIDE: Okay. So again, we're just gonna go through this so that we have a record of the messages. Okay. Is that an accurate recording of that thread?

LANCE TWIGGS: Uh, to my knowledge, yes. [24:52]

RYAN MCBRIDE: Okay. And that was sent, uh, looks like between September 10th and September 12th. Looks like the last date on this is September 12th. On the screen?

LANCE TWIGGS: Uh, yes. [25:02]

RYAN MCBRIDE: Okay. Okay. All right. So again, those messages covered from September 10th to the evening of September 11th. Now September, um, 11th, what time did -- or did you see Tyler on September 11th?

LANCE TWIGGS: Uh, yes. [25:41]

RYAN MCBRIDE: When did you first see him on September 11th? So this is the day after the shooting.

Defense Prepared Transcript of Bates 023148

Lance Twiggs 1102 Statement (Video)

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LANCE TWIGGS: Yeah, I saw him when I woke up. Um, like I said, he was like up and around doing a lot of stuff around the house. Um, and then I, uh, I think I saw him after that message where I said, I'll come home and say I'm doing laundry, 'cause I didn't want him going to my parents' house right then when he said there was probably cops outside. So I went back home and it was just him there and I said bye to him and then he drove off. So I just went back to my parents' house. [26:18]

RYAN MCBRIDE: Okay. When he, were you awake or did he wake you up when he came home on the morning of September 11th?

LANCE TWIGGS: Uh, no, not like immediately. [26:26]

RYAN MCBRIDE: Alright. Um, on September 11th, uh, when you woke up and he was there, will you describe how he was behaving?

LANCE TWIGGS: Um, a bit erratically. Uh, he hadn't like showered or anything, so he looked unkept and tired. Uh, and he was just talking about things he needed to get done. Um, and random stuff like that, that didn't really seem super applicable in the moment, I guess to me. I was kind of trying to avoid him at that point, 'cause I didn't really want to, uh, keep interacting, uh, right then; 'cause I was a little worried, I guess, for my safety if he was, since he was talking about killing himself and stuff. [27:23]

RYAN MCBRIDE: Okay. So he acted erratically. Um, was he pacing? Was he just sitting down relaxing? Was he --

LANCE TWIGGS: No, he was, he was, uh, walking around a lot. [27:34]

RYAN MCBRIDE: Okay. And that's within the home?

LANCE TWIGGS: Mm-hmm <affirmative>.

RYAN MCBRIDE: Um, and did he talk about what he had done?

LANCE TWIGGS: Uh, didn't go into detail. He just, I just asked him in person if what he said was true the night before. And he said it was. Uh, and started crying a little bit and he said he wishes he hadn't done it. Uh, and then kept going around and just doing stuff, I think to keep himself busy or distracted or something. [28:05]

RYAN MCBRIDE: Okay. Did he talk about what he was going to do next?

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LANCE TWIGGS: Uh, yeah, I mean, originally he was saying he was gonna kill himself before he ever turned himself over; and then eventually said that he would talk to his parents or turn himself over. [28:22]

RYAN MCBRIDE: Okay. And, uh, when you left, was that how you went -- you left understanding that he was gonna turn himself in, or go to his parents' house?

LANCE TWIGGS: Yeah, and I didn't really want to be at our apartment while any of that was happening, regardless of what went down. [28:38]

RYAN MCBRIDE: Okay. Um, okay. Before he came home, had you seen the press, the press releases? Um, any of the media on, on this?

LANCE TWIGGS: Uh, I'd seen one Instagram, like link, a friend of mine had sent in our group chat. [29:01]

RYAN MCBRIDE: Okay.

LANCE TWIGGS: But I hadn't really looked into it at all.

RYAN MCBRIDE: And, uh, had you seen the images that were released of the suspect?

LANCE TWIGGS: Uh, I did the next day. I don't think I saw any on the 10th. [29:14]

RYAN MCBRIDE: Okay. I'm gonna show you a couple of those images. Okay. I am on the FBI's website. Um, you can see the URL there at the top. And this is some, a press release about this event. Um, and here on the screen, do you see these, there's, looks like there's two rows of three images?

LANCE TWIGGS: Mm-hmm <affirmative>. [29:44]

RYAN MCBRIDE: Um, do you recognize the person in these images?

LANCE TWIGGS: I wouldn't say with a hundred percent certainty just because of camera quality, but that looks like him in terms of the shoes he is wearing, the sunglasses. I don't think I'd specifically seen him wearing that hat, but he was usually wearing a hat. Um, and then jeans. So, it definitely, especially the bottom, the last two definitely do look like him. [30:12]

Defense Prepared Transcript of Bates 023148
Lance Twiggs 1102 Statement (Video)
4/20/2026

RYAN MCBRIDE: Okay. Who is, who is it?

LANCE TWIGGS: Uh, they do look like Tyler Robinson. [30:19]

RYAN MCBRIDE: And, uh, you talked about that with your friends, right? This looks like him.

LANCE TWIGGS: Yeah. His, his friends. Yeah. I don't, um, I don't know if I talked, I don't remember if I talked about it with any of my friends. Um, and then since I didn't have my phone after that for a while, and I still am not using social media, I don't, I don't know, uh, on my friends then. [30:43]

RYAN MCBRIDE: Okay. Um, all right. I want to back up a little bit now. We've talked about September 10th, but let me get a little bit of, um, context here. So, um, did you game with Tyler?

LANCE TWIGGS: Uh, yeah. [30:57]

RYAN MCBRIDE: What kind of games?

LANCE TWIGGS: Um, we played some just kind of party games together, like stuff, anything that would be multiplayer with a group of friends. Uh, there was one game he really liked called Sea of Thieves, where you play as like a pirate and you can, uh, you can fight against people, but most of it's just like fishing, fighting sharks, skeletons kind of stuff. Um, we played some co-op games where it's like, uh, you both have to work together to win in whatever way. Uh, way back when, like when I was just outta high school, when I, uh, first knew him online, we played some, like, shooting games together, but I, I didn't know him very well. So that was just when we had like a whole friend group on to play. And he was someone that my friends invited. [31:45]

RYAN MCBRIDE: Okay. Um, did you and he ever talk about politics?

LANCE TWIGGS: Um, he did more than me. Uh, I, I didn't really, still don't really keep up with politics very much. Uh, he'd usually talk about stuff he heard on the radio on his drive to work and like their work car since it sounds like, uh, their whole crew went, went in the same car most of the time. But, uh, I wouldn't say super consistently 'cause it wasn't a topic I really contributed much on. [32:17]

Defense Prepared Transcript of Bates 023148

Lance Twiggs 1102 Statement (Video)

4/20/2026

RYAN MCBRIDE: How about Charlie Kirk? Did he ever talk about Charlie Kirk?

LANCE TWIGGS: I, I personally had never heard him talk about Charlie Kirk before, specifically. [32:24]

RYAN MCBRIDE: Okay. Um, how about, um, political issues? So did you ever talk about gender identity issues and L-G-P--B-T-Q rights?

LANCE TWIGGS: Uh, no. Not, not really. Um, uh, usually if he did talk about politics stuff, it was, uh, relating to Trump or current, like policies being, uh, like issued or voted, voted on, I think. But, yeah. [32:55]

RYAN MCBRIDE: Okay. Um, and I wanna ask you a little bit about your gender identity. Um, how do you identify? Gay, straight, trans, other?

LANCE TWIGGS: Um, I, uh, bi -- bisexual. [33:07]

RYAN MCBRIDE: Okay. At that time, um, in September of 2025, um, were you exploring transitioning genders at that time?

LANCE TWIGGS: 2025? Um --

RYAN MCBRIDE: So this was last fall.

LANCE TWIGGS: Uh, I'm not sure that I was at that time. Earlier than that, but I'm, I'm not sure at that time that I was. [33:27]

RYAN MCBRIDE: Okay. So before that you had been?

LANCE TWIGGS: Mm-hmm <affirmative>. For, uh, for a short time. Yes. [32:32]

RYAN MCBRIDE: Okay. And, um, I understand you were going by Luna at some point?

LANCE TWIGGS: Uh, to some people, yeah. But not as an overall thing. [33:40]

RYAN MCBRIDE: Okay. Um, okay, let's see. Did you see, uh, Tyler make etchings in bullets?

LANCE TWIGGS: I did not see that, no. [33:53]

RYAN MCBRIDE: Okay. Um, have you heard that the bullets that were found in this case had etchings in them?

Defense Prepared Transcript of Bates 023148

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LANCE TWIGGS: I have heard that. [33:59]

RYAN MCBRIDE: I wanna ask you a couple of these, if you know what they mean. There's one, there's an inscription that says, "notices bulge. OWO. What's this?" Do you know what that refers to?

LANCE TWIGGS: I think that's a furry meme. Um, that was something Tyler was interested in. [34:16]

RYAN MCBRIDE: Okay. And do you know that, why, how do you know that's something Tyler was interested in?

LANCE TWIGGS: Because he had like, uh, merch, um, drawings from friends of furry stuff in his room. [34:28]

RYAN MCBRIDE: And why do you think that that is a, uh, furry meme?

LANCE TWIGGS: Uh, that's something I'd seen him say with like a furry reaction image on Discord. [34:40]

RYAN MCBRIDE: Okay. Um, do you know what that means? "Notices bulge. What's this?"

LANCE TWIGGS: I believe that's sexual in connotation referring to male genitalia. [34:54]

RYAN MCBRIDE: Okay.

LANCE TWIGGS: Through clothing.

RYAN MCBRIDE: Okay. Um, another, another, uh, I guess quote I wanna ask you about is, "hey, fascist catch" and then let, uh, arrows pointing up, right, down, down, down. Do you know what that refers to?

LANCE TWIGGS: I, I saw that online. I didn't, but people have said that from Helldivers, which is a game he played a lot. I have never played that one. [35:20]

RYAN MCBRIDE: Okay. Another is "O Bella ciao, ciao, ciao."

LANCE TWIGGS: I, I don't know that one. I, I looked it up and apparently, I think it was an Italian song, but I, I, I don't know the meaning behind that one. [35:35]

Defense Prepared Transcript of Bates 023148

Lance Twiggs 1102 Statement (Video)

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RYAN MCBRIDE: Okay. And then “if you read this, you are gay.” Do you know the meaning behind that at all?

LANCE TWIGGS: I think that’s just a jab. I don’t, I don’t, I mean, I think that’s just kind of like a graffiti kind of thing. [35:48]

RYAN MCBRIDE: Okay. Okay. Um, I think that’s all the questions I have for this portion. Uh, let me check and see if I’ve missed anything. [36:00]

RYAN MCBRIDE: Okay. Um, the Dremel that you talked about, um, you said he had asked for that, is that right?

LANCE TWIGGS: Mm-hmm <affirmative>. [36:24]

RYAN MCBRIDE: And had he told you it was to inscribe bullets?

LANCE TWIGGS: Yeah. [36:28]

RYAN MCBRIDE: And, uh, so did you have a Dremel then?

LANCE TWIGGS: Yeah. [36:32]

RYAN MCBRIDE: Okay.

LANCE TWIGGS: Uh, it was in our, like we had a, our apartment, we had a section where we kept all our, like, random tools for household stuff, uh, in our like, uh, lower basement level pantry. Um, so yeah. [36:45]

RYAN MCBRIDE: Okay. And did you give that to him or tell him where it was?

LANCE TWIGGS: I just told him where it was. Yeah. [36:49]

RYAN MCBRIDE: Okay. I’m gonna go ahead and end the recording for the 1102 purposes. [37:00]

End of recording.

Exhibit B



U.S. Department of Justice

MELISSA HOLYOAK

First Assistant United States Attorney
District of Utah

REPLY TO:

Sam Pead
Assistant United States Attorney
Direct: 801-325-1412

Office of the United States Attorney
111 South Main Street, Suite 1800
Salt Lake City, Utah 84111-2176

(801) 524-5682
(800) 949-9451
Fax: (801) 524-3399

April 20, 2026

Joel Kittrell

Attorney for Lance Twigg

Re: Interview of your client

Dear Mr. Kittrell:

The United States will accept a proffer of your client (named above) in an interview with law enforcement agents on April 20, 2026, regarding the investigation into Tyler Robinson and the alleged *Murder* of Charlie Kirk ("the investigation"). The purpose is to give your Client the opportunity to provide information about this matter. The United States will only accept the proffer under the following conditions:

1. **Truthfulness:** Your Client must be completely truthful, providing accurate and complete information, with no material misstatements or omissions of fact. Failure to do so will seriously diminish and perhaps forfeit your Client's chances of receiving favorable consideration from the United States related to the investigation.
2. **Recording:** It is the understanding of the United States that this interview is to be recorded.
3. **Direct Use:** The United States will not use any statements or information your Client provides during the Interview (the "Proffered Information") against your Client (as opposed to them being used against Tyler Robinson), in a case brought by the United States' during its case-in-chief at trial for the investigation or for purposes of sentencing related specifically to your client, except as follows:
 - a. If your Client later contradicts the Proffered Information, the United States may use the Proffered Information in a prosecution for false statements, perjury, or obstruction of justice (or for pursuit of sentencing enhancements related to obstruction of justice).
 - b. The United States may use the Proffered Information to cross-examine and/or impeach your Client, and to rebut any evidence or arguments your Client (or a representative) offers in any proceeding (including sentencing), or in any written or oral representation to the court, including the probation office.

INITIALS: LT Client
MP Attorney

PROTECTED INFORMATION
Further dissemination to any
unauthorized person or agency
may result in both civil and
criminal liability.

c. The United States may make derivative use of, and may pursue any investigative leads suggested by the Proffered Information, and the United States may use the derivative evidence against you Client in any manner. Your Client will not be entitled to any hearing that would otherwise require the United States to prove evidence to be used at any criminal trial is not directly or derivatively tainted by the Proffered Information. *Cf. Kastigar v. United States*, 406 U.S. 441 (1972).

d. If a case came about related to your client and this investigation, the United States will provide the Proffered Information to any Presentence Investigation Report writer and to any judge who may be sentencing your Client on any charges arising out of this investigation. However, pursuant to USSG § 1B1.8(a), the Proffered Information may not be used directly to determine the appropriate sentencing range under the federal sentencing guidelines. Still, the United States may use the Proffered Information as permitted under USSG § 1B1.8(a), such as to determine prior convictions and sentences, in the event of a breach of a cooperation agreement, or in determining whether and to what extent a downward departure is appropriate.

4. **No Promises; Not Plea Negotiations:** Neither this letter nor the Interview is a plea discussion; and neither requires the United States to enter any plea discussions or file any motion on your Client's behalf. The Interview's sole purpose is to evaluate whether your Client has information that might be valuable to the United States.

5. **Brady Discovery:** Should any of the Proffered Information be material to another defendant's guilt or punishment, your Client acknowledges the United States will be required to disclose that information to the appropriate defendant(s) pursuant to *Brady v. Maryland*, 373 U.S. 83 (1963) and related case law.

6. **Other Statements or Information:** This agreement applies only to the Proffered Information. This agreement does not impose any limitations on the government's use of any physical evidence, statements, or other information obtained from other sources or from your Client at any time before the Interview.

This letter contains the totality of the agreement between your Client and the United States Attorney's Office for the District of Utah. No other agreement, understanding, or promise may become part of this agreement unless the parties commit it to writing and sign it. This letter does not apply to any statements your Client has made outside the Interview.

Sincerely,

MELISSA HOLYOAK
First Assistant United States Attorney

/s/ Sam Pead

INITIALS: LT Client

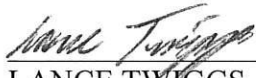
Attorney

PROTECTED INFORMATION
Further dissemination to any
unauthorized person or agency
may result in both civil and
criminal liability.

SAM PEAD
Assistant United States Attorney

I have received, read, and fully understand this letter from the United States Attorney's Office for the District of Utah. I understand that this agreement applies only to the United States Attorney's Office for the District of Utah, and does not apply to any other agreement or understanding I may have with any other federal, state, or local law enforcement organization or prosecuting office. I understand and voluntarily accept this letter's terms and conditions for the Interview.

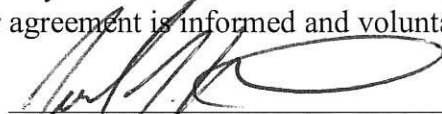
AGREED AND ACCEPTED:



LANCE TWIGGS

Dated: April 20, 2026

I represent Lance Twiggs. I have carefully reviewed every part of this proffer agreement with my Client. I answered any questions my Client had about the agreement and believe my Client fully understands the terms of the agreement. To my knowledge, the decision to make this proffer agreement is informed and voluntary.



JOEL KITTRELL

Attorney for Lance Twiggs

INITIALS: LT Client
Attorney

PROTECTED INFORMATION
Further dissemination to any
unauthorized person or agency
may result in both civil and
criminal liability.

Exhibit C



OFFICE OF THE UTAH COUNTY ATTORNEY

Jeffrey S. Gray, Utah County Attorney

Chad E. Grunander, Chief Deputy

Christopher D. Ballard, General Counsel

Haley Christensen, Office Manager

Tammy Paynter, Confidential Assistant

Christine Scott, Major Crimes Division Chief

Ryan McBride, General Crimes Division Chief

Paul Jones, Civil Division Chief

Steven G. Adams, Investigations Division Chief

April 17, 2026

Lance Twiggs
c/o Attorney Joel Kittrell
via email to joel@kittrelllaw.com

Re: *Grant of Use Immunity to Lance Twiggs re Tyler Robinson, case no. 251403576*

This letter serves as a grant of use immunity to Lance Twiggs pursuant to Utah Code §77-22b-1 (as amended, 2013) as follows:

I, Jeffrey S. Gray, the duly-elected County Attorney of Utah County, State of Utah, hereby grant use immunity to Lance Twiggs, for information, evidence, and testimony related to the shooting of Charlie Kirk on or about September 10, 2025, and the circumstances leading up to and following the shooting which is provided at the meeting scheduled for April 20, 2026, at the Utah County Attorney's Office.

This grant of immunity is limited as follows: Testimony, evidence or information compelled by this Grant of Use Immunity will not be used against Lance Twiggs in any criminal or quasi-criminal case, nor any information directly or indirectly derived from his testimony, evidence, or information, unless the testimony, evidence, or information is volunteered by Lance Twiggs or is otherwise not responsive to a question. This immunity does not extend to prosecution or punishment for perjury or to giving a false statement in connection with any testimony, evidence, or information.

Lance Twiggs may not refuse to provide evidence or information based on his privilege against self-incrimination.

Further, this immunity does not preclude the prosecution of offenses committed by Lance Twiggs; it only precludes the use of information provided subject to this grant of use immunity, as described above.

Sincerely,

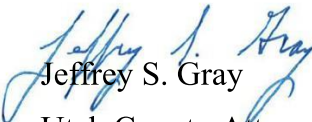

Jeffrey S. Gray
Utah County Attorney
Jeffrey S. Gray

Exhibit D



June 8, 2026

Jeffrey S. Gray, Utah County Attorney
Chad E. Grunander, Deputy Utah County Attorney
Ryan McBride, Deputy Utah County Attorney
Lauren Hunt, Deputy Utah County Attorney
David Sturgill, Deputy Utah County Attorney
Christopher D. Ballard, Deputy Utah County Attorney
Utah County Attorney's Office
100 East Center Street, Suite 2100
Provo, Utah 84606

Re: *State v. Tyler James Robinson*, Case No. 251403576

Dear Counsel,

As you know, the preliminary hearing in this matter is scheduled to begin on July 6, 2026. When the State first informed Mr. Robinson's counsel of its initial intentions with respect to the presentation of evidence at the preliminary hearing, we were informed that Lance Twiggs would testify in person. The State subsequently obtained a video recording of an interview with Mr. Twiggs which was prepared pursuant to Rule 1102 of the Utah Rules of Evidence and thereafter informed us that Mr. Twiggs would not testify in person, but that his recorded statement would be presented to the Court.

As you also know, Mr. Robinson has a right under Rule 7B of the Utah Rules of Criminal Procedure to call witnesses at the preliminary hearing. We have determined that our obligations to Mr. Robinson under the Sixth and Eighth Amendments to the U.S. Constitution and our ethical duties require us to call Mr. Twiggs as a witness at the preliminary hearing.

On May 29, 2026, we provided Mr. Twiggs' counsel, Joel Kittrell, with a subpoena for Mr. Twiggs, but Mr. Kittrell has declined to accept service of that subpoena on behalf of his client. We are, of course, aware that Mr. Twiggs has immunity agreements with both your office and with the United States Department of Justice which require him to testify if requested to do so by either office. Therefore, we are asking that you instruct Mr. Twiggs to appear in person in Court during the week of July 6 so that we can call him as a witness during the preliminary hearing.

As you know, Mr. Twiggs resides at an undisclosed location outside of Utah. In order for us to serve him with an enforceable subpoena in the absence of cooperation from his counsel or the State, we would need to first obtain a certification from the Court, then obtain an order from a court in the county in Texas where he resides enforcing the subpoena and then effectuate service. It is our view that the expense to Utah County associated with all of that work is unnecessary and can be avoided by either Mr. Twiggs'



counsel agreeing to accept service of the subpoena we sent him, or through your office instructing Mr. Twiggs, pursuant to his immunity agreements, to appear in court next month to be examined by Mr. Robinson's counsel.

Please let us know by the close of business on June 10, 2026 if we can rely upon the State to produce Mr. Twiggs for examination. If not, we will need to promptly bring this to the Court's attention so that the Court sets aside time for the review of the certification we would need to seek in the absence of cooperation from the State or Mr. Twiggs' counsel.

Very truly yours,

/s/ Richard Novak, Michael Burt, Staci Visser, and Kathryn Nester
Counsel for Tyler Robinson

cc: Joel Kittrell, Esq.

Addendum B-3

JEFFREY S. GRAY # 5852
Utah County Attorney
CHAD E. GRUNANDER # 9968
RYAN MCBRIDE # 13079
LAUREN HUNT # 14682
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IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

STATE OF UTAH, Plaintiff, vs. TYLER JAMES ROBINSON Defendant.	OPPOSITION TO DEFENDANT'S APPLICATION FOR CERTIFICATE FOR ATTENDANCE OF OUT-OF- STATE WITNESS Case No. 251403576 JUDGE TONY F. GRAF, Jr.
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The Court should deny Defendant's application for a certificate to secure attendance of Mr. Lance Twiggs because Mr. Twiggs is not a material witness for the preliminary hearing.

BACKGROUND

On September 11, 2025, just after Tyler Robinson turned himself in, Mr. Twiggs gave a statement to investigators. He told investigators that Robinson had admitted via electronic messages to him and others that he had killed Charlie Kirk. Investigators photographed the messages from his phone.

On April 20, 2026, in preparation for the preliminary hearing, Mr. Twiggs gave a recorded statement under oath and after an admonition that any false statement would be punishable by law and could be charged as obstruction of justice. Mr. Twiggs was also given use-immunity by the United States Attorney's Office and the Utah County Attorney's Office—meaning that his statements at that April 20 meeting could not be used against him. *See* Utah Code § 77-22b-1. Mr. Twiggs's April 20 statement was consistent with his September 11 statement. In it, Mr. Twiggs described several of Defendant's statements to him: that Defendant killed Charlie Kirk (count 1, aggravated murder, and count 2, felony discharge of a firearm), that he hid the firearm (count 3, obstruction of justice), disposed of clothing (count 4, obstruction of justice), and that he told Mr. Twiggs not to speak to law enforcement (count 4, witness tampering). Most of these statements were through electronic messages from Defendant and one came from a handwritten note.

At the preliminary hearing, the State intends to offer Mr. Twiggs's April 20, 2026, recorded statement, as well as the photographs of Defendant's messages which were found on Mr. Twiggs's phone during the September 11 interview.

INTRODUCTION

To secure the attendance of an out-of-state witness at a proceeding in this state, a defendant must show that the witness's testimony is material to the proceeding. Testimony is material only when it would make a difference in the outcome. While Defendant declares that Mr. Twiggs's cross-examination is material, Defendant makes no effort to show how that could be given the limited nature of a preliminary hearing and the State's low evidentiary burden. Defendant has not demonstrated how cross-examination would make any difference here.

ARGUMENT

Defendant has not shown that Mr. Twiggs is a material witness for purposes of the preliminary hearing given the State's limited burden of proof at that hearing.

To obtain a certificate to secure the attendance of an out-of-state witness, Defendant must show that the person "is a *material* witness" in a Utah prosecution. Utah Code § 77-21-3 (emphasis added). And before a court in the foreign state can issue a summons to command the witness's appearance in Utah, a judge in the foreign state must find, among other things, that the witness is "material and necessary" to the Utah proceeding. *See, e.g.* Utah Code § 77-21-2 (Utah's adoption of the Uniform Act to Secure the Attendance of Witnesses from Without a State in Criminal Proceedings). The judge in the foreign state makes this finding based on the Utah court's certificate. *See id.*

Defendant has not made the required showing that Mr. Twigg's cross-examination would be material to the preliminary hearing. Rather, Defendant merely declares, rather than demonstrates, that Mr. Twigg's cross-examination would be material. *See* Application at 7-9. Regardless, given the State's limited burden of proof, Defendant has not shown that Mr. Twigg's cross-examination would be material under any applicable definition of that term.

A. Defendant has not shown that the cross-examination would be “material” as Utah law defines that term.

Testimony is “material,” when it “would affect the outcome of the [proceeding].” *State v. Schreuder*, 712 P.2d 264, 275 (Utah 1985). In *Schreuder*, the Utah Supreme Court affirmed a trial court's refusal to issue a certificate to secure the attendance of an out-of-state witness for a criminal trial because the testimony would not have had “any effect on the verdict,” and was therefore not material. *Id.* at 273-75.

Likewise, Defendant has not shown that Mr. Twigg's cross-examination would be material to the preliminary hearing. Cross-examination at a preliminary hearing is material to the probable-cause standard only when that examination can demonstrate that the witness cannot be believed at all. As this Court is well aware, the State's burden at the preliminary hearing is “‘light.’” *State v. Lopez*, 2020 UT 61, ¶ 46, 474 P.3d 949 (quoting *State v. Jones*, 2016 UT 4, ¶ 12, 365 P.3d 1212). “All that is necessary is a presentation of ‘evidence sufficient to support a reasonable belief that an offense has been committed and that the defendant committed it.’” *Id.* (quoting *State v. Schmidt*, 2015 UT 65, ¶ 17, 356

P.3d 1204). A preliminary hearing does not serve a discovery purpose, *State v. Labrum*, 2025 UT 12, ¶ 59, 568 P.3d 1075, and defendants cannot use it as a discovery device to obtain notice of the evidence, facts, or theory of the State’s case, *see id.*; *see also State v. Williamson*, 2024 UT App 141, ¶ 48, 558 P.3d 143.

The preliminary hearing magistrate “‘must view all evidence in the light most favorable to the prosecution and draw all reasonable inferences in favor of the prosecution.’” *Id.* at 48 (quoting *Schmidt*, 2015 UT 65, ¶ 4). The only circumstance under which a preliminary hearing magistrate “‘may disregard or discredit’ evidence” is if that evidence is “‘wholly lacking and incapable of creating a reasonable inference regarding a portion of the prosecution’s claim.’” *Id.* at 47 (quoting *State v. Virgin*, 2006 UT 29, ¶ 24, 137 P.3d 787).

Defendant merely declares, without any specifics, that cross-examination of Mr. Twiggs “regarding the evidence, circumstances surrounding the evidence, state of mind, and other considerations relevant to Mr. Twiggs’ reliability and credibility” makes his cross-examination material. Application at 8. But cross-examination is not necessary to test Mr. Twiggs’s reliability at the preliminary hearing. His testimony is already deemed reliable. *See Utah R. Evid. 1102(b)(8)*. Nor is his credibility at issue at the preliminary hearing. *See Virgin*, 2006 UT 29, ¶ 24. That is a question only the jury can resolve. *See id.*

Under the probable-cause standard, this Court is duty-bound to disregard mere potential concerns regarding Mr. Twiggs’s testimony or seeming inconsistencies that

cross-examination might create. *See Lopez*, 2020 UT 61, ¶ 48 (requiring magistrate to view all evidence and inferences in light most favorable to the State). Even if Mr. Twiggs were to testify inconsistently with his recorded statement—which is unlikely given that his recorded statement was consistent with his prior statement, was given under oath and after an admonition that a false statement was punishable, and is corroborated by Defendant’s electronic and handwritten messages—the Court could not weigh those inconsistencies against the State. *See id.* It therefore makes no difference that Mr. Twiggs has been granted use immunity, or that cross-examination might reveal some other reason to perhaps question portions or even all of his statement. This Court could disregard Mr. Twiggs’s statement only if it were “wholly lacking and incapable of creating a reasonable inference regarding a portion of the prosecution’s claim.” *Virgin*, 2006 UT 29, ¶ 24. Defendant makes no effort to show how Mr. Twiggs’s cross-examination would even approach that standard.

Instead, Defendant argues that *Schreuder*’s definition of “material” should not apply because that case addressed the “requirement to obtain relief after conviction on a claim that the district court erred in failing to issue a certificate for an out-of-state witness.” *Id.* at 7 n.3 (italics omitted). But *Schreuder* is controlling precedent that analyzed the very term this Court must apply in ruling on Defendant’s application. *See* 712 P.2d at 273-75.

B. Defendant has not shown that the cross-examination will be “material” under other states’ definition of that term.

Even if this Court were to apply Defendant’s alternative definition of “material,” he still has not shown that Mr. Twiggs’s live cross-examination qualifies. *See* Application at

7-9. Relying on sister-state authority, Defendant argues that testimony is material under the Uniform Act ““if it bears on a fact of consequence to an issue in the case.”” Application at 7 (quoting *In re Thompson*, 309 A.3d 51, 64 (Md. 2024)). Defendant also relies on *Davenport v. State*, 711 S.E.2d 699, 703 (Ga. 2011); *Wyman v. State*, 217 P.3d 572, 583 (Nev. 2009); and *State v. Bastos*, 985 So.2d 37, 41 (Fla. Dist. Ct. App. 2008), all of which similarly define “material.” See Application at 7-8. But these cases are neither controlling, nor persuasive. Rather, all are distinguishable because they address subpoenas for witnesses to testify at a *trial*, not a preliminary hearing with its limited burden of proof. See *In re Thompson*, 309 A.3d at 54-55; *Davenport*, 711 S.E.2d at 700; *Wyman*, 217 P.3d at 597-98; *State v. Bastos*, 985 So.2d at 40-41.

But even applying the definition of “material” from these cases, the “fact of consequence” here is whether the State has met its low burden to demonstrate probable cause. For the same reasons that Defendant has not shown that Mr. Twiggs’s cross-examination is “material” under *Schroeder*, he has not shown how the cross-examination would bear “on a fact of consequence” at the preliminary hearing, see *In re Thompson*, 309 A.3d at 64. The result is the same under either definition.

C. *State v. Lopez* recognizes that a defendant’s opportunity to call witnesses at a preliminary hearing is limited and depends on the limited nature of that hearing.

The Utah Supreme Court’s opinion in *State v. Lopez*, 2020 UT 61, 474 P.3d 949 (2020), supports the conclusion that Mr. Twiggs’s cross-examination is not material to the

preliminary hearing. First, contrary to Defendant’s contention that he has a right to compulsory process at his preliminary hearing, Application at 5-6, the *Lopez* court recognized that defendants do not have an unqualified right to compel witnesses to testify at preliminary hearings, 2020 UT 61, ¶¶ 40-42. Rather, whether “a defendant has a rule-based, statutory, or constitutional ‘compulsory process’ right to subpoena witnesses to testify at a preliminary hearing” is an open question. *See id.* at ¶ 42. And although the *Lopez* court did not resolve that question, it recognized that even assuming a defendant possesses some right to compel witnesses to testify at a preliminary hearing (as opposed to merely “call” witnesses who agree to appear), that right is “not categorical or unlimited.” *Id.* ¶ 42; *see also* ¶ 40 n.16 (recognizing that rule 7B(a) of the Utah Rules of Criminal Procedure grants defendants only the right to “call” witnesses to testify at a preliminary hearing).

Second, *Lopez* recognized that a defendant’s right to subpoena a witness at a preliminary hearing “must account for the circumscribed function of the preliminary hearing (to determine whether there is probable cause to justify bindover) as well as the limited burden of proof on the State.”¹ *Id.* ¶ 4. Given the limited nature of the preliminary hearing, the *Lopez* court concluded that it would be unreasonable to allow a defendant to subpoena a crime victim to testify at a preliminary hearing unless the defendant could demonstrate that additional live testimony from the victim would be “necessary to present

¹ Because the subpoena in *Lopez* was issued to a crime victim, an additional factor in determining the reasonableness of enforcing compliance with the subpoena was “the established rights of victims at [a preliminary] hearing.” *Id.* ¶ 4.

evidence on a specific point material to the probable-cause determination, and that is reasonably likely to defeat the State's *prima facie* showing of probable cause." *Id.* at 54.

Lopez therefore confirms that a defendant's right to subpoena witnesses at a preliminary hearing is both limited and depends on "the circumscribed function of the preliminary hearing" and "the limited burden of proof on the State." 2020 UT 61, ¶ 4. Given these restrictions on a defendant's right to call witnesses at a preliminary hearing, Defendant has not shown that Mr. Twiggs's cross-examination would be material to the narrow probable-cause determination.

In sum, Defendant's unsupported declaration that Mr. Twiggs's cross-examination is necessary to test his reliability and credibility fails to demonstrate that his cross-examination will "affect the outcome" of the preliminary hearing, *Schreuder*, 712 P.2d at 275, or will bear "on a fact of consequence" at that hearing, *In re Thompson*, 309 A.3d at 64. He therefore has not shown that Mr. Twiggs's cross-examination is material to the preliminary hearing.

CONCLUSION

For the foregoing reasons, the Court should deny Defendant's Application for Certificate for Attendance of an Out-of-State Witness.

Dated June 16, 2026.

Utah County Attorney's Office

s/ Christopher D. Ballard
Christopher D. Ballard
Deputy Utah County Attorney

CERTIFICATE OF SERVICE

I certify that on June 16, 2026, I filed the foregoing OPPOSITION TO DEFENDANT'S APPLICATION FOR CERTIFICATE FOR ATTENDANCE OF OUT-OF-STATE WITNESS through the court's electronic filing system, which served a copy on all counsel or record.

s/ Christopher D. Ballard
Christopher D. Ballard

Addendum B-4

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Attorneys for Tyler James Robinson

IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT
IN AND FOR THE COUNTY OF UTAH, STATE OF UTAH

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**DEFENDANT TYLER JAMES ROBINSON'S
REPLY IN SUPPORT OF HIS APPLICATION
FOR CERTIFICATE FOR ATTENDANCE OF
OUT-OF-STATE WITNESS
(Utah Code § 77-21-3)**

Case No. 251403576

Honorable Tony F. Graf, Jr.

I.

INTRODUCTION

Defendant, Tyler James Robinson, by and through undersigned counsel, hereby files his reply in support of, and response to the State's opposition to, his application to this Court for the issuance of a Certificate of Requesting State for Attendance of Witness Located Outside Utah.

Contrary to the State's assertions, Mr. Twiggs¹ is a material witness under any definition of that term. The State's expansive view of the "reliable hearsay" concept essentially eviscerates any role for the Court in the preliminary hearing and purports to make the Court even more of a rubber stamp than a grand jury is commonly viewed to be. This is an assertion of prosecutorial power and judicial powerlessness that cannot be consistent with the separation of powers.

Mr. Robinson does have, at a preliminary hearing, constitutional rights which include the right to compulsory process and the right to confront and cross-examine witnesses whose testimony is presented by the State. The State's interpretation of the Utah Supreme Court's decision in *State v. Lopez*, 2020 UT 61 improperly expands state law specifically designed to protect alleged victim-witnesses to non-victim witnesses, in violation of Mr. Robinson's Sixth Amendment rights and his rights under article I, section 12 of the Utah Constitution.

The Court should grant the Certification requested by Mr. Robinson.

¹ It is important to note that Mr. Robinson's motion was filed privately along with the appropriate motion to classify. That was done in order to protect Mr. Twiggs' privacy rights, which in Mr. Robinson's view are fundamental, at least until he testifies in open court. The State's decision to publicly file its opposition and identify Mr. Twiggs by name may or may not have been based upon Mr. Twiggs' consent but the State's opposition does not say so either way, and it effectively moots that aspect of Mr. Robinson's motion to classify which is still pending before this Court. It very well may be, again, that the State is using *public* court filings as a stalking horse for its extrajudicial messaging to the public, a supposed loophole in Utah Rule of Professional Conduct 3.6 which it asserted only days ago allows it to make extrajudicial statements about matters it has unilaterally decided should be part of the public record.

II.

MR. TWIGGS IS A MATERIAL WITNESS UNDER ANY LEGAL OR COMMON DEFINITION OF THAT TERM

The State acknowledges, as it must, that Mr. Twiggs, whose wide-ranging sworn “testimony” was obtained and preserved through a video-recorded interview with the State’s attorneys and which it intends to offer this Court as evidence admissible under Rule 1102, has evidence that supports counts 1, 2, 3, 4, and 5. (Opp’n at 2) While the State asserts that “most of these statements were through electronic messages” and “a handwritten note,” the State’s 1102 statement (a transcript of which is already lodged with this Court) contains far more. If the State were only interested in using Mr. Twiggs to authenticate alleged electronic communications between Mr. Robinson and Mr. Twiggs, the State’s 1102 statement would be a far different animal. While it is largely a recording of Mr. McBride testifying to facts with which Mr. Twiggs expresses agreement (a form of examination that would certainly be deemed improperly “leading” if attempted with one’s own witness in open court²), the 1102 statement covers many topics that go far beyond the authentication of electronic communications and physical evidence. It opens the door to many topics which the State clearly thinks are important for this Court (and apparently the public) to receive evidence about, yet the State seeks to foreclose any further examination on those topics beyond the questions it asked.

Given the State’s assertion that Mr. Robinson made inculpatory statements to Mr. Twiggs, statements that the State believes establish sufficient evidence to seek the death penalty against Mr. Robsinson, it is difficult to imagine a witness whose testimony could be more material. The State’s other anticipated witnesses at the preliminary hearing are all local law

² See Utah Rule of Evidence 611(c).

enforcement officers, none of whom had any communications with Mr. Robinson on September 10 or 11 of 2025.

The State's materiality argument, if carried to its logical conclusion, is that no single fact witness in any criminal investigation could be deemed "material" unless, *in the State's view*, that witness has reliable and admissible evidence that completely exonerates a defendant. Of course, if that were the case, no charges would have been filed in the first place.

In the State's view, a preliminary hearing is not an adversarial proceeding. It is far more akin to a grand jury proceeding where the State presents only the facts it chooses to present and while the fact finder may have questions about those facts, the defendant has no right to present any facts and no right to examine the State's witnesses so that the factfinder can make determinations about how much weight to give the testimony of the State's witnesses. While Rule 1102 does imbue certain statements offered at the prelim with a gloss of reliability, that does not turn this Court into a rubber stamp for the State. *See State v. Clark*, 2001 UT 9, ¶ 10. Reliability and probative value are viewed on a continuum. Where on the reliability and probative value continuum Mr. Twiggs' recorded testimony falls, *in the Court's eyes*, may only be judged through the adversarial process.

III.

THE UTAH SUPREME COURT DECISION IN *STATE V. LOPEZ* SUPPORTS MR. ROBINSON'S SIXTH AMENDMENT ARGUMENT WHERE, AS HERE, THE WITNESS AT ISSUE IS NOT A VICTIM AND THERE IS NOTHING UNREASONABLE ABOUT THE REQUESTED SUBPOENA

The State's opposition to Mr. Robinson's certification request unsurprisingly attempts to take refuge in the Utah Supreme Court's 2020 decision in *State v. Lopez*, 2020 UT 61. While the State acknowledges, as its attorneys ethically must do, that the Supreme Court *did not hold* there that there is no constitutional right to compulsory process at a preliminary hearing, the State fails

to address what the Supreme Court said about that in a context in which the witness at issue is *not* an alleged victim. This distinction is critical to understanding and applying the Supreme Court’s guidance in *Lopez* where the witness at issue was a victim of the charged sex offenses. Here, Mr. Twiggs is not a victim and the State does not in its opposition even suggest that he is. A close reading of *Lopez* is that the only limitation on a defendant’s compulsory process right under the Utah Constitution where the proposed witness is not a victim is the “reasonableness” criteria set forth in Rule 14(a)(2) of the Utah Rules of Criminal Procedure. *State v. Lopez*, 2020 UT 61, ¶¶ 34-42. The limitations imposed by the Victim’s Rights Amendments to the Utah Constitution are wholly inapplicable here.

There is nothing unreasonable about the proposed subpoena. Mr. Twiggs is a material witness whose wide-ranging recorded statement concerning admissions allegedly made by Mr. Robinson is being used by the State to establish probable cause for a capital offense.

IV.

CONCLUSION

The Court should issue the proposed certification forthwith.

RESPECTFULLY SUBMITTED this 18th day of June, 2026.

/s/ Kathryn N. Nester
Kathryn N. Nester

/s/Richard G. Novak
Richard G. Novak

/s/ Michael N. Burt
Michael N. Burt

/s/ Staci Visser
Staci Visser

Attorneys for Defendant, Tyler James Robinson

CERTIFICATE OF SERVICE

This is to certify that a true and correct copy of the foregoing was served via the Court's electronic filing system on the 18th day of June 2026, which served all attorneys of record.

/s/ Staci Visser

Staci Visser

Addendum B-5

FOURTH JUDICIAL DISTRICT - PROVO

FOR UTAH COUNTY, STATE OF UTAH

_____	)	
STATE OF UTAH,	)	
	)	
	)	
PLAINTIFF,	)	
	)	Case No. 251403576
VS.	)	
	)	TRANSCRIPT OF:
TYLER JAMES ROBINSON,	)	
	)	ORAL RULING
	)	
DEFENDANT.	)	
_____	)	

BEFORE THE HONORABLE TONY F. GRAF, JR.

FOURTH DISTRICT COURTHOUSE
137 NORTH FREEDOM BOULEVARD
PROVO, UTAH 84601

JUNE 22, 2026

A P P E A R A N C E S

FOR THE PLAINTIFF, STATE OF UTAH:

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1 June 22, 2026; 9:48 AM

2 P R O C E E D I N G S

3 **THE COURT:** Good morning. Court is now in session.
4 Calling Case Number 251403576, State of Utah vs. Tyler James
5 Robinson.

6 Counsel, please enter your appearances.

7 **MR. GRUNANDER:** Good morning, Judge. Chad Grunander,
8 Ryan McBride, Jeff Gray, and Chris Ballard for the State.

9 **THE COURT:** Good morning.

10 **MS. NESTER:** Good morning, Your Honor. Kathy Nester,
11 Staci Visser, Michael Burt here on behalf of Mr. Robinson. And
12 if maybe we could just check and make sure he can hear us?

13 **THE COURT:** Mr. Robinson, can you hear us?

14 **THE DEFENDANT:** Yes, Your Honor.

15 **THE COURT:** All right. Good morning to you all.

16 All right. I apologize for the slight delay. There
17 was a couple of last-minute things I needed to do as it relates
18 to this case, so I appreciate your patience. I know your time
19 is important, and the Court respects that. And before we
20 begin, Counsel for the State, could you provide a brief status
21 update regarding discovery?

22 **MR. GRUNANDER:** Yes, Judge. I'll ask Ryan McBride to
23 do that for the State.

24 **MR. MCBRIDE:** Yes, Your Honor. We just -- I think it
25 was just late last week we provided 12 additional files. I

1 think that's a duplicate share. That was reports from the ATF
2 labs. That brings our total back up to approximately
3 100 percent of what we have has been shared.

4 **THE COURT:** All right. Thank you.

5 All right. And anything -- does the Defense need the
6 benefit of the record as it relates to that issue?

7 **MS. NESTER:** No, Your Honor.

8 **THE COURT:** All right. Turning to Defense's motion
9 for order to show cause. The parties submitted additional
10 briefing on June 17th and June 18th, with the most recent
11 filing being received at approximately 9:21 on June 18th. The
12 Court intends to consider all briefing and argument submitted
13 by the parties before rendering its decision in the interest of
14 justice and to ensure that constitutional rights of all parties
15 upheld. Because the most recent submissions were filed shortly
16 before the anticipated ruling, the -- the Court requires
17 additional time to complete its thorough review.

18 The Court recognizes the importance of the issues
19 presented and will issue its decision on a schedule that will
20 be announced at the conclusion of today's proceedings on the
21 remaining matters. And those remaining matters are the
22 Defendant's motion in limine to preclude the utilization of
23 Article 1, Section 12 of the Utah Constitution and Rule 1102 of
24 the Utah Rules of Evidence to sanction the admissibility of
25 hearsay evidence to establish probable cause at the preliminary

1 hearing and Defendant's application for certification for
2 attendance of an out-of-state witness and the State's motion to
3 quash subpoenas. And so the Court will issue its ruling first
4 on its motion in limine. And I'll be reading from the order
5 that I intend to upload on the docket later today.

6 In his motion in limine to Preclude the Utilization
7 of Article 1, Section 12 of the Utah Constitution and Rule 1102
8 of the Utah Rules of Evidence, Defendant Tyler James Robinson
9 seeks an order preventing the State of Utah from relying on
10 hearsay to establish probable cause at his upcoming preliminary
11 hearing. The motion was fully briefed. The Court heard oral
12 arguments on June 12, 2026. Now being fully advised of the
13 premises and relevant legal authorities, the Court hereby
14 respectfully denies the Defendant's motion for the reasons set
15 forth below.

16 In Utah, the primary purpose of the preliminary
17 hearing is limited to determining whether probable cause
18 exists. And, Counsel, as I have done in the past, I will admit
19 the citations, and -- and that will be in the full order that's
20 uploaded. Although the preliminary hearing is a critical stage
21 of the criminal process, it is not a trial and does not involve
22 a determination of guilt or innocence.

23 And let's see. I'm sorry. I just -- I lost my
24 place. The Court does not understand this principle to mean
25 that constitutional protections are categorically inapplicable

1 at a preliminary hearing. Rather, because the preliminary
2 hearing serves the limited purposes of determining whether
3 probable cause exists, the scope and operation of particular
4 constitutional protections must be evaluated in light of that
5 purpose. Accordingly, the Court addresses Defendant's
6 constitutional arguments individually while recognizing that
7 the procedural safeguards required at a probable cause
8 determination need not mirror those required at trial.

9 Defendant raises several constitution --
10 constitutional objections to that conclusion. Defendant argues
11 that permitting the State to establish probable cause through
12 hearsay evidence violates his rights under the Fourth, Sixth,
13 Eighth, and Fourteenth Amendments to the United States
14 Constitution, as well as separation of powers principles. Of
15 the constitutional rights Defendant seeks to fully invoke at
16 the preliminary hearing, Utah courts have directly addressed
17 the application of only one, the right to confrontation.

18 The Court recognizes that Defendant's constitutional
19 concerns are substantial and warrant careful consideration.
20 Nevertheless, the Court's analysis is guided by a limited
21 function of the preliminary hearing and the governing precedent
22 interpreted in Article 1, Section 12. In State v. Timmerman
23 the Utah Supreme Court determined that full application of a
24 defendant's right to confrontation is necessary at trial but
25 not at the preliminary hearing. The Timmerman Court reached

1 this conclusion after comparing the different purposes of the
2 two proceedings. That court recognized that under the amended
3 language of Article 1, Section 12 of Utah's Constitution, a
4 defendant at a preliminary hearing faces only a probable cause
5 determination that is subject to a significantly lower burden
6 of proof, whereas at trial that same defendant faces a
7 determination of his guilt or innocence that must be
8 established beyond a reasonable doubt. Considering the
9 distinction between the issues and the purposes of the two
10 proceedings, the Timmerman court believed a relaxed application
11 of the defendant's constitutional right to confrontation at the
12 preliminary hearing was entirely appropriate.

13 Although Utah courts have not addressed what is --
14 what is the appropriate application of other constitutional
15 rights at a preliminary hearing, this Court follows the
16 Timmerman court's reasoning in concluding that a relaxed
17 application of Defendant's constitutional rights at the
18 upcoming preliminary hearing is likewise appropriate because of
19 the limited purpose of the proceeding.

20 For example, Defendant argues that permitting the
21 State to rely on hearsay evidence -- reliable hearsay evidence
22 deprives him of his Sixth Amendment right to effective counsel
23 before it prevents his counsel from utilizing all the tools of
24 effective advocacy, naming -- I can't speak today -- namely,
25 the right to cross-examine any hearsay declarants. Defendant's

1 arguments rests on the premise that effective assistance of
2 counsel requires access to the full range of adversarial tools,
3 including cross-examination at every stage of the criminal
4 proceeding. The Court is not persuaded by Defendant's
5 argument. The full application of a defendant's right to
6 counsel at a preliminary hearing, which is limited to a
7 probable cause determination, need not be as exhaustive as it
8 must be at trial. That -- the right to counsel may be tailored
9 to the proceeding at hand.

10 The same can be said for the protections under the
11 Fourteenth Amendment's Due Process Clause. At minimum, due
12 process requires notice and an opportunity to be heard in a
13 meaningful manner. The specific procedures require, however --
14 sorry, I'm just -- I note some things that I need to -- minor
15 issues I need to change, so I'm making those changes right
16 now -- however, depend upon the nature and purpose of the
17 proceeding at issue. Because a preliminary hearing is limited
18 to determining probable cause rather than guilt or innocence,
19 due process does not necessarily require all the evidentiary
20 safeguards applicable at trial.

21 The Court is likewise am persuaded that the
22 Eighth Amendment is implicated by the challenged procedures.
23 The Eighth Amendment authority cited by Defendant concern the
24 reliability required in the proceedings that determine guilt or
25 authorize punishment, particularly capital punishment. A

1 preliminary hearing performs neither function. It serves only
2 to determine whether probable cause exists to believe the
3 charges -- charged offenses were committed. Because
4 Defendant's guilt, innocence, and punishment are not at issue
5 during the preliminary hearing, the Court concludes the
6 Eighth Amendment concerns identified by Defendant are not
7 implicated at this stage of the proceedings.

8 As for the Defendant's argument that Article 1,
9 Section 12 of the Utah Constitution and Rule 1102 of Utah's
10 Rules of Evidence create an unconstitutional mandatory
11 presumption of reliability and results in inappropriate burden
12 shifting, the Court does not find this argument persuasive.
13 The presumption of reliability is confined to the presumption
14 that the hearsay evidence is admissible. The presumption does
15 not require the magistrate to find the evidence credible or
16 that it supports a finding of probable cause. The magistrate
17 still retains the ultimate decision-making authority on whether
18 probable cause has been established.

19 Admissibility and evidentiary weight remain distinct
20 concepts. Although Article 1, Section 12 and Rule 1102 permit
21 the admission of reliable hearsay, they do not require the
22 magistrate to accept that evidence as credible or sufficient to
23 establish probable cause. And as the probable cause
24 determination remains in the hands of a magistrate, a judicial
25 officer, Article 1, Section 12 and Rule 1102 have not violated

1 the separation of powers principles.

2 Based off the foregoing analysis and findings, the
3 Court issues the following order: Having carefully considered
4 Defendant's constitutional objections, the governing provisions
5 of Article 1, Section 12 of the Utah Constitution and Rule 1102
6 and the applicable authorities, the Court concludes that the
7 challenged provisions may constitutionally be applied at
8 Defendant's preliminary hearing. According -- accordingly,
9 Defendant's motion is respectfully denied. And that concludes
10 the order as it relates to reliable hearsay and 1102.

11 The Court now turns to the second ruling order
12 regarding Defendant's application for certificate for
13 attendance of out-of-state witness and State's motion to quash
14 subpoena. Give me one moment here. I just need to get a drink
15 of water. And, again, I will admit the citations, but it will
16 be included in the full order that is uploaded with the Court.

17 This matter comes before the Court on Defendant Tyler
18 James Robinson's application for Certificate of Attendance of
19 Out-of-State Witness under Utah Code Section 77-21-3.

20 Defendant seeks to compel the live testimony of Lance Twiggs at
21 the upcoming preliminary hearing. The State opposes the
22 application and seeks to quash the subpoena. Having reviewed
23 the briefing and the pertinent legal authorities, the Court
24 issues the following Decision and Order:

25 Defendant is charged with aggravated murder, felony

1 discharge of a firearm, obstruction of justice, tampering with
2 a witness, and violent offense committed in the presence of a
3 child. Lance Twiggs allegedly resided with and was in a
4 romantic relationship with Defendant at the time of the alleged
5 offenses.

6 The State does not intend to call Mr. Twiggs to
7 testify live at the preliminary hearing. Instead, the State
8 plans to establish probable cause through reliable hearsay,
9 specifically a video-recorded interview of Mr. Twiggs conducted
10 pursuant to Utah Rule of Evidence 1102. The State will also
11 rely on electronic message, a handwritten note, and other
12 corroborating evidence. According to the record before the
13 Court, Mr. Twiggs allegedly made statements to investigators
14 indicating that Defendant confessed to the crimes, concealed
15 the weapon, disposed of clothing, and directed Mr. Twiggs not
16 to contact law enforcement.

17 Defendant seeks to compel Mr. Twiggs' attendance from
18 Texas to provide live testimony. Defendant asserts that he
19 intends to cross-examine Mr. Twiggs extensively concerning the
20 reliability and credibility of his statements, his immunity
21 agreements with the state and federal prosecutors, his state of
22 mind, and the surrounding circumstances at the alleged
23 offenses. When Mr. Twiggs' counsel declined to accept service
24 of a subpoena, Defendant sought this Court's intervention to
25 certify the out-of-state subpoena.

1 The preliminary hearing is a fundamental procedural
2 right under Article 1, Section 13 of the Utah Constitution, but
3 its purpose is strictly limited to determining whether probable
4 cause exists to bind a defendant over for trial. To prevail,
5 the State must present -- present sufficient evidence to
6 support a reasonable belief that an offense has been committed
7 and that the defendant committed it.

8 Under Rule 7B of the Utah Rules of Criminal
9 Procedure, the probable cause determination may be based in
10 whole or in part on reliable hearsay. While Rule 7B(a) states
11 that a defendant may call witnesses and cross-examine adverse
12 witnesses, the right to subpoena witness is not absolute.
13 Under Rule 14(a)(2), the Court may quash or modify the subpoena
14 if compliance would be unreasonable.

15 The Utah Supreme Court has repeatedly emphasized that
16 a preliminary hearing is not a trial on the merits but a
17 gateway to the finder of fact. Consequently, the magistrate's
18 rule is not to weigh credibility -- not to weigh credible but
19 conflicting evidence, nor to eliminate alternative inferences
20 favoring the Defense; such tasks are reserved for the jury at
21 trial. A magistrate may only disregard evidence if it is
22 wholly lacking and incapable of creating a reasonable
23 inference.

24 Recently, in State v. Lopez, the Utah Supreme Court
25 clarified the intersection between a defendant's right to call

1 witnesses at a preliminary hearing and the Court's authority to
2 quash subpoenas. The Court held that a subpoena compelling an
3 alleged victim to testify at a preliminary hearing is
4 unreasonable and should be quashed unless Defendant
5 demonstrates the subpoena is necessary to present specific
6 evidence that is reasonably likely to defeat the showing of
7 probable cause.

8 Defendant argues that he has a constitutional right
9 to compulsory process under the Sixth Amendment and Article 1,
10 Section 12 of the Utah Constitution, as well as a right to call
11 witnesses under Rule 7B. Defendant contends that Mr. Twiggs is
12 a central, highly material witness whose testimony touches on
13 nearly every charge and enhancement. Defense counsel argues
14 that Lopez was specifically tailored to protect the
15 constitutional rights of victims, pursuant to the Victim's
16 Rights Amendment, and because Mr. Twiggs is not a victim, Lopez
17 does not directly apply. Defendant asserts that he must be
18 permitted to test Mr. Twiggs' credibility, the circumstances of
19 his immunity, and the reliability of his statement through live
20 cross-examination.

21 The State opposes the certification and moves to
22 quash the subpoena. The State argues that the preliminary
23 hearing are no longer discovery devices, having been strictly
24 limited to probable cause determinations. Furthermore, the
25 State argues that the Utah Constitution expressly permits the

1 use of reliable hearsay at preliminary hearings, a practice
2 which would be eviscerated if defendants could routinely
3 subpoena the hearsay defendants. The State relies on State v.
4 Schmidt and State v. Robinson [sic] to assert that credibility
5 weighing at this stage is extremely limited, rendering
6 Defendant's stated goal of testing credibility immaterial to
7 the probable cause analysis. Thus, the State argues the
8 subpoena is unreasonable under Rule 14(a)(2).

9 The Court expresses no opinion regarding whether the
10 State ultimately will establish probable cause. The Court
11 addresses only whether the subpoena should be enforced based
12 upon the parties' current proffers. The proffered evidence,
13 including statements that the defendant confessed to shooting,
14 hid a rifle, changed clothing, and directed Twiggs to withhold
15 information, is directly material to the elements of aggravated
16 murder, obstruction of justice, and witness tampering. If this
17 evidence is presented at the hearing and evaluated under the
18 governing preliminary hearing standard, which requires the
19 Court to view it in the light most favorable to the
20 prosecution, as required by State v. Schmidt, it would
21 constitute evidence from which a magistrate could find probable
22 cause if credited under the standards governing preliminary
23 hearings.

24 A central dispute is whether the established -- the
25 standard established in State v. Lopez applies to Mr. Twiggs,

1 who is a non-victim witness. Defendant correctly argues that
2 Lopez arose in the context of a subpoena directed to an alleged
3 victim and that the Utah Supreme Court's analysis was informed
4 in part by the protections afforded under the Utah Right --
5 Victims' Rights Amendment. The Court agrees that Lopez cannot
6 be read without attention to that context. Victim status
7 mattered in Lopez because the subpoena imposed burden upon
8 persons whom Utah law independently protects from unnecessary
9 harassment, delay, and retraumatization.

10 Although Lopez arose in the context of a victim
11 subpoena, its discussion of Rule 14(a)(2) provides guidance
12 concerning how courts evaluate reasonableness in light of the
13 limited purpose of a preliminary hearing. The Court need not
14 decide whether Lopez's precise holdings extend to all
15 non-victim witnesses. Even assuming it does not, the same
16 Rule 14 reasonably considered -- reasonableness considerations
17 identified in Lopez support denial of the requested
18 certification under the circumstances presented here.

19 The Lopez court emphasized several principles that
20 are not dependent upon victim status: (1) a preliminary
21 hearing is not a discovery device; (2) the Utah Constitution
22 permits the State to establish probable cause through reliable
23 hearsay; and (3) the magistrate's role is limited to
24 determining whether probable cause exists, not to resolve
25 ordinary credibility disputes or weighing competing evidence.

1 Those structural principles apply regardless of whether the
2 subpoenaed witness is a victim, an eyewitness, a cooperating
3 witness, or other hearsay declarants.

4 Accordingly, the Court relies primarily on
5 Rule 14(a)(2) and the limited purpose of a preliminary hearing.
6 The Court references Lopez only because of its discussion of
7 reasonableness informs that analysis. Whether Lopez formally
8 governs subpoenas directed to non-victim witnesses need not be
9 resolved to decide the present motion.

10 The Court's ruling does not depend upon extending
11 Lopez beyond its facts. Rather, Lopez is persuasive authority
12 regarding the application of Rule 14(a)(2)'s reasonableness
13 requirement, while the Court's holding rests independently upon
14 Rule 14(a)(2), Rule 7B, and the limited functions of a
15 preliminary hearing.

16 The Court also considers Defendant's constitutional
17 arguments. The Sixth Amendment and Article 1, Section 12 of
18 the Utah Constitution protect a defendant's right to compulsory
19 process for obtaining witnesses in his favor. That right
20 remains important at the preliminary hearing stage but operates
21 within the procedural framework governing probable cause
22 determinations. Accordingly, the relevant question is not
23 whether Defendant may compel Mr. Twiggs' testimony at trial but
24 whether the proposed testimony is necessary to present evidence
25 reasonably likely to defeat probable cause at this preliminary

1 hearing stage.

2 The Court recognizes that compulsory process serves
3 interests distinct from confrontation and discovery.

4 Nevertheless, at the preliminary hearing stage those interests
5 must be evaluated within the procedural frameworks governing
6 probable cause determination -- determinations and the
7 limitations imposed by Utah law upon that proceeding.

8 The Court determines that compulsory process does not
9 automatically require live testimony from a hearsay declarant
10 at a preliminary hearing merely because a defendant seeks
11 impeachment. Whether compulsory process requires live
12 testimony depends upon the relationship between the proposed
13 testimony and the probable cause determination at issue. Under
14 the circumstances presented here, Defendant has not identified
15 testimony reasonably likely to negate probable cause, and the
16 Court therefore concludes that compulsory process does not
17 require certification of the subpoena.

18 For the reasons -- for these reasons, the Court need
19 not determine whether Lopez formally governs subpoenas directed
20 to non-victim witnesses. Even assuming it does not, the
21 Rule 14 -- Rule 14(a)(2) reasonableness principles discussed in
22 Lopez -- in Lopez supports the result here. The question
23 remains whether Defendant has demonstrated that the proposed
24 testimony is necessary to present specific evidence reasonably
25 likely to defeat probable cause rather than merely impeach the

1 credibility of the State's evidence.

2 Even under the framework discussed in Lopez, a
3 subpoena survives a motion to quash only if the defendant
4 demonstrates that the testimony is necessary to present
5 specific evidence that is reasonably likely to defeat the
6 showing of probable cause.

7 Defendant asserts he wishes to cross-examine
8 Mr. Twiggs on his reliability, credibility, immunity, state of
9 mind, and the surrounding circumstances. Under Utah law, this
10 does not establish a basis to require live testimony at a
11 preliminary hearing. As established in State v. Ramirez and
12 State v. Schmidt, a magistrate may not weigh credibility but
13 conflicting evidence. Even if the defendant's
14 cross-examination successfully exposes inconsistencies in
15 Mr. Twiggs' statements or highlights his motives to lie due to
16 his immunity agreements, the magistrate is required to draw all
17 reasonable inferences in favor of the State.

18 Evidence demonstrating bias, motive, immunity
19 benefits, or inconsistent statements may be highly relevant at
20 trial and may provide fertile grounds for cross-examination
21 before the ultimate trier of fact. The Court does not minimize
22 the significance of immunity agreements as potential sources of
23 bias. Rather, under the governing preliminary hearing
24 standard, such evidence affects the probable cause
25 determination only if it eliminates the reasonable inference

1 arising from the State's proffered evidence. However, under
2 the limited function of a preliminary hearing, such evidence
3 defeats probable cause only if it would render the State's
4 evidence incapable of supporting a reasonable inference the
5 defendant committed the charged offenses. Absent such a
6 showing, the Court may not resolve competing credibility
7 determinations or weigh conflicting inferences against the
8 State.

9 Even assuming defendant successfully elicited the
10 anticipated impeachment evidence regarding bias, immunity,
11 motive, or inconsistent statements, the Court cannot conclude
12 on the present record that the State's proffer would become
13 wholly lacking or incapable of supporting a reasonable
14 inference of probable cause under the standards governing
15 preliminary hearings.

16 The Court recognizes impeachment evidence may, in an
17 appropriate case, undermine probable cause where it
18 demonstrates the State's evidence is so unreliable, internally
19 inconsistent, or otherwise deficient that no reasonable
20 inference supporting probable cause remains. In such
21 circumstances, impeachment evidence may do more than merely
22 challenge credibility; it may negate the evidentiary foundation
23 necessary to support bindover. Defendant has not made that
24 showing here. The anticipated examination concerns matters
25 that would generate competing credibility inferences rather

1 than eliminate the reasonable inferences supporting the State's
2 showing.

3 Nothing in this ruling should be understood as
4 creating a categorical prohibition *[sic]* against subpoenas
5 directed to non-victim witness at preliminary hearings. The
6 Court concludes only that Defendant's present proffer does not
7 identify testimony reasonably likely to negate probable cause
8 under the circumstances presently before the Court.

9 The Court also notes that Defendant seeks compulsory
10 process through the interstate witness certification procedure,
11 which imposes burdens upon a nonresident witness and a
12 sister-state court. While not dispositive, those
13 considerations further inform the Rule 14 reasonableness
14 analysis.

15 Under the record presently before the Court,
16 Defendant has identified anticipated impeachment credibility
17 evidence, but it has not identified specific testimony
18 reasonably likely to negate probable cause. Given the limited
19 purpose of the preliminary hearing and the State's ability to
20 proceed through reliable hearsay, the Court concludes that
21 enforcement of the subpoena would be unreasonable under
22 Rule 14(a)(2). This ruling rests on Defendant's present
23 proffer and the record currently before the Court. The Court
24 need not decide whether different circumstances, a different
25 evidentiary showing, or a different category witness would

1 warrant a different result under Rule 14(a)(2).

2 The Court's ruling is procedural rather than
3 evidentiary. Nothing in the decision and the order should be
4 construed as -- as a determination regarding the credibility,
5 reliability, weight, or ultimate admissibility of any witness,
6 statement, or item of evidence that may be later presented.
7 Those matters remain for determination under the governing
8 standards applicable at the subsequent stage of the
9 proceedings.

10 So under "Findings" the preliminary hearing is
11 limited to determining probable cause and not -- is not
12 under -- not a discovery device. The State is constitutionally
13 permitted to rely on reliable hearsay to establish probable
14 cause. The record presently before the Court that the proposed
15 examination is directly -- directed primarily toward
16 credibility, bias, reliability, and impeachment rather than
17 toward evidence likely to negate probable cause. Applying
18 Rule 14(a)(2)'s reasonableness requirement in light of the
19 limited purpose of a preliminary hearing and the authorities
20 discussed above, Defendant has failed to identify specific
21 anticipated testimony that is reasonably likely to negate
22 probable cause as distinguished from anticipated impeachment
23 that would merely create competing credibility inferences.
24 Therefore, enforcement of the subpoena is not warranted on the
25 present record.

1 Based on the foregoing analysis and findings, the
2 Court issues following order: It is hereby ordered that the
3 Defendant's application for certificate of attendance of
4 out-of-state witness is respectfully denied, and the State's
5 motion to quash the subpoena is granted. It is further ordered
6 that this denial is not without -- is without prejudice and
7 subject to renewal. Because probable cause determinations
8 necessarily depend upon evidence actually presented, this
9 denial is without prejudice. If the State's presentation
10 materially differs from the proffer presented before the Court
11 or if Defendant can identify specific testimony reasonably
12 likely to negate probable cause, Defendant may renew the
13 request. And that is the order of the Court.

14 And, again the Court anticipates filing that at --
15 both of these today, and the filed order will be the
16 controlling order in both of those issues. Now, I understand
17 that there is another outstanding motion that was filed around
18 the same time -- I believe it was Thursday evening -- regarding
19 the EMC electric -- electronic media in the courtroom. Does
20 the parties anticipate when briefing will be completed?

21 **MR. GRUNANDER:** Judge, the State anticipates relying
22 on its previous arguments with respect to the media's presence
23 and the openness of this proceeding. Again, we encourage an
24 open and transparent process that the citizens can follow and
25 so they can trust the process. So we do not anticipate filing

1 a written response to that, and we'll rely on our prior
2 arguments and submit it to the Court.

3 **THE COURT:** All right. Does Defense want to be heard
4 on that issue?

5 **MS. VISSER:** Your Honor, we filed our objection
6 yesterday, so that is before the Court.

7 **THE COURT:** All right. Well, what I hope to do is
8 issue a ruling on that, as well as the order to show cause
9 issue. And, again, the -- the parties and mainly the Defendant
10 is entitled to that ruling before the hearing in order to
11 properly prepare, and the Court respects the time necessary to
12 prepare from both sides and -- and wishes to issue a timely
13 order. Let's see if we can find a hearing date between now and
14 the prelim.

15 And, again, in regards to the order to show cause,
16 just to help give some guidance, the Court prioritized the
17 motions that would affect the preliminary hearing, not to say
18 that the order to show cause isn't important, but that does not
19 weigh upon issues that could result in delay of the preliminary
20 hearing. So I just wanted to offer that background in regards
21 to the delay of that ruling.

22 All right. Let's see. Today is the 22nd -- and how
23 quickly this month is passing. Let's see. Availability on --
24 and I know my staff isn't aware of this date, but availability
25 of the parties on this Friday at 8:30 -- again, I'm trying to

1 get a quick turnaround for you in respect of your time and
2 preparation -- on a ruling on both of these issues, the order
3 to show cause and the motion filed yesterday.

4 **MR. GRUNANDER:** The State is available, Your Honor.

5 **THE COURT:** All right. And so I see Ms. Visser
6 nodding her head.

7 Ms. Nester?

8 **MS. NESTER:** Yes, the Defense -- I'm sorry. I was
9 trying to unmute. I was having trouble unmuting. The Defense
10 will be available, Your Honor.

11 **THE COURT:** All right. So June 26th at 8:30 in the
12 morning. And the Court anticipates starting promptly. Again,
13 I apologize for today. There was -- there's always last minute
14 edits that one has to make. And I would rather be concise and
15 on point than come in not -- not exactly where I want to be.
16 All right. So we will plan on June 26th at 8:30 in the
17 morning.

18 And that leaves one last issue, and the Court wants
19 to put all parties on notice and all who -- because this
20 preliminary hearing will be open to the public -- that the
21 Court is not allowing any electronics into the courtroom, not
22 laptops, electric -- electronic devices, electronic watches,
23 electronic or Google glasses or Android glasses or however they
24 want to be determined. It is -- it is -- the Court is stating
25 that for only the preliminary hearing that any and all

1 electronic devices must be left outside the courtroom, not just
2 in your pocket. So no cell phones, laptops, tablets,
3 electronic watches. Any electronic recording device or
4 electronic glasses will not be permitted at the courtroom. And
5 if you have it, you will be turned away.

6 And the reason for that is the Court wishes to uphold
7 the dignity and the civility and -- and uphold the
8 constitutional rights of all parties in this courtroom, and
9 that is the best way the Court sees to be able to do so. There
10 will be unique seating arrangement at the preliminary hearing
11 to accommodate as much as the press and public that is -- that
12 can be safely admitted and for an orderly courtroom. And the
13 Court will advise all the parties as we begin those proceedings
14 on what's in the decorum order, highlighting a few points,
15 because all parties are entitled to be treated with dignity and
16 respect within those proceedings. And the Court will exercise
17 all of its powers to ensure that that is done. So I just want
18 to put that on the record.

19 This does not apply to the attorneys. So if you're
20 worried, like, oh, no, I can't bring my laptop -- absolutely,
21 you can bring your laptop and your cell phones because I know
22 that communication and your reliance upon that is necessary in
23 order to properly do your job. So as it relates to the public,
24 to the press who are excluded, obviously, is counsel on record
25 for -- for the parties and necessary court staff. And so I

1 just wanted to put that on the record well ahead of the prelim
2 so there's no questions or concerns that may arise.

3 Counsel, with that, is there anything else that this
4 Court can address today?

5 And, Mr. Burt, your mic is muted. All right. Give
6 it a try.

7 **MR. BURT:** How's that?

8 **THE COURT:** That's perfect. I've done -- I do that
9 once a day, so I know how that feels.

10 **MR. BURT:** Michael Burt for Mr. Robinson. Judge, in
11 light of the Court's rulings today, I do have one logistical
12 issue I'd like to raise with the Court, if I might.

13 **THE COURT:** Yes.

14 **MR. BURT:** As the Court might be aware, we have
15 arranged to bring to the hearing seven forensic witnesses. The
16 State has identified a number of hearsay reports. I think
17 they're Exhibits 30 through 34 that they intend to introduce.
18 And we have arranged with the federal authorities to fly out
19 from the east coast six of those forensic examiners, and then
20 we have a seventh examiner who resides in the state. And in
21 light of the Court's ruling, I'm wondering if the Court -- and
22 the State has been kept abreast of our attempts to subpoena
23 these people. No objection to that testimony has been lodged
24 so far by the State.

25 But in light of the Court's rulings today, I

1 anticipate that there will be objections to the admissibility
2 of those seven forensic experts. And what I think would be in
3 the interest of everybody, including the Court's schedule, is
4 if we could resolve the issue of whether those witnesses are
5 going to be permitted either before the preliminary hearing or,
6 at the very -- at the very latest after the State presents its
7 prima facie case because we -- we will have those people ready
8 to fly out. And if we can get a ruling from the Court before
9 that actually happens, we could perhaps shorten the hearing
10 considerably. And also alleviate the expense and convenience
11 of flying six people from -- from the east coast.

12 I have not had time to discuss this with the State,
13 and I know the State has not -- had not heard the Court's
14 ruling until this morning. But in light of that ruling, I'm
15 wondering whether the Court could take up either on Friday or
16 at some date before the preliminary hearing any objections the
17 State might have to calling those seven forensic experts.

18 **THE COURT:** All right. I appreciate you bringing
19 that up and to all parties. Anything that we can bring up
20 prior to the prelim serves us well in regards to time
21 management.

22 Turning to the State.

23 **MR. GRUNANDER:** Judge, we're two weeks out today from
24 the preliminary hearing. Obviously, I haven't consulted
25 with -- with cocounsel on this, but I think we could have any

1 objections that we may file -- we haven't discussed this, but
2 we could have those filed by Friday, if not maybe Thursday.
3 I'm not sure what the Defense would do with respect to
4 responding, but I think we could hear this prior to the
5 preliminary hearing.

6 **THE COURT:** All right. Well -- and I realize the
7 position of both parties. I realize Mr. Burt needed to wait
8 till the ruling of the Court, and I realize and I understand
9 the State's response. Let's see what we can do to address that
10 Friday. If briefing is completed or if the Defense needs time
11 to respond to the State's briefing, whenever that comes in, the
12 Court will be sympathetic to that and will adjust accordingly.
13 So tentatively we will plan on addressing that on the 26th at
14 8:30. But, again, I -- I -- I respect and I -- I want the
15 parties to be able to fully respond, so we will adjust to
16 ensure that both sides have an equal opportunity to -- to
17 respond to this request. And the Court will take it up and
18 address it before the preliminary hearing as soon as you can,
19 and the Court will be flexible.

20 If it can't be heard Friday, the Court will find time
21 to hear it the following week well before the preliminary
22 hearing because I understand, and I respect that you need time
23 to prepare and make best use of your time in order do your duty
24 and uphold the constitutional rights of all parties. So that's
25 the best answer I can give.

1 Mr. Burt, any thoughts?

2 **MR. BURT:** No, Your Honor. Thank you for that
3 accommodation. I appreciate that.

4 **THE COURT:** All right. Any final matters before we
5 conclude today?

6 **MS. NESTER:** No, Your Honor, not from the Defense.

7 **MR. GRUNANDER:** Not from the State.

8 **THE COURT:** All right. Thank you to all parties, and
9 we will see you on -- and just to clarify on WebEx.

10 And -- and for Mr. Robinson, to Defense, what's your
11 request as it relates to him?

12 **MS. NESTER:** Same, Your Honor. If he could just be
13 listening with no video, that would be great. Thank you.

14 **THE COURT:** All right. We will go ahead and -- and
15 put that into place. Thank you to all your -- for your time,
16 and I wish you a good rest of your day. Court is now in
17 recess.

18 (End of hearing; 10:29 AM)

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CERTIFICATE

STATE OF UTAH)
) ss
COUNTY OF SALT LAKE)

This is to certify that the foregoing proceedings were taken before me, Danielle R. Willes, a Certified Verbatim Reporter in and for the State of Utah, residing in Salt Lake County, Utah; that the proceedings were reported by me in voice writing, thereafter caused by me to be transcribed into printed form, and that a true and correct transcription of said testimony so taken and transcribed is set forth in the foregoing pages, inclusive.

DATED this 24th day of June 2026.

Danielle R. Willes

Danielle R. Willes, CVR
Certified Court Reporter #12935205-7801

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